Beloit College

Student Handbook

Student Regulations & College Policies

2026 - 2027

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Introduction

When you join the Beloit College community, it is assumed you are a responsible individual who will grow and develop both academically and personally. To safeguard the rights, opportunities, and welfare of students, faculty, staff and guests of the College, all students are held accountable for the regulations and policies established by the College. Students are part of a community where they are expected to be active and involved learners while living by the values of **personal integrity, responsibility, honesty, civility, and non-violence.** Students are to have a respect for the rights, opinions, and beliefs of others and have respect for all members of the college community.

To carry out its educational mission and provide an atmosphere conducive to the building of community and personal growth, the College requires a community free from physical and emotional violence, threats, and intimidation, protective of free inquiry and expression, and respectful of the rights of others. Community members need to be open to change, supportive of democratic and lawful procedures, and dedicated to the rational and orderly approach to the resolution of human problems. Personal idealism, social responsibility and service to others are among the educational aims of Beloit College. Self-regulation is the norm, and College disciplinary action the exception.

The Beloit College Student Handbook is your guide to your life as a part of the college community. It is written and compiled by the Dean of Students staff and the Director of Security to inform students of policies, procedures, and regulations that pertain to students. There are many pieces of information that assist you, the student, in making responsible decisions and understanding the College's expectations and your own role and responsibilities as a member of the Beloit College community.

Every student is responsible for knowing the information in the Handbook as well as the information in the College catalog. Both are available online to be easily accessed, and all students, particularly those who are new to Beloit, should read both thoroughly. The Handbook is updated at least once per year, and students are expected to follow the most current edition. This expectation includes commuter students as well as residential students, as there are policies and regulations pertaining to ALL students.

Please Note: While this Handbook provides a review of regulations, policies, guidelines, and resources, the College reserves the right to change statements and policies when necessary and appropriate.

Questions about policies and regulations in the Student Handbook are to be directed to the Dean of Students.

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The following expectations, regulations and policies have been established as a guide to individual conduct aimed at protecting the rights, opportunities, and welfare of students, faculty, staff and guests of the College. These regulations do not attempt to include all possible scenarios for unacceptable behaviors. Student enrollment, continued attendance, and access to college resources at Beloit are a privilege, not a right. Revocation of this privilege occurs when it is assessed that it is necessary to protect the campus community, is necessary for the safety of the individual student, and/or the student is delinquent on payments to the College. In most cases, sanctions are educational in nature and fulfill the College's role in shaping character and the values of personal integrity and responsibility, honesty, civility, non-violence, respect for the rights, opinions and beliefs of others, and service to the college community and beyond. Students who have ideological differences with College regulations and policies are encouraged to suggest changes and revisions through the appropriate channels (Dean of Students) but are held accountable for those contained herein.

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SECTION I: General Behavior Expectations

A. Stay Informed: Read and Understand All Rules, Policies, and Standards

By enrolling, students are held responsible for reading, understanding, and following all rules, policies, standards, and expectations expressed within the Student Handbook and all other campus publications.

B. Follow the Laws: Civil/Criminal US or International Laws

Students accept full responsibility for their own actions under federal, state and local laws (U.S. or abroad). The College provides no immunity from the consequences of illegal acts and the College does not provide legal counsel for its students. The College or the aggrieved party always has recourse to the civil authorities (U.S. or abroad) for violations of civil/criminal law. Ignorance of laws does not mitigate the responsibility for following the laws.

C. On-Campus Behavior

A Beloit College student is expected to conduct themselves in a manner that respects themselves, other students, and other members of the College community. A student may not behave in a manner that denies or interferes with another member's expression of convictions, right to academic freedom, or the performance of the duties or functions of others.

D. Prohibited Behavior

The following acts are prohibited. Individuals violating these student regulations and policies may face disciplinary action as outlined in the Adjudication of Violations of Expectations, Policies or Standards section. Those that are also crimes may also face criminal charges. Many of these prohibited behaviors have separate policies which describe them more specifically later in this Student Handbook. This is a general overview:

- Violence, of any type, that is harmful to another member of the College community or any property of an individual, the College or the community.
- Assault, which includes forced or coerced sexual contact, or the threat thereof against any member or guest of the College. (See Policy Against Sexual Harassment and Associated Grievance Procedures).
- Discrimination or harassment based on race, color, religion, sex (including pregnancy, sexual orientation, gender identity, and transgender status), national origin, age (40 or older), disability, genetic information, protected veteran status, or any other characteristic protected by applicable federal, state, or local law.
- Sexual, personal, physical, emotional or psychological harassment, or the threat thereof, including hazing, against any member or guest of the College.
- Phone or social media harassment, which includes prank calls; threatening, obscene or otherwise harassing use of a phone or any social media platform.

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- Sharing of any photo, video, audio or other recording or image of any student other than oneself without the express and sober consent of students (and any other College community members) present in the recording or image.
- Theft of or damage to College property or the property of any member or guest of the College.
- Disorderly conduct, which includes behavior that fails to treat other members of the community with courtesy or respect, that interferes with functions at the College (from classes to sporting events or plays) or that fails to maintain the highest standards of honesty and integrity.
- Lewd, indecent or obscene conduct outside of the realm of artistic expression, as determined by the Dean of Students.
- Possession and/or use of dangerous weapons, which includes, but is not limited to, firearms (including anyone with a concealed carry permit), pellet and BB guns, ammunition, hunting or combat knives, hazardous chemicals, explosives, fireworks, laser pointers, swords, axes, paintball guns, and other objects or substances used as a weapon or in a dangerous manner.
- Failure to report knowledge of the possession by oneself or others on campus of dangerous weapons, pellet and BB guns, ammunition, hunting or combat knives, hazardous chemicals, explosives, fireworks, laser pointers, swords, axes, paintball guns, and other objects or substances used as a weapon or in a dangerous manner to Security or Residence Life staff, or to the Dean of Students.
- Consumption of alcohol by minors, providing alcohol to minors, and drinking games/activities centered on or designed for alcohol consumption, regardless of whether alcohol is present or consumed.
- Possession and/or use and sale of any form of drug classified as illegal by local, state, or federal statutes; Including (but not limited to) narcotics, barbiturate drugs, hallucinogenic drugs, marijuana, cocaine, date rape drugs such as Rohypnol (Roofies), GHB or Ketamine.
- Failure to comply with federal or state law, county or city ordinances, including but not limited to those governing alcoholic beverages and drugs.
- Intentional misuse of or tampering with fire alarms or other safety equipment.
- Unauthorized entry or use of campus equipment or facilities and possession of and/or use of unauthorized keys/key cards.
- Providing entry to campus buildings or rooms to unauthorized persons.
- Furnishing false information or false academic or co-curricular credentials and intentionally making a false report of an emergency.
- Forging, altering, misusing, or transferring to another person College identification, records, or documents.
- Acts of personal dishonesty – knowingly lying, cheating, academic and non-academic acts of plagiarism, providing false or misleading information.
- Violation of housing contract regulations and agreement; failure to abide by the conditions of the Residence Hall application and agreements.
- Failure to identify oneself properly, or to comply with the directions of a member of the College faculty or staff, particularly Residence Life and Security Staff or support staff requesting an appointment, acting in the performance of their duties.
- Failure to comply with official academic and/or disciplinary sanctions.

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- Failure to meet your financial obligations to the College. Misrepresenting that you have met your financial obligations to others, on-campus or off-campus. Failure to provide appropriate documentation for claimed expenses. Failure to gain appropriate permissions for using College funds prior to spending the funds.
- Willful misrepresentation of the words, actions, deeds or intentions of another person.
- Failure to gain authorized use of the College seal or logos, or official reference to the College, or the use of the College name in a manner that might imply official approval, authorization, or sponsorship of an activity or publication. This prohibition extends to references to Beloit College students or a Beloit College organization, whether officially recognized or not. Exceptions to this policy require written authorization from the head of Communications and Marketing or their designee. This policy includes, but is not limited to, public performances or statements, electronically distributed statements, printed matter, Internet Web pages, social media platforms, souvenirs, or merchandise.
- Willful obstruction of the normal processes essential to the function of the College.
- Intentional misuse and/or abuse of College regulations, policies and judicial system.

Repeated violations of any of the above regulations and policies will be considered when disciplinary action is taken, and will likely lead to more serious penalties. **Collusion in disobeying any of the College's regulations and policies will be treated as the commission of the act**.

Note: Potential complainants are reminded that the College's ability to effectively consider complaints can be impaired or negated by the passage of time.

E. Off-Campus Behavior

A Beloit College student is expected to obey all local, state, federal, international, and foreign country laws while on campus and off. Although a student's off-campus conduct ordinarily will not affect their College status, there may be occasions in which off-campus conduct is so destructive to the College or of such a nature as to indicate to the community that College disciplinary action must be taken. Even if civil/criminal action is pending, the College may take action if this appears to best serve the interests of the College and its students.

Offenses of such seriousness that they would normally be considered felony offenses will often be handled in criminal courts. Examples of cases in this category include but are not limited to:

1. Forcible interference with the educational processes of the College.
2. Assault, rape/sexual assault, sexual misconduct, sexual abuse, hate crimes as defined under state and federal law.
3. Theft and aggravated criminal damage to property.
4. Willful or negligent actions that endanger the health and safety of other persons on or off campus.
5. Use of explosives or firearms on or off campus property.
6. Arson.

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7. Misuse of the College telephones, telephone fraud, and computer network misuse.
8. Breaking into and entering College buildings.
9. Drug and alcohol violations.
10. Tampering with fire safety equipment.

Some cases may be violations of both College regulations and criminal or civil law (U.S. or abroad). In these instances, including the ten listed above, the College reserves the right to hear the case on campus even though civil authorities may also have jurisdiction.

F. Off-Campus Study: Students On Domestic or Study Abroad Programs

Students registered for Beloit College's domestic and study abroad programs are expected to comply with all of the College's policies and procedures and obey all local, state, federal, international and foreign country laws while they are away from campus.

Students registered for domestic and study abroad programs through Beloit College will notify Beloit's Study Abroad Advisor (608) 363-2270 or the Director of Residence Life (608) 363-2350 by phone or email when violations of College policy occur and they wish to file a complaint. If an emergency exists and these individuals are not available, Beloit College Security can be notified at (608) 363-2355 and an on-call campus professional can be consulted.

While a student is away from campus on a domestic or study abroad program, disciplinary action may be taken by the College against an individual (or individuals) accused of violating College policies or civil/criminal laws.

The Global Experience Office (GEO) may not grant or may revoke a student's permission to study abroad who does not meet their academic requirements (GPA, language needed) or has an unresolved disciplinary case at Beloit College. Students approved to study abroad must also complete all pre-departure activities required by the Global Experience Office in order to retain their approval status and receive credit for their study abroad experience.

Students found in violation of College policies, local, state, federal, international or foreign country laws during their off-campus experience may also have their permission to participate in the program revoked during their experience.

In addition, students who are unable to meet the essential components and/or are incapable of actively participating in their study off-campus experience (i.e. because of health issues), may also have their off-campus experience discontinued by the GEO office (in consultation with the Dean of Students).

G. Bystander Intervention Expectations

Students are expected to intervene with their peers when it appears as though a person is going to violate a College policy. If the intervention does not appear to be working and/or intervening would appear to endanger the intervening student, Security should be called immediately. We strongly

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encourage anyone to report reasonably credible College policy violations to Security, Residence Life, and/or the Dean of Students staff. Policy violations that are also criminal may also be reported to the Beloit Police Department.

H. Notification/Official Communications Policy

The official method of contacting students is by students' Beloit College email account. It is the students' responsibility to regularly check their email for messages and updates from administration as well as faculty and staff. Students may have their emails forwarded to a separate address and IT (LITS) can assist with the task of doing so.

The emergency warning system for cell phones will be used if necessary to directly contact students. In order to facilitate campus communication, student-provided cell phone numbers will be available to faculty, staff, and campus offices. Students are to keep their emergency contact information (including their cell phone number) updated via their "My Beloit" (Portal) page.

In case of an emergency situation, notification and instructions will be sent to students' email as well as a call or text to the cell phone number provided to the College by the student.

SECTION II: Adjudication of Violations of Expectations, Policies or Standards

Introduction

The College handles violations of community standards in one of two ways: 1) Restorative Justice or 2) educational, sanction-based discipline. Violations of community standards can come to the attention of the adjudicators in a wide variety of ways. Students, faculty or staff, or alumni may make an allegation; security reports may document an incident, and/or outside parties (parents, city community members) may communicate their concerns. In all cases, students and student groups have a right to due process (which includes investigation of the validity of the report), and to appeal as is indicated in the particular policy of the violation. While violations of policies can occur between any two individuals, the focus here is on the student as the actor, and so we will use "students" but it may include faculty, staff, or community members as well.

Violations of policy where significant physical damage occurs, safety is compromised significantly, major destruction occurs and/or irreparable harm has been caused are unlikely to be solely addressable via the Restorative Justice process.

A. Restorative Justice

Restorative Justice is an approach which focuses on the offenders taking responsibility for their actions, involving them in ideas for repairing the harm that they caused, and reconciling with those that they harmed and/or the community at large.

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Four principles are central to Restorative Justice:

1. Inclusive decision-making in the hands of the people most closely involved in the incident.
2. Accountability that makes people who cause harm take responsibility and make amends.
3. Reparation and healing that uplifts harmed parties (not drag down offenders).
4. Rebuilding relationships focusing on trust and mutual wellbeing.

Process

Restorative Justice facilitators meet with the people involved to explain the process, determine if they are interested in participating in it, and prepare the involved parties to consider outcomes of the process.

If the parties are amenable to the restorative process, the facilitator arranges a time and place for the persons involved in the incident to come together to talk about the harm that was done and agree on actions that can be taken to repair the harm.

B. Educational, Sanction-Based Judicial Process

Students who violate policies and/or harm others or the physical spaces of the community may also be adjudicated by traditional, sanction-based disciplinary procedures. Students involved in alleged violations typically meet with a member of the Residence Life or Dean of Students staff. Those staff members continue investigating when necessary. Once a conclusion of the validity of the violation has occurred (using a "more likely than not" standard of evidence), a sanction is placed on the student (or student group) based upon the level of severity and/or pre-determined sanctions, when available.

Several policies and procedures of adjudication are specific to the type of violation that occurred. They are noted in the policy descriptions below.

A more detailed description of the Educational, Sanction-based Judicial Process is in Section IV.

SECTION III: Policies, Regulations, Rules, and Expectations

A. Academic Policies

1. Academic Honesty

Statement of Policy

In an academic institution, few offenses against the community are as serious as academic dishonesty. Such behavior is a direct attack upon the concept of learning and inquiry and

casts doubts upon all measures of achievement. Beloit insists that only those who are committed to principles of honest scholarship may study at the College.

Acts of Academic Dishonesty

The following are various forms of common acts of academic dishonesty. This list is not fully inclusive of all types.

a. Cheating is an act of deception by which a student misrepresents that they have mastered information on an academic exercise that they have not mastered. For example, intentionally using or attempting to use unauthorized materials, information, or study aids in any academic exercise is considered cheating.
b. Fabrication is the intentional use of invented information or the falsification of research or other findings with the intent to deceive.
c. Plagiarism is the representation of someone else's words, ideas, or data as one's own work. When a student submits work for credit that includes the words, ideas, or data of others, the source of that information must be acknowledged through complete, accurate, and specific references, and, if verbatim statements are included, through quotation marks as well. By placing their name on work submitted for credit, the student certifies the originality of all work not otherwise identified by appropriate acknowledgments.
d. Unauthorized audio or video recording of classes is prohibited. A student seeking to record any class must receive permission from the instructor before the recording takes place. If permission is granted for recording, all students in the class must be informed that the class is being recorded. Any recording is for the personal academic use of the individual student only, though the faculty member or the College may require the student to share the recording.
e. Other acts that will not be tolerated include the theft and/or mutilation of any library material; willfully providing College officials with false, misleading or incomplete information; and forgery or falsification of grades, College records, or documents. Collusion in any act of academic dishonesty will be treated as a commission of the act.

Action Taken by Instructor

a. When an act of academic dishonesty appears to have occurred within the academic process, the individual instructor in whose class the violation took place shall discuss the apparent violation with the student as soon as possible and shall give the student an opportunity to explain their action.
b. If the matter is not resolved after the instructor's discussion with the student, the instructor may consult with the Dean of Students. The instructor may refer the matter to the Dean of Students for further investigation and review, in which case the instructor shall state in writing the factual basis for their belief that a violation of the academic honesty policy has occurred.

c. In cases where academic dishonesty is determined by the instructor of the course, the instructor may impose one or more of the following sanctions:
   i. an oral reprimand;
   ii. a written reprimand presented only to the student;
   iii. an assignment to repeat the work, to be graded on its merits;
   iv. a lower or failing grade on the test, project, or paper in question;
   v. a lower grade in the course;
   vi. a failing grade in the course.
   vii. Regardless of whether or not a sanction was imposed, the instructor shall then report the incident to the Dean of Students. This report shall include:
   viii. any relevant materials (e.g. paper where plagiarism is noted along with links to plagiarized material, exams of two students accused of cheating);
   ix. a summary of the conversation that the faculty had with the student, and/or other communication (e.g. email) including when it took place.
   x. the sanction imposed by the instructor (with some rationale).
   xi. The decision of the instructor will be noted and filed in the Dean of Students Office.
d. A student who has been sanctioned by an instructor for an act of academic dishonesty may appeal to the Judicial Board within one week of receiving the instructor's decision, as outlined in Section 6.
e. Individual instructors always retain the right to evaluate the student's work in the course.

Actions Taken when the Violation is not Course-Specific

Rarely do violations of the academic honesty policy occur out of a specific course context (e.g. submitting a modified transcript to an employer or graduate school). In these instances, the complainant shall report the violation and evidence of the violation to the Dean of Students office. The Dean of Students office will investigate, endeavor to speak with the accused student, and render a sanction. As with other violations and sanctions, a student who has been sanctioned may appeal to an ad hoc appeals committee within one week of receiving the decision, as outlined in Section 6.

Action Taken by the Dean of Students

a. The Dean of Students (or designee) shall meet with every student accused of and/or found in violation of the academic honesty policy. The Dean determines whether a sanction should be imposed beyond the sanction(s) imposed by the instructor. This determination is made after review of the evidence, and discussion with the student and the complainant (typically a faculty member), and if appropriate, further investigation of the incident. Or, the Dean may refer the matter directly to the ad hoc appeals committee for a formal hearing as outlined in Section 6.

b. The Dean of Students may impose any of the following sanctions:

i. a written reprimand presented only to the student and the relevant faculty member or other complainant; or a written reprimand with a copy sent to the advisor and the instructor; a copy of any written reprimand will be placed in the Dean of Students Office file;
ii. placement on disciplinary probation; in writing, sent to the student, advisor(s), and the instructor (or other complainant) with a copy placed in the Dean of Students Office file.
iii. an educational project and/or apology to the relevant aggrieved party (usually faculty), in addition to disciplinary probation status.
iv. removal of the student from the course; with a written notice to the faculty member and advisor(s), the Registrar, and a copy placed in the Dean of Students Office file.
v. suspension or dismissal from the College. Suspensions and dismissals may be immediate; suspensions may be up to one year. Note: students who are dismissed for violating the academic honesty policy will have the following written on their transcript: "Dismissal for Violation of the College's Academic Honesty Policy." If a student chooses to pursue an appeal, no transcript shall be issued until the appeals process is completed.

c. The Dean of Students shall notify the complainant and the student of any decision to impose further sanction(s). A decision to impose sanctions made by the Dean of Students may be appealed by the student to an ad hoc appeals committee (see next section).

Appeals

a. Students wishing to appeal a decision made by the Dean of Students, or by their designee, or a sanction imposed by an instructor for a violation of the academic honesty policy must notify the Dean of Students. Appeals shall be made in writing and within one week of receiving the decision of the Dean of Students or the instructor. The notification should contain an explanation of the rationale for appeal. *The appeal is to specify whether the student is appealing the violation, the sanction applied, or both.*
b. An appeals committee shall be established, consisting of the faculty members of the Academic Performance Committee, two student representatives – Academic Senators or members of the Beloit Student Government, and an Associate Dean of Academic Affairs, who will serve as chair of the hearings and voting member in case of a tie. If any faculty member or student member has a conflict of interest, the Chair shall designate an alternate to serve in the member's stead. Preference will be given to those who have been trained regarding the appeals process.
c. The Dean of Students shall notify the complainant of the student's intent to appeal no more than three (3) business days after the student has indicated their intent.

d. The appeals committee may proceed independently to secure evidence for the hearing. Members of the appeals committee, the complainant, the Dean of Students or their designee, and the appealing student shall have access to any evidence secured by the committee or by any party at least three (3) business days before the hearing.
e. The student charged with a violation of the academic honesty policy may request, when needed, the aid of the Chair of the appeals committee in obtaining the information necessary to answer the charges made against them or requesting the attendance of witnesses at the hearing. When a witness is unable to attend a scheduled hearing, the witness may make a written and signed statement that may be submitted to the appeals committee and shared with all parties at least three (3) business days before the hearing. Witnesses are to be limited to those who have direct knowledge of the situation (e.g. not "character" witnesses). When the student is appealing the decision or sanction of the Dean of Students or designee, that person will normally be called as a witness to explain their decision-making.
f. The student is to respond to any queries or prompts from the committee chair within two (2) business days of each request. The student must cooperate with setting a hearing time/date, within three (3) weeks of the appeal.
g. The appealing student shall have the option of being accompanied by a member of the College's faculty, staff, or student body. That support person is prevented from speaking, except to the student, during the process. Members outside of the College community (e.g. lawyers, parents) are not allowed to accompany the student in the hearing.
h. The student and the appeals committee members shall have the right, within reasonable limits set by the Chair, to question all witnesses who testify orally.
i. An audio recording of the proceedings shall be kept by the Chair of the appeals committee until any appeal has been concluded and by the Dean of Students following the appeal. Ordinarily, no transcript shall be printed.
j. The appeals committee shall deliberate in closed session. The committee's decision shall be based on the hearing, the evidence, witness testimony, and the papers filed by the parties.
k. The appeals committee will render one of three decisions: uphold the original decision, modify the original decision, or overturn the original decision. The latter two options could result in a new finding such as responsible or not responsible, sanction(s) being removed, or sanction(s) being added or increased. Under all circumstances, the appeals committee decision is final.
l. The appeals committee shall issue its decision in writing, which shall contain its findings of facts, conclusions, and actions, within two (2) weeks (ten business days) of the hearing. The decision shall be sent to the student, the complainant, the registrar, and the Dean of Students. If the student is dismissed, the final transcript shall reflect the committee's decisions. The decision of the committee is final.

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Summer and Vacation Disciplinary Process

The Dean of Students, or designee, shall investigate and determine any sanction for all violations of the College's academic honesty policy referred to them by an instructor during the last week of classes, exam periods, or vacation periods. A student may appeal the Dean of Students' decision to the Provost. All appeals must be in writing within 5 business days of being notified of the decision by the Dean of Students. The Provost has thirty (30) business days to review evidence and render a decision. The Provost's decision is final.

Dishonesty during the appeals process

If a student violates the academic honesty policy, presents false evidence, or provides statements found to be untrue during the process (with the faculty member/complainant, Dean of Students or their designee, the Provost, and/or during the appeals hearing), additional sanctions may be applied. When additional sanctions are applied, the student may appeal those sanctions in accordance with Section 6, but sanctions determined prior to the finding of false evidence (e.g. suspended) will be in force while this additional appeal is being processed.

Academic Honesty Violations and Late Drop Requests

As part of the Academic Performance Committee's (APC) practice, APC is to be informed by the Dean of Students Office when a student applying for a late drop has also violated the academic honesty policy in that class so that the committee has a full context in which to consider the drop request.

Readmission

Students who have been dismissed for violation of the academic honesty policy may apply to the Academic Performance Committee for readmission to the College no earlier than one year after the academic dismissal. Students may be readmitted on the approval of the committee, which will consider each application on an individual basis. Students seeking readmission should contact the Dean of Students Office.

2. Class Attendance and Comportment

1. Attendance at classes is required and is considered an essential component for each course. As an in-person, residential college, we believe that classroom attendance is a minimum requirement to support our mission to empower students to "lead fulfilling lives marked by high achievement, personal responsibility, and public contribution in a diverse society" (Mission Statement). Our classrooms are communities of learning, and in order to be fully effective, students must attend in person, be prepared for class, and be ready to participate. Failure to attend classes may affect the final grade, depending on the policy of the instructor of each course.

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2. If a student has missed more than half of the class meetings scheduled in the first week of the course, and has not contacted the instructor or the Dean of Students Office, an instructor may, in consultation with the student's advisor, drop a student from a course. The instructor shall submit a drop card to the Registrar's Office signed by the instructor. It is the responsibility of the instructor to notify the student and at least one of their academic advisors that they have been dropped from their course. Note: The intent of this policy is to enable faculty, during the first week of classes, to enroll a waitlisted student in place of an enrolled student who has absences as described above.

    - If a student does not plan to attend a class, they should follow regular drop procedures unless they have received written notice that they have been officially dropped from the class.

3. Each instructor should submit an alert slip and/or report to the Associate Dean of Students any excessive number of absences which, in the opinion of the instructor, affect the student's work. Once a student has missed two continuous weeks of a course, instructors must submit an alert slip and/or report to the Associate Dean of Students to ensure appropriate communication before the student is considered for an administrative drop from the course (see #5). Negligence in attendance indicates that the student is not attempting to fulfill course requirements. Continued inability to address or indifference to attendance obligations may result in separation of a student from the College. A student who discontinues attendance in a course without officially withdrawing may receive an "F" in the course.

4. When a student has an emergency (death in the family, severe illness, or other compelling circumstances), the student should notify the Dean of Students Office, which shall inform the various administrative offices and the student's instructor(s) and advisor(s) about the absence. However, all absences, including emergencies, are evaluated by the instructor. It is the student's responsibility to notify the instructor in advance whenever possible about an absence. In all cases, the student is responsible for course work missed. **If an absence is likely to extend beyond two continuous weeks of class meetings, the student must consult the Associate Dean of Students, who will confer with the student's faculty members and advisor(s)**. As an extended absence can involve federal regulations that must be addressed institutionally, students are not to approach faculty members regarding extended absences. To make sure that the College is in compliance, students needing an extended absence are to contact the Associate Dean of Students (who will contact their faculty, if appropriate).

5. Due to federal regulations and reporting requirements, a student who is unwilling or unable to attend/engage in one or more courses regularly may be administratively dropped from those courses. If a student misses two continuous weeks of attendance in/engagement with a course, the Associate Dean of Students, in consultation with the Registrar and in communication with the faculty member and students' advisor(s), may begin the process of contacting a student to determine if an administrative drop from the course is warranted. If the student does not begin attending/engaging in the course after these efforts, or respond to contact from the Associate

Dean of Students, the administrative drop process will occur if the student has not attended or otherwise engaged in the course for at least three weeks. The student will be informed that they are no longer registered for the course. Students who drop below full-time status as a result of an administrative drop may be administratively withdrawn from the semester unless they receive permission from the Associate Dean of Students and Registrar to remain on part-time status. Students who have been administratively withdrawn from the semester will be notified by the Dean of Students Office in person, if possible, and/or by email.

6. For the latest federal definition of course attendance/engagement, consult with the Registrar or Student Financial Aid Office.

7. While in-person attendance is a fundamental part of the learning experience, there will be times when students must miss class. It is the responsibility of the student to communicate with faculty proactively when missing class.

    i. Excused absences for religious holidays must be arranged by students in advance with individual faculty members. Faculty members are encouraged to be sensitive to students' religious preferences, and will, if at all possible, accommodate student requests for an excused absence. Faculty members will also make every effort not to schedule exams or quizzes on religious holidays when a student's desire to observe that holiday has been expressed. However, the final decision to schedule an exam or quiz rests with the faculty member.

    ii. Absences for students with disabilities that impact class attendance must be arranged through the Learning Enrichment and Disability Services director. Once the student has established the need through the director, the director and the faculty member will establish attendance and assignment accommodations that are reasonable. Faculty are encouraged to be sensitive to disability needs, and will, when reasonable, accommodate students' disability-related needs.

3. Collaborative Research

At Beloit College, we encourage collaboration in research, other scholarly endeavors, and artistic activity that joins the interests, energy, and talents of two or more faculty (or staff) members or faculty and students. We view such collaboration as an important educational activity for students and a valued part of their scholarly development.

Because of the importance of such activity, and its evaluation by others through publication and public presentation, we expect that certain ground rules will be followed in collaborative research.

1. Collaborative research involving faculty members at Beloit College should involve a full understanding about authorship, order of authorship, and all mutual obligations and

responsibilities as the collaboration begins. Responsibility for achieving such understanding is left to the faculty members involved.

2. While collaborative research between faculty and students is to be fully encouraged and supported, it differs from collaboration involving only faculty because of inherent differences in authority and power. Therefore, it requires certain specifications as to what the College expects:

    a. Understanding about responsibility, authorship, and other elements of collaboration is to be reached by those faculty and students involved in a project as it begins. Such discussions are regarded as part of the professional education of students.
    b. Whenever a student makes an important contribution to the design of a collaborative research project or to the interpretation of its results, that student should receive a significant acknowledgment including, when appropriate, joint authorship. Whenever their labor is primarily responsible for the success of the project, such credit should be similarly given.
    c. In those instances, when student contributions are more diffuse, e.g., when each member of a class makes a contribution to a project by interviewing or performing a similar effort, any publication or paper should include an acknowledgment of that contribution, either individually (especially if numbers are small) or collectively.
    d. In those instances, when a student collaborator feels that they are not receiving the rights specified by this policy, the student should discuss the situation with their faculty collaborator. If that discussion does not resolve the issue, the student should approach the chair of the department or the Provost if the department chair is the faculty collaborator in question, to see if the issue can be resolved to everyone's mutual satisfaction. If this is not possible, the matter will be referred to the Faculty Status and Performance Committee for arbitration. The decision of the committee will be final.

3. Authorship should be credited only to those who are directly involved in the research, are familiar with its execution and results, and are accountable for its conclusions.

4. Students from other institutions, collegiate and pre-collegiate, who work in research and other collaborative projects directed by a faculty member from Beloit College are to be included in this policy.

NOTE: A Beloit College student working on research projects elsewhere is not protected by our College's policy, but the student is encouraged to discuss Beloit's expectations with their supervisor at the site before beginning the project.

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4. Privacy/Access to Student Educational Records (FERPA)

General Policy

Beloit College recognizes that the protection of the rights of persons requires adherence to clearly formulated institutional policies governing the maintenance of student records. As provided more fully below, the privacy and confidentiality of all student records shall be preserved. Faculty and staff of the College are bound to respect the rights of a student's good reputation and privacy by holding in confidence information they acquire in the course of their work.

Federal Law

Beloit College informs students of the Family Educational Rights and Privacy Act (FERPA) of 1974 (20 U.S.C. 1232g and 34 C.F.R., 99.1-99.67), as amended, in the Student Handbook. This Act, with which the institution endeavors to fully comply, was designed to protect the privacy of educational records, and to establish the right of students to inspect and review their educational records. The Act also provides guidelines for the correction of inaccurate or misleading data through informal and formal processes. Students have the right to file complaints with the Family Policy Compliance Office, U.S. Department of Education, concerning alleged failures by the institution to comply with the Family Educational Rights and Privacy Act (FERPA). (https://studentprivacy.ed.gov/resources/eligible-student-guide-family-educational-rights-and-privacy-act-ferpa)

Requests for disclosure from non-College constituencies and student informal complaints should be directed to the Registrar.

Definitions

- A *student* is any person who attends or has attended the College.
- *Education records* are any records (in handwriting, print, tapes, film, computer, or other medium) maintained by Beloit College or an agent of the College that are directly related to a student except:
    1. A personal record kept by a faculty or staff member, if it is kept in the sole possession of the maker of the record, is not accessible or revealed to any other person except a temporary substitute for the maker of the record, and is not used for purposes other than a memory or reference tool.
    2. Records created and maintained by the Beloit College Security Office, if the record is maintained solely for law enforcement purposes and is revealed only to law enforcement agencies of the same jurisdiction.
    3. An employment record of an individual whose employment is not contingent on the fact that they are a student provided the record is used only in relation to the individual's employment.

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4. Records made or maintained by the Health and Wellness Center, if the records are used only for treatment of a student and made available only to those persons providing the treatment.
5. Alumni records which contain information about a student after they are no longer in attendance at the College and which do not relate to the person as a student.

Directory Information

The College has designated the following as directory information: name of student, address (both local and permanent), telephone number (both local and permanent), date of birth, dates of registered attendance, major field of study, degrees and awards received, participation in officially recognized activities and sports, weight and height of members of athletic teams, the most recent previous educational institution attended, and enrollment status (e.g. full-time/part-time).

The policy that such information may be disclosed by the College without prior written consent will be communicated to presently enrolled students through the publication of these guidelines in the Student Handbook, so that an individual student currently enrolled may file a written request with the Office of the Registrar by the end of the first week of classes in any given semester if they do not want directory information to be disclosed and/or do not want address information listed in the student directory.

Students who do not want directory information disclosed after they leave the College should make such a request in writing to the Registrar during their final term at the College.

Types, Locations, and Custodians of Education Records

1. Official academic records are maintained in the Office of the Registrar, 2nd floor, Pearsons Hall. They include admission applications and associated documentation; the completed forms of registration for each semester in residence; the records of grades and credits received in courses at this College or accepted here from another institution; and other documents directly relating to academic progress and status. Relevant records, including a student's application, transcripts from another institution, and test score reports, are shared with faculty or staff members serving as a student's academic advisor. Student folders are transferred to the Alumni Office, lower level MI, seven (7) years after graduation or withdrawal.
2. Disciplinary records are maintained under the authority of the Dean of Students and their designee(s), 2nd floor, Pearsons Hall. They include information about the investigation, adjudication and imposition of sanctions by the College against a student for breach of the College's written policies.
3. Financial records are maintained by the Accounting Office, 2nd floor, Pearsons Hall.
4. Financial aid application records, including tax forms, and work-study authorizations are maintained by the Financial Aid Office, 2nd floor, Pearsons Hall.

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5. Employment records contingent on student status, are maintained by the Office of Human Resources, Pearsons Hall, 3rd floor.
6. The student records maintained at the student's request by Career Works, 1st floor Morse Library, are described separately below.
7. Housing records are maintained by the Office of Residential Life, 1st floor, Porter Hall.
8. Miscellaneous records, such as copies of correspondence in offices not listed, may be made available for inspection and review.

Users of the Jenzabar Student Information System are considered custodians of those student records to which they have access. Records should not be accessed by the user unless a legitimate educational interest exists or some other provision of the policy authorizing release applies.

Career Development

Student information maintained in Career Works is assembled at the initiative of the student. The extent of disclosure to prospective employers, graduate schools, organizations awarding fellowships and the like shall be made clear to the student and the student shall agree to such disclosures prior to their release.

The student may make a specific waiver of access to evaluations solicited and/or received under condition of confidentiality, but the waiver must be made without pressure or coercion. Any evaluation received under such condition of confidentiality without the student's waiver of access or without the student's knowledge shall not be incorporated in the file but shall be returned to the sender.

Disclosure of Education Records

Beloit College will disclose non-directory information from a student's education records only with the written consent of the student, except that the records may be disclosed without consent when the disclosure is:

- To school officials who have a legitimate educational interest in the records.

A school official is:

- A person employed by the College in an administrative, supervisory, academic or research, or support staff position, including health or medical staff.
- A person elected to the Board of Trustees.
- A person employed by or under contract to the College to perform a special task, such as an attorney or auditor.
- A student serving on an official committee, such as a disciplinary or grievance committee, or who is assisting another school official in performing their tasks.

A school official has a legitimate educational interest if the official is:

- Performing a task that is specified in their position description or contract agreement.
- Performing a task related to a student's education.
- Performing a task related to the discipline of a student.

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- Providing a service or benefit relating to the student or student's family, such as health care, counseling, job placement, or financial aid.
- Maintaining the safety and security of the campus.

The determination as to whether or not a legitimate educational interest exists will be made by the custodian of the records on a case by case basis. When the custodian has any question regarding the request, the custodian should withhold disclosure unless the custodian obtains consent from the student, or the concurrence of a supervisor or other appropriate official that the record may be released. Disclosure may thus occur:

- To officials of another school, upon request, in which a student seeks or intends to enroll. The student shall receive notification of the disclosure unless the student initiated the disclosure.
- To certain officials of the Comptroller General of the United States, the U.S. Department of Education, and state and local educational authorities, in connection with certain state or federally supported education programs, and authorized representatives of the Attorney General for law enforcement purposes.
- To school officials or lending institutions, in connection with financial aid for which the student has applied or which the student has received, if the information is necessary for such purposes as to determine the eligibility, amount, or conditions of the financial aid, or to enforce the terms and conditions of the aid.
- To state and local officials or authorities to which such information is specifically required to be reported or disclosed pursuant to state statute adopted prior to November 19, 1974.
- To organizations conducting studies for, or on behalf of, the College, if such studies are conducted in such a manner as will not permit the personal identification of students and their parents by persons other than representatives of such organizations and such information will be destroyed when no longer needed for the purpose for which it is conducted.
- To accrediting organizations in order to carry out their accrediting functions.
- To comply with a judicial order or lawfully issued subpoena, provided the College makes a reasonable effort to notify the student of the order or subpoena in advance of compliance. Notification may be prohibited if the College receives a federal grand jury subpoena or any other subpoena which states that the student should not be notified.
- To an alleged victim of any crime of violence as that term is defined in Section 16 of Title 18, United States Code, or a non-forcible sex offense, the final results of any disciplinary proceeding conducted by an institution of postsecondary education against the alleged perpetrator of that crime or offense with respect to that crime or offense.
- To Veterans Administration Officials pursuant to 38 USC 3690 (c).
- To the court those records that are necessary to defend the institution when a student initiates legal action against the institution.

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- To medical, emergency, law enforcement, or other appropriate personnel in connection with an emergency, if the knowledge of such information is necessary to protect the health or safety of the student or others under terms described below.
- To the Attorney General or any other designated federal officer, who has obtained an ex parte judicial order for access to education records in the investigation of an act of domestic or international terrorism, under the terms defined in the "Patriot Act" of October 2001.

Disclosure of Education Records in an Emergency

The privacy of all records may be broken at a time of emergency defined in terms of the following considerations:

1. The seriousness of the threat to health or safety of the student and others.
2. The need for access to the record in meeting the emergency.
3. Whether the person requesting the records is in a position to deal with the emergency.
4. The extent to which time is of the essence in dealing with the emergency.

Under the provisions of FERPA, if any law enforcement agency requesting student education records states in writing that this information is necessary in order to "protect the health and safety of the student or other individual," the College will provide the requested information.

Notification of Emergency Contacts

The College will not release educational record information to anyone without student consent other than in the following cases: 1) If a student has a medical emergency, the College may contact the emergency contacts that the student has provided. 2) If a student exhibits behaviors that cause College officials to be concerned for the physical safety of the student or others, the College may contact the emergency contacts that the student has provided. 3) If a student has a serious or second offense of the alcohol policy and is under the age of 21, the College may contact the parents.

Students who wish to release educational record information to parents or others may do so by signing a release statement in the Dean of Students Office. Students may choose which portions of their educational record information they wish to have released.

Right of the College to Refuse Student Access to Records

Beloit College reserves the right to refuse to permit a student to inspect the following records:

1. Record of parents' financial status.
2. Any and all documents for which the student has waived their right of access, or which were placed in the file before January 1, 1975.
3. Records connected with an application to attend the College, if that application was denied, or accepted and the applicant never enrolled.
4. Those records which are excluded from the FERPA definition of education records.

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Student Access to Records

Students wishing to have access to their educational record information should contact the Registrar. Except as described above, access to a student's official academic record, disciplinary record, and financial aid record is guaranteed to themself only to reasonable regulation as to time, place, and supervision. A student may inspect and review their education records upon written request to the appropriate record custodian within the College. The request should identify as precisely as possible the record or records they wish to inspect. No documents or files may be altered or removed once a request has been filed. The record custodian or a designated College staff person will make the needed arrangements for access as promptly as possible and notify the student of the time and place where the records may be inspected. Access must be given in 45 days or less from the receipt of the request. When a record contains information about more than one student, the student may inspect and review only the records which relate to them.

Refusal to Provide Transcripts

Beloit College reserves the right to withhold transcripts if there is an unresolved disciplinary action against the student.

Transcripts/Records

Beloit College transcripts are available through the National Student Clearinghouse (NSC). Beloit College charges a fee per transcript and the National Student Clearinghouse adds additional charges based on the type of the request. (Please see the Registrar's website to order transcripts.)

Correction of Education Records

If, upon inspection and review of their record, the student believes that the record is inaccurate, misleading or otherwise in violation of their privacy rights, they may ask that the record be changed or may insert a statement in the file. Any disagreement should be resolved informally, if possible, through a meeting between the student and the person (or their designee) responsible for the maintenance of the record segment in question.

Only the Registrar, upon consultation with the Provost of the College, may authorize a correction in a record within the academic file of a student. Similar responsibility is exercised by the Dean of Students, the Director of Admissions, the Director of Financial Aid, and the Director of Human Resources for the records which are maintained under their authority.

Should the request for a change be denied, the student will be notified of the College's decision and advised of the right to a hearing to challenge the information believed to be inaccurate, misleading or in violation of the student's privacy rights. Upon the student's written request, the College will arrange for a hearing and notify the student, reasonably in advance, of the date, place, and time of the hearing. The hearing committee will be composed of three members of the Academic Performance Committee who are disinterested parties. The student shall be afforded a full and fair opportunity to present evidence relevant to the issues raised in the original request to amend the student's education records. The College will prepare a written decision based solely on the evidence presented at the hearing. The

decision will include a summary of the evidence presented and reasons for the decision. The decision of the hearing committee shall be final.

If the College decides that the information is inaccurate, misleading, or in violation of the student's right of privacy, it will amend the record and notify the student, in writing, that the record has been amended. If the College decides that the challenged information is not inaccurate, misleading or in violation of the student's right of privacy, it will notify the student of the right to place in the record a statement commenting on the challenged information and a statement setting forth reasons for disagreeing with the decision. Such a statement shall become a part of the information contained in the education record and will be disclosed with it.

Record Keeping Requirements

The appropriate records custodian will maintain a record of requests for and/or disclosures of information from a student's education records. The record will indicate the name of the party making the request and what records, if any, were received, the legitimate interest in the records, any additional party to whom it may be re-disclosed, and the legitimate interest the additional party had in requesting or obtaining the information. The record may be reviewed by the student. This record keeping is not required if the request was from, or the disclosure was to:

A. the student;
B. a school official determined to have a legitimate educational interest;
C. a party with written consent from the student;
D. a party seeking directory information or;
E. a Federal grand jury or law enforcement agency pursuant to a subpoena that by its terms requires nondisclosure.

Information About This Policy

The Office of the Registrar will maintain general information concerning the federal law and the College's policy as contained in these guidelines. It will make available a file containing the Act and the regulations of the Secretary of the Department of Education and will refer students desirous of examining their records to the office of the appropriate administrative official.

Students or parents who have questions about this policy may contact the Dean of Students, Associate Dean of Students or the Registrar.

B. Alcohol, Smoking/Vaping, and Illegal Substances

1. Alcohol

Alcohol Use On-Campus

Beloit College is committed to maintaining a living, learning, and working environment free from alcohol abuse and its unlawful use. Beloit College does not promote the use of alcohol nor condone the abuse of alcohol. As an educational institution, we place a great deal of responsibility

and trust in students to make decisions about drinking alcohol that are in their best interest of safety, health, social interactions and meeting academic expectations. Any sort of peer pressure to use alcohol violates the College's expectation, as does irresponsible use of alcohol, whether or not the student is of legal age to drink.

Beloit defines responsible alcohol use as:

- maintaining control and drinking no more than one average size drink per hour;
- not using alcohol as the focus of the event;
- paying careful attention to what you are drinking and being aware of how it is affecting your body and behavior.

In order to ensure a safe and positive environment for all students, irresponsible behavior involving alcohol should be confronted by members of the College community, including students, faculty, and staff. Bystanders are expected to intervene; watching out for each other has been common practice and must continue. Students should seek out help when needed, support others, and challenge behaviors that might lead to unwanted outcomes. Students are encouraged to enlist the aid of Security and Residence Life staff to help in confronting irresponsible use of alcohol.

All students are required to show proof of age (Age 21 minimum) when purchasing, accepting alcoholic beverages on campus, or exhibiting signs of public intoxication. Students who fail to provide this information or use false information violate the law and/or College policy, and are liable for disciplinary action. All community members are expected to respect the rights of those individuals who choose not to use alcoholic beverages.

The unlawful possession, use, distribution, manufacture, or dispensing of alcohol and illicit drugs by students or employees on College property or as a part of College activities is prohibited. Individuals who violate local, state or federal laws concerning the unlawful possession, use, distribution, manufacture, or dispensing of alcohol and illicit drugs are subject to arrest and/or College disciplinary action, which may result in sanctions up to and including required substance abuse treatment and/or suspension from the College.

Good Samaritan

All members of the campus community are encouraged to immediately seek medical or security assistance for students whose health and well-being may be at risk due to the over-consumption of alcohol and/or drugs. Taking responsibility for helping a student in need will always be viewed positively in any post-incident follow-up, including those incidents where the "Good Samaritan" and/or the person needing emergency assistance may have violated College policies.

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Regulations (specific to alcohol)

More explicitly, the following behaviors violate College policy, whether or not a student is of legal age to consume alcohol, as they are examples of irresponsible, even dangerous or abusive, alcohol use.

- Using alcoholic beverages as the primary focus of any activity, including participating in drinking games. Kegs are not permitted.
- Pressuring others to drink, as in exerting direct or nonverbal pressure to consume alcohol or additional alcohol, or alcohol along with other drugs.
- Drinking hard liquor directly from the bottle (non-single serving size), or multiple shots.
- Mixing alcohol with energy drinks.
- Providing alcohol to minors, especially if those minors are not college students at Beloit.
- Consuming or being under the influence of alcohol in academic buildings or any public, disruptive intoxication.
- Driving on or off campus while intoxicated.
- Displaying violent, inappropriate or other kinds of offensive behavior (including but not limited to, groping, harassing, and physical injury). Intoxication does not absolve the drinker of responsibility for their actions.
- Repeated instances of alcohol consumption interfering with academic performance or interpersonal/social interactions.
- Being severely intoxicated, indicated by actions or behaviors such as but not limited to:
    - Stumbling while walking or falling down
    - Difficulty standing up, disoriented
    - Lack of awareness about surroundings
    - Inability to state or recall basic personal information such as name, address, telephone number, birthdate, hometown, etc.
    - Slurring of speech, loud speech, rambling train of thought
    - Belligerent/aggressive behavior
    - Vomiting
    - Unconsciousness
    - Difficulty remembering, loss of memory about recent events or actions/behaviors of self and others during or prior to an event
- Drinks with a high alcohol concentration exceed 50% alcohol or more (100 proof) are not allowed, including alcohol lacking color and odor, pure grain alcohol (e.g. Everclear), distilled liquor, or other mixed drinks with a high concentration of alcohol. These drinks can be more potent than expected.
- Bringing alcohol to events that are under the jurisdiction of the College's liquor license, is prohibited. Also, walking away from the event with alcohol provided (beyond the borders of the event) is not allowed.

Discipline and Sanctions

Students are to make decisions about alcohol use with care and concern for oneself and those around them. As in any community, there may be those whose decisions about alcohol are

problematic within the community or violate state laws. As a community that encourages bystander intervention, students are encouraged to address their peers' behaviors and encourage them to seek help to prevent them from harming themselves or the community. Student Life staff are on hand to get students to the kind of help that they need.

The normal judicial processes, described later in this Student Handbook, will be used to respond to violations of the alcohol policy. Whether through Restorative Justice or the traditional processes, the full range of sanctions (and more than one at a time) are possible, including a discussion with parents (for which there is an exemption to the law that limits communication with parents - FERPA). The usual sanctions associated with alcohol policy violations include but are not limited to:

- Alcohol/Drug screening
- Drug testing
- Required counseling
- Community service with Facilities
- Conversations on responsible drinking, social norming, etc.
- Apology letters
- Writing an educational essay about alcohol
- Brainstorming a list of alternative behaviors
- Participating in alcohol education class
- Notification of parents
- Notification of faculty advisor
- Restriction on participation in non-class activities
- Probation
- Suspension
- Agreed break from drinking (with penalties if drinking again)
- Review of age requirements and sanction for underage consumption
- Change of residence room/disciplinary transfer

Other violations of College policy where alcohol is one element of the incident will likely result in more serious disciplinary actions. Violation of the Alcohol Policy, coupled with other policy violations, may be treated as two separate offenses, with appropriate sanctions for each violation.

Alcohol in Academic Buildings

Alcoholic beverages may not be served or consumed in academic areas unless prior approval is received from the Department/Division Chair or Provost.

Parties and Social Gatherings (Student focused)

For any social gathering, there must be at least one unintoxicated person responsible for the gathering, the facility and the guests. In a student room, this is normally the resident of the room. In a planned party, it is often the person planning who is responsible for the event.

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Host Responsibilities (see also Social Host Policy):

1. **Registering your party**
    a. Planned parties, private parties, or social gatherings must be registered in the event that they have an impact on the larger community and to make sure that they are aware of and compliant with the party host policies.
    b. A designee of the College (usually in residence Life or the Powerhouse) must be provided with the details of the event, and the names of all hosts (students responsible for the event) at least 48 hours prior to the event. If the event is a larger gathering of students, such as in a special interest house, Greek House, or other, the College designated official must be provided with a security list (sober students who will act as supervisors of peer behavior) and IDs must be checked at the door.
    c. If the event takes place in a residential area, the host is obligated to consult the RA, neighbors, or other building residents that may be affected, to obtain permission to host a social gathering in their room or lounge.
    d. No high school aged students or younger are allowed at social gatherings and large-scale advertising (social media) is not permitted, given the limitations of the size of the spaces for gatherings.
    e. All large social events must be approved by the designated college official prior to the event (48 hours) if any of the following is true about the event:
        i. It is advertised (posters, public announcements, written, verbal or any form of social media invitation constitute some of the usual forms of advertising);
        ii. It is funded (entirely or partially) by money obtained from the Student Activity Fee, Student Life programming or departments or it occurs in a public area (residence hall lounge, hallway, campus meeting space, outside area or Greek house when non-members are present).
    f. Large all-campus events or parties may not occur during New Student Days and days when there are classes the following day. No parties, small or large, are to occur during Finals Weeks (defined as starting at 2 am following the last day of classes and going through the last hour of the last final).
    g. Advertising implicitly or explicitly that alcohol will be present at the event is prohibited.

2. **Additional regulations regarding parties or social gatherings (registered or not):**
    a. Hosts may not serve alcohol as a feature of any party or social gathering. Hosts are obligated to follow all state laws concerning the distribution of alcoholic beverages in their rooms, apartments or personal gathering spaces.
    b. Alcohol cannot be sold and donations cannot be exchanged for alcohol. Selling tickets or cups, charging admission fees, taking up a collection or using any direct or indirect means of collecting money from persons attending the event is prohibited.

c. Hosts assume responsibility for the behavior and safety of their guests.
d. Hosts must supply at least one student trained in bystander intervention for the entire duration of the event.

For all College sponsored events where alcohol is provided, the College reserves the right to limit the type and/or amount of alcohol (or the amount of alcohol served, if applicable) at the event.

Licensed Facilities

- Bon Appetit
  Bon Appetit (food vendor for Beloit College) maintains a liquor license with the City of Beloit and is subject to the same rules and regulations as any establishment that serves alcohol. By law, absolutely no alcohol can be brought into the building or removed from it, except through the authority of the liquor agent and staff. Violations of this policy risk not only arrest, but also revocation of the College's license. Groups wishing to sponsor an event with alcohol need to meet with the Bon Appetit director to arrange for the sale, service, and purchase of alcoholic beverages.

- Coughy Haus (C-Haus) Additional Regulations
  The Coughy Haus maintains a Class B Beer license with the City of Beloit and is subject to the same rules and regulations as any other bar within the City of Beloit and the State of Wisconsin. The law states that absolutely no alcohol may be brought into the building or removed from it, except by licensed distributors. Individuals who violate age restrictions, use false IDs, provide alcohol to those under 21 years of age, or are intoxicated while on the premises may be ticketed by the Beloit Police. Such violations may also result in the revocation of the C-Haus license to serve alcoholic beverages. The premises are regularly inspected by government agencies such as the Health, Fire, and Police Departments. Police officers have the authority to enter the Coughy Haus at any time without warning and may, at their discretion, check IDs and open containers on the premises, including the porch.

  Coughy Haus is reserved for student use and occasionally the registered guest of a student. It is not a public bar open to the community at large. In order to minimize risks and ensure the focus is on students whose activity fees contribute to the operation, access by nonstudents is limited.

Wisconsin State Laws - Alcohol

The Wisconsin drinking age is 21 years of age. Underage drinking violates College policy, since Beloit College, its students, faculty and staff are subject to all laws of the State of Wisconsin regarding possession, consumption, sale and distribution of alcoholic beverages. Students are to be aware that violations of the Wisconsin State Law can carry substantial fine and privilege consequences, in addition to College sanctions. Examples of alcohol-related penalties under Wisconsin State Law can be found at: https://docs.legis.wisconsin.gov/statutes/statutes/125

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Operation While Intoxicated:
https://wisconsindot.gov/documents/safety/education/drunk-drv/owi-penchrt.pdf

Notes: Consuming intoxicants and driving includes boating, snowmobiling, ATVs, etc. Fines and jail time can both be included in your penalty. Refusal to take an evidentiary test of blood, urine, or breath results in additional revocation of operating privileges.

2. Smoking/Vaping

This policy refers to legal substances. **The recreational usage of Cannabis (Marijuana) is illegal in Wisconsin** and is addressed under the Drug Policy (next policy) regarding illegal substances. Students must be 21 years of age to purchase, possess or use tobacco products.

Beloit College adheres to the smoking ordinances of the City of Beloit (see below), Wisconsin, and US Federal laws. Within these limits, the College seeks to provide a healthy environment and satisfactory level of comfort to non-smokers while minimizing the discomfort of those who smoke. The following provisions support this general policy:

- Smoking and vaping are not allowed in any campus building including academic buildings, residence halls, museums and buildings open to the public. This includes, but is not limited to, Pearsons Hall, Coughy Haus, Powerhouse, Greek or special interest houses, and all restrooms.
- Smoking and vaping are not permitted within fifteen feet of doors and windows of all College buildings (regardless of the weather), with the exception of specifically designated smoking areas. This limit will be marked in high traffic areas.
- No smoking or vaping is allowed on any sidewalk nor on the bridge to/from the Powerhouse. Smokers should be aware of their surroundings and be respectful of others' rights to clean air, particularly on walking paths during congested times and in front of Coughy Haus, the library, Pearsons Hall and any event spaces such as Eaton Chapel, Hendricks, and the Neese Theater and for any large events, such as outdoor music gatherings and commencement.
- Moving smoking receptacles is prohibited by anyone other than designated facilities staff.
- Smoking or vaping is not permitted in the residence halls in any area. This includes, but is not limited to: (1) any living environment, including individual or shared student rooms; (2) public areas, including hallways, lounges, bathrooms and kitchens. Students who cover their smoke detectors will be fined for tampering with them (see Fines).
- All-campus events should normally be held in areas where smoking is not permitted.
- As a courtesy to the community and facilities staff, smoking debris is to be placed in the smoking receptacles.
- The above policy applies to all users of Beloit College facilities.
- There is a designated smoking area in the gazebo outside of Peet Hall unless a large event is taking place there.

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When in doubt, smokers should accommodate the preferences of non-smokers to a reasonable extent. All members of a civil community are to have mutual respect for one another while keeping in mind each individual's ability to negotiate the situation.

Beloit City Ordinance 16.08, section 6 states: *"*Smoking *shall be prohibited in all enclosed areas of public places and places of employment within the City of Beloit, including, but not limited to, the following places: … 9. Educational facilities, including all premises owned, rented by or under the control of a school board… A person who* smokes *in an area where* smoking *is prohibited by this section shall, upon conviction for the violation, be subject to a penalty as provided in §25.04 of this Municipal Code."*

3. Illegal Substances (Drugs)

Beloit College is a private, coeducational, residential institution of higher education committed to providing a sound liberal arts education that promotes lifelong learning and personal growth. The College is committed to maintaining an environment of learning, living and working that is free of illicit drugs and the unlawful use or abuse of alcohol. The unlawful possession, use, distribution, manufacture, or dispensing of alcohol or illicit drugs by students or employees on College property or as part of College activities is prohibited. Individuals who violate College policies or local, state or federal laws concerning the unlawful possession, use, distribution, manufacture, or dispensing of alcohol and illicit drugs are subject to arrest and/or disciplinary action, which may result in sanctions up to and including required treatment and/or expulsion from the College.

The illegal possession, use, provision, manufacture, or sale of illicit drugs is not allowed on the premises of or by members of the Beloit College community. The sale or transfer of prescription and look-alike drugs is also a violation of College policy. Prescription drugs may not be sold or provided to others. If there is disagreement about the substance, Security is authorized to call the police for help in determining the nature of the substance.

Violation of the College's Drug Policy may result in the following disciplinary actions: expulsion, suspension and/or the turning of evidence over to local authorities for criminal prosecution. The College's initial response to reported or observed violations is counseling, in conjunction with other disciplinary actions.

Students who may be having difficulty with alcohol or drugs are encouraged to seek appropriate counseling. The College Health and Wellness Center (Beloit Health System) counselor(s) and Student Life staff members are available resources on campus. Conferences with the counselors are privileged, subject to the ethical standards for counselors and HIPAA (The Health Insurance Portability and Accountability Act). Other resources are required to maintain the privacy rules established by FERPA (Family Educational Rights and Privacy Act).

The College will enforce the following regulations, regardless of the status of court decisions:

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Prohibited actions:

- Sharing, selling, producing, or reselling any illicit (including prescription) drugs.
- Possession of ingredients (in sufficient quantity) used to manufacture drugs.
- Engaging with external sources to purchase illicit drugs for personal consumption, distribution, or resale.
- Inviting off-campus drug dealers to campus.
- Direct or indirect involvement with illegal possession, use, or sharing of any illicit drug.
- Possession of drug paraphernalia (for example hookahs, non-tobacco pipes) are a violation of city ordinance and College policy. Drug paraphernalia are not allowed on campus; if possession of such comes to the attention of staff or Security, such paraphernalia will be confiscated and not returned.
- Possession or use of "Date Rape Drugs" or drugs intended for or used to incapacitate others (often for the purpose of sexual assault), such as Rohypnol (Roofies), GHB, or Ketamine.

  For student information, the list of prohibited substances includes, but is not limited to:

  amphetamines, barbiturates, cannabis (marijuana, hashish), cocaine, depressants, DMT, ecstasy, GHB, hallucinogens, heroin, inhalants, Ketamine, LSD compounds, mescaline, methamphetamine, methaqualone, narcotics, opiates, PCP, tranquilizers, psilocybin mushrooms, Rohypnol (Roofies), steroids, stimulants, and other compounds which are illegal except when under a doctor's prescription; alcohol, for students under age 21.

Sanctions/Consequences

Adjudication of violations of the Drug Policy typically follow the College's Judicial Hearing processes where the full-range of potential sanctions may be possible for any offense.

Any violation of College policy where drugs are an element of the incident may result in more serious disciplinary actions. Violation of the Drug and Alcohol Policy coupled with other violations may be treated as separate offenses with appropriate sanctions for each violation.

Resources

We encourage all students to educate themselves about drugs, their effects, and the legal issues involved in their possession and/or use. The College library, the Health and Wellness Center, and Student Life staff members can provide further information and resources. This information is provided to comply with the Drug Free Schools Act requirement for information and education.

Resources For Drug and Alcohol Concerns -
Campus Area

- Health and Wellness Center (Beloit Health System)- 608-229-7780
- Counselor(s) - 2nd floor, in the Health and Wellness Center, south side of the Powerhouse
- Nurse - 2nd Floor, south side of the Powerhouse

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Greater Beloit

- **Narcotic Abuse Support**
  - RRAGS: Rock River Area Group Services - https://rockriverna.org/
    Provides an updated meeting schedule every season, hotline number, and resources online.
    24 Hour Hotline - 1-815-964-5959
    Closest meetings to Beloit currently:
    - Rockford, IL groups: 401, Freedom to Grow, The Group, and West Side Family
    - Roscoe, IL group: Roscoe Conscious Contact

  - Narcotics Anonymous/Badgerland Area - https://badgerlandna.org/
    Provides weekly schedules for meetings, including day-of schedules. All over Madison and surrounding areas and does occasionally have listings in Beloit.
    24-Hour Hotline - 1-800-240-0276

- **Alcohol Abuse Support**
  - District 70 AA: Alcoholics Anonymous of Boone County and Winnebago County - https://district70aa.org/
    Provides both daily and specific date schedules for meetings around the counties.
    Closest Cities to Beloit: Rockford, Loves Park, Roscoe, and Machesney Park.
    AA Hotline - 1-815-968-0333

  - Madison Area Intergroup Central Office - https://aamadisonwi.org/
    Provides a meeting and schedule directory for every day of the week.
    Also connected to Area 75, which covers strictly southern Wisconsin and provides a link to their website at https://area75.org/page/home.
    24-Hour Hotline - 1-608-222-8989

- **Substance Abuse (general)**
  - Rock County Public Health - Credible Mind: https://rockcounty.crediblemind.com/topics/addiction?query=
    24-Hour Crisis Hotline - 1-608-757-5025
  - Al-Anon Family and Teen Groups – Support group for friends and family of those struggling with addiction.
    Rockford - (815) 399-0456
  - Mercy Hospital Janesville – Janesville - (608) 756-6000
  - Tellurian Behavioral Health – Madison - (608) 222-7311

National Hotlines and Resources

- Drug Abuse Information and Referral – (800) 662-4357 - https://findtreatment.gov/
- Drug Testing - Occupational Health & Wellness - (608) 364-4666

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- Substance Abuse and Mental Health Services Administration (SAMHSA) - Call or text 988 or chat 988lifeline.org
- For more resources: https://www.usa.gov/substance-abuse

Wisconsin (Illegal) Drug Laws

- Federal Law supersedes WI State Law, which supersedes WI Local Law.
- **Marijuana is still illegal under Wisconsin Law.** It carries a Misdemeanor offense of up to a $1,000 fine and/or 180 days in jail. Rock County voted to lower fines for possession of cannabis for 28 grams or less to $1 in 2020, but it will still show up on one's criminal record. Fines are arbitrarily determined by whichever agency responds.
- Penalties can result in fines and/or jail time and quickly worsen on 2nd offense.
- If an individual's involvement with drugs extends across multiple states (such as the Wisconsin/Illinois border) federal laws may also apply.
- Information on the Drug Offense, Statute and Penalties in Wisconsin can be found here: https://docs.legis.wisconsin.gov/statutes/statutes/961

To meet the timely needs of the students at Beloit College and evaluate the policies concerning substance abuse, the College's drug and alcohol policies will be reviewed every two years by the policy committee of BSG and/or a biennial review team composed of students, staff, and faculty.

C. Policies Regarding Bias, Discrimination, Harassment, Hazing and Violence Against Others

1. Anti-Discrimination

It is the policy of Beloit College, in administration of its educational policies and programs, financial aid program, employment policies, or other College-administered activities, not to discriminate against students, applicants for admission, or employees on the basis of sex, race, color, religion, national origin, ancestry, age, sexual orientation, or physical or mental disabilities unrelated to institutional jobs, programs, or activities. Beloit College complies fully with the federal statutes found in Title IX of the Education Amendments Act of 1972.

2. Anti-Hate Acts & Bias Incident Policy

The aim of this policy is to provide a means by which students, faculty, and staff members who experience hate or bias (both defined below) may have their concerns heard and receive support, conflicts may be mediated, and, when called for, effective community responses forged.

This policy recognizes that thought and expression in the context of, and in service to, our learning mission is protected, while offering a mechanism for responding to the hatred and bias that work against it. These freedoms necessarily entail a potential for encountering ideas and speech that one finds controversial and even objectionable, insulting, or offensive. Acts of hate and bias -- whether or not intended -- threaten to undermine individuals' or groups' engagement in the free

exchange of ideas. Providing clear means by which suspected hate acts and bias incidents can be reported aligns with Beloit College's commitment to freedom of thought and expression as central to our academic freedom and to our teaching and learning mission.

Beloit College strongly encourages anyone – student, faculty, or staff -- who is subject to, or witnesses, any hate or bias incident occurring on campus, at College-sponsored events, or during activities occurring off campus involving Beloit students, faculty, staff, or their guests to respond immediately, when possible, and to report the incident. After receiving the report, responders will gather information and devise appropriate strategies for communicating with, educating, and mediating between the involved parties and, when applicable, communicate with the larger campus community. Any acts suspected of violating existing College policies will be referred to the appropriate disciplinary bodies.

Any retaliation against a person who reports an alleged hate act or bias incident or against a person who has been found responsible for such an incident is strictly prohibited and subject to disciplinary action. A knowingly false accusation of a hate act or bias incident may also be subject to disciplinary action. Fact-finding regarding a reported hate act or bias incident does not itself constitute harassment.

A. Definitions

i. Hate Crimes

Beloit College will report to the police and cooperate with them in investigating any act constituting a hate crime, as defined by Wisconsin statute. Those who commit hate crimes will also be subject to discipline by the College in accordance with the anti-hate acts policy outlined below.

ii. Hate Acts

At Beloit College, a hate act involves (1) violence, threat of violence, actions that are likely to incite violence, or other acts violating College policy that are (2) directed at persons or groups who are marginalized because of their race, color, religion, sexual orientation, ability status, ethnicity/national origin, physical characteristics, sex, gender, gender identity, gender expression, and/or any other legally protected classification, and (3) have the purpose or reasonably foreseeable effect of harassing, dehumanizing, or intimidating those persons or groups.

Examples of hate acts include but are not limited to physical assault, harassment, stalking, cyber stalking, vandalism, social media posts making threatening or harassing statements, or other damage to property with the purpose or reasonably foreseeable effect of harassing, dehumanizing, or intimidating those persons or groups stipulated in (2) above.

Investigations of hate acts require due process according to the College's policies, including adherence to AAUP guidelines related to academic freedom. Sanctions will depend on the

severity of the action, the impact on the targeted individual/group, intentionality of the action, and on the overall context in which the action occurred. For students, the most likely sanction for violation of this policy will be suspension or expulsion, as determined by the normal disciplinary process. Sanctions for staff may range from reprimands or training to immediate termination of employment, depending on the severity of the incident and taking into account any previous employment concerns. Sanctions for faculty may range from reprimands or training to termination of employment, depending on the severity of the incident and taking into account any previous employment concerns.

If all parties (including the adjudicator) are willing, a restorative justice approach may be used in lieu of other disciplinary measures.

iii. Bias Incidents

A bias incident is a verbal, written, or physical act of intolerance or prejudice that does not involve violence or other conduct violating College policy, but which threatens, intimidates, or marginalizes individuals or groups because of their actual or perceived race, color, religion, sexual orientation, ability status, ethnicity/national origin, physical characteristics, sex, gender, gender identity, gender expression, and/or any other legally protected classification, and lacks a reasonable relationship to an educational, political, and/or artistic end.

Examples of bias incidents include but are not limited to homophobic or sexist jokes, racist epithets, religious slurs, offensive graffiti, chalking, flyers or posters, or demeaning remarks on social media. Bias incidents may or may not be intended to cause harm.

Responses to bias incidents may include educational opportunities or Restorative Justice approaches for the individuals and groups involved, as well as for members of the campus community as a whole when reporting patterns suggest broader issues that move beyond the immediate incident. This policy therefore seeks to enhance understanding, provide a forum for expression of multiple viewpoints, mediate conflict, and pursue restoration. Reports will only be referred to a disciplinary body if the behavior violates other College policies.

B. Reporting Hate Crimes, Hate Acts, and Bias at Beloit College

Beloit College students, faculty, or staff may report a hate act or bias incident in any or all of the following ways:

1. Calling Beloit College Security and/or reporting incidents directly to the Beloit Police (particularly in cases of Hate Crimes or Acts).

2. Reporting directly to one of the lead hate and bias responders (Associate Dean of Student Success, Equity and Community and one faculty representative, both of whom have received training in Restorative Justice).
3. Reporting via a web form on the College's website, this includes the option to report anonymously. (https://www.beloit.edu/live/blurbs/680-anti-hate-acts-and-bias-incident-policy)

C. Response to Hate Crimes, Hate Acts, and Bias Incidents

Responders are responsible for reviewing all reports, learning as much as they can about the situation, and for developing an appropriate response, which may include a restorative justice approach. This will involve listening and talking with those involved in the situation and assessing whether a hate crime or act or bias incident has occurred.

In cases of bias, the lead responders will communicate with the involved parties with the aim of developing a shared understanding of what occurred and its impact and restoring a successful learning or working environment.

When they conclude a hate crime or act has occurred, the lead responders will convene a response team that may include the Dean of Students, the Provost, the President's Chief of Staff, and the Director of Communications and Marketing or their representatives, and others, as deemed appropriate by the rest of the team. This response team will determine the appropriate pathway for addressing the hate crime or act. This may include community emails, outreach and support efforts, town hall meetings, class discussions, and/or floor meetings. The response team will refer disciplinary matters to the appropriate College authority and share the information they have gathered in their own investigation. When a hate crime has been committed, the response team will work with the police and share information they have gathered. The scale and scope of response to hate and bias incidents, and the timeline in which that response occurs, will depend on the following factors:

1. Severity, scale, and scope of the incident and its impact
2. Pace at which information can be gathered; and whether or not that information can be shared publicly
3. Effects on those targeted

Each semester, the lead responders, Dean of Students, and Provost will assess the handling of reported cases, seeking input from the affected parties, and the lead responders will provide to senior staff and to the campus community a summary report regarding the number of reported hate acts and bias incidents, their nature, and resolution. Members of senior staff shall review and analyze these reports and, in consultation with others, determine possible interventions directed toward prevention.

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Bias lead responders or any response team they convene are not disciplinary bodies. Hate crimes/hate act responses/responders are disciplinary. Disciplinary action involving any individual or group will be handled by other established bodies of the College, such as Student Life staff and Judicial Board in the case of students, Human Resources in the case of staff, and in the case of faculty, the Provost or Faculty Status and Performance Committee in accordance with guidelines established by the American Association of University Professors (AAUP) related to academic freedom and due process. Outside law enforcement agencies may also become involved, as appropriate.

Responsibilities of all responders include:

1. Maintaining appropriate confidentiality
2. Treating all parties with respect and sensitivity
3. Holding Beloit's mission and academic freedom at the center of their work
4. Providing affected parties with information about support services on campus
5. Providing to all involved parties:
    - Clear information regarding the process that will be followed
    - An explanation of the timetable involved
    - An explanation regarding the resolution of the reported incident

3. Personal Harassment

A. Statement

Beloit College seeks to maintain the campus as a place of work and study for faculty, staff, and students that fosters an atmosphere conducive to the building of community and personal growth. Personal harassment of students or employees subverts this goal of the College and is against College policy.

B. Definition

Personal harassment ("Harassment") is verbal or physical conduct, including actions motivated by bias, that denigrates or shows hostility or aversion toward an individual. Harassment may include behavior that targets an individual because of race, color, religion, sex, perceived, or actual sexual orientation, gender identity or expression, national origin, age, disability, pregnancy, marital or family status, military or veteran status, citizenship or any other characteristic protected by law. Harassment also includes any kind of nonverbal, verbal, or physical conduct involving either intimidation or promise of reward where:

i. such conduct has the purpose or effect of substantially interfering with an individual's academic or professional performance or creating an intimidating, hostile, or demeaning education or employment environment; or

ii. submission to such conduct is made either explicitly or implicitly a term or condition of an individual's employment or academic advancement; or
iii. submission to or rejection of such conduct by an individual is used as the basis for employment decisions or academic decisions affecting that individual.

While harassment may be indicated by frequent or repetitive acts, it is possible that one severe act could constitute a violation or the harassment policy. Incidents of harassment can occur whether or not the act or actions were intended to harass; the effect of the conduct will determine whether harassment occurred. The effect of the conduct in question will be evaluated from the perspective of a reasonable person in the alleged victim's position.

Any retaliation against a person who reports alleged harassment, or against a witness or other participant in an investigation, is strictly prohibited and will be considered a violation of this policy. It is also a violation of this policy to make a false accusation of harassment or knowingly provide false information pertaining to a harassment complaint.

An administrative investigation of assault, misconduct, or harassment does not itself constitute harassment.

C. Reporting Options

i. Students
Students who believe they have been the subject of harassment should notify one of the following: Dean of Students staff or Residence Life professional staff.

ii. Faculty or Staff
Faculty or staff members who believe they have been the subject of harassment should notify the Director of Human Resources.

Individuals who feel threatened or have concerns about their safety because of harassment should call Campus Security. If there is concern of immediate danger, contact the police.

D. Procedures

Individuals who believe they have been harassed by another member of the College community should follow the procedures stated below.

i. Students Harassed by Other Students – please see Judicial/Hearing System.

ii. Students Harassed by Faculty or Staff - Informal Complaints
Current Beloit College students who believe that they have been a victim of harassment by a current faculty or staff member may speak informally with the Director of Human Resources, who will offer preliminary consultation and may draw upon other support and

counseling services to assist the complainant. Once an initial complaint has been filed, the Director will make a determination about whether to continue the investigation. With the consent of both parties, the Director may attempt to mediate the complaint. If the complainant does not agree with the resolution of an informal complaint, the individual has the opportunity to file a formal complaint. The Director will keep records of informal complaints and their dispositions. Such records will remain confidential to the extent possible consistent with adequate investigation and appropriate corrective action.

iii. Students Harassed by Faculty or Staff - Formal Complaints

Beloit College faculty, staff and students may file a formal complaint if they believe they have been the victim of harassment by a current faculty or staff member. This formal option is initiated when the complainant identifies the person against whom the complaint is made and lodges a signed, written complaint. Once a formal complaint has been filed, the committee may continue its investigation and resolution even if the complainant wishes to withdraw the complaint.

A formal complaint may be filed with any member of the committee or with the Director of Human Resources, the Provost, Vice Presidents, Dean of Students, or President. A copy of the complaint will be circulated to each of the committee members as well as the senior supervisor of the accused. The College may at any time take action necessary to protect the safety of the complainant or any other persons.

Upon receipt of the complaint, the committee will begin an investigation. The Director of Human Resources will undertake the investigation, and present a report to the committee members. The committee will make its decision by gathering any further information it deems necessary, which may include review of documents and/or meetings with the complainant, the accused or the witnesses. At any time in this process, the complainant and the accused may be accompanied by an advisor from the College's current faculty, staff or students; however, the advisor may not speak on behalf of either party. During the investigation, the committee will provide a copy of the complaint to the accused, and such other information as the committee deems appropriate, and notify the accused of their rights. The investigation and determination by the committee typically is conducted within forty-five (45) working days. Depending on the complexity of facts, the number of witnesses, witness availability, and other factors, the committee may extend this period.

Once the investigation is concluded, the committee may:

i. determine that no case of substance exists and decide to take no action on the complaint;
ii. attempt mediation or recommend mediation by an individual who is not a member of the committee;
iii. develop a written recommendation for further action that will be forwarded to two senior staff members, one being the senior supervisor of the accused. In

the case of a complaint by or against a senior staff member, the committee's report will be forwarded to the President. In the case of a complaint by or against the President, the report will be sent to the chair of the board of trustees. Recommended actions may include, but are not limited to an oral or written reprimand, a written warning, dismissal of a non-tenured employee, or a hearing for the termination for cause of a tenured faculty member.

Action on the committee's recommendation will be taken by the individuals to whom the recommendation was forwarded. They will reach a decision and communicate it in writing to the accused, the complainant, and the chair of the committee. The complainant or accused may appeal the decision to the President, or, if the accused is the President, to the board of trustees. Normally, the President or board of trustees will make a determination on any appeal within thirty (30) working days. Depending on the complexity of the matter and other factors, this time period may be extended. The decision of the President or the board of trustees is final.

E. Party Rights During the Hearing Process

During the investigation and hearing process, the parties have the following rights:

- **Presumption of Innocence.** The respondent is presumed not responsible for the alleged conduct until a determination regarding responsibility is made after the hearing process.
- **Discussing Allegations**. The College cannot restrict the ability of either party to discuss the allegations under investigation or to gather and present relevant evidence.
- **No Retaliation.** The College prohibits intimidation, threats, coercion, or discrimination against any individual for the purpose of interfering with any right or privilege during an investigation and hearing process. This includes individuals that have made a report or complaint, testified, assisted, or participated or refused to participate in any manner in an investigation, proceeding, or hearing.
    - Intimidation, threats, coercion, or discrimination for the purpose of interfering with any right or privilege constitutes retaliation.
- **Advisors:** During the grievance process, all parties have the right to an advisor of their choice, who may be, but is not required to be, an attorney. The College may not limit the choice or presence of a party's advisor in any meeting or grievance proceeding. However, an advisor's active participation during the grievance process is limited to conducting cross-examination at the live hearing.
- **Equal Opportunity to Present Witnesses and Other Evidence.** The parties have an equal opportunity to present fact and expert witnesses and other evidence, and other inculpatory and exculpatory evidence. However, character witnesses are normally excluded. The parties also have an equal opportunity to inspect and review any evidence obtained as part of the investigation including evidence upon which the College does not intend to rely in reaching a determination regarding responsibility.

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- **Objective Evaluation of All Relevant Evidence.** The parties have a right to an objective evaluation of all relevant evidence, including both inculpatory and exculpatory evidence.
- **Privacy Protections.** The College cannot access, consider, disclose, or otherwise use a party's records that are made or maintained by a physician, psychiatrist, psychologist, counselor, or other recognized professional unless the school has obtained the party's voluntary, written consent.
- **Privileged Information.** The grievance process may not require, allow, rely upon, or otherwise use questions or evidence that constitute, or seek disclosure of, information protected under a legally recognized privilege (unless the privilege has been waived). Privileges include, but are not limited to: attorney-client privilege, marital privilege, religious advisor privilege, physician-patient privilege, and psychologist-patient privilege and therapist-patient privilege..
- **Credibility Determination.** Credibility determinations may not be based on a person's status as a complainant, respondent, or witness. The College cannot give credence to a person's statements simply because of the position he/she holds.
- **No Conflict of Interest or Bias.** Any individual designated by the College as an investigator, decision-maker, reviewer, or any person designated by the College to facilitate an informal resolution process, may not have a conflict of interest or bias for or against complainants or respondents generally or an individual complainant or respondent.
- **Restorative Justice -** If all parties agree (including the adjudicator), a Restorative Justice approach may be used. In the Restorative Justice process, the parties have a right to persons trained in Restorative Justice to facilitate the process. During the process the Facilitator will indicate which of the above rights are relevant to the proceedings.

At any point during its investigation and any deliberations, the committee, President, and Board of Trustees may consult with the College's legal counsel. Records of formal complaints will be maintained by the College. All such records shall remain confidential to the extent possible consistent with adequate investigation and appropriate corrective action.

F. Confidentiality

Confidentiality will be maintained to the extent consistent with adequate investigation and appropriate corrective action. All parties will be advised of the need to maintain confidentiality regarding the information discussed.

G. Assistance

Students may contact the campus student counselors located in the Health and Wellness Center in the Beloit College Powerhouse, second floor. Discussions with counselors will be confidential, however, as they are not Beloit College employees; no complaints will be lodged nor action taken as a result of these consultations.

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4. Hazing

Beloit College believes that establishing a strong learning community is critical to fully experiencing a liberal arts education. We highly encourage students to be involved in co-curricular activities, which can enhance both social and academic growth. Traditions, rituals and rites of passage help to develop a sense of community at Beloit and we value these organizational bonding opportunities. Groups who have their members participate in these activities must ensure that they are positive experiences for all involved.

A. Stop Campus Hazing Act

The Stop Campus Hazing Act (Hazing Act) requires institutions of higher education (IHEs) that participate in federal student aid programs to report hazing incidents. It also renames the Jeanne Clery Disclosure of Campus Security Policy and Campus Crime Statistics Act as the Jeanne Clery Campus Safety Act.

Specifically, the act requires each IHE to disclose hazing incidents that were reported to campus security authorities or local police agencies in its annual security report. It also requires the College to enact prevention measures.

The Act defines the term hazing to mean any intentional, knowing, or reckless act committed by a person (whether individually or in concert with other persons) against another person or persons regardless of the willingness of such other person or persons to participate, that (1) is committed in the course of an initiation into, an affiliation with, or the maintenance of membership in, a student organization (e.g., a club, athletic team, fraternity, or sorority); and (2) causes or creates a risk, above the reasonable risk encountered in the course of participation in the IHE or the organization, of physical or psychological injury.

B. Campus Hazing Transparency Report

The Campus Hazing Transparency Report will be published by the Safety and Security Department at the same time as the Annual Security Report is published. If another is needed, it will be published sometime during the Spring or Summer semesters to the Security website. Notification via email to beloit.edu email addresses will be sent when one is published

C. Beloit College Hazing Definition

The Beloit College definition of hazing is consistent with the Stop Campus Hazing Act but is more detailed. In addition to the Hazing Act, Wisconsin state laws prohibit hazing in all forms (Wisconsin State Statute, 948.51 Hazing). Acts that cause physical, mental, or emotional harm are against College policy and will not be tolerated. Any group members or organizations (i.e. within sports teams, clubs, Greek organizations, unofficial groups, etc.) suspected of hazing will have their behavior reviewed by College officials and individuals and/or groups suspected of hazing will follow the normal judicial investigation process.

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It is important to note the social pressure can constitute forced or requisite participation, even if the activity is claimed to be voluntary. The following behaviors and activities constitute hazing on this campus:

i. Actions that recklessly or intentionally endanger the physical and mental health or safety of students.
ii. Forced or required consumption or purchase of any food, liquor, drug, beverage, water, or any other substance.
iii. Requiring, coercing, or pressuring any person to participate in an activity, ritual, tradition, or conduct that humiliates, degrades, intimidates, ostracizes, endangers, abuses, or compels unwanted acts or duties, particularly where the activity is unrelated to the legitimate purposes of the organization or group, regardless of the individual's willingness to participate.
iv. Forced [and unhealthy] exposure to the weather.
v. Excessive fatigue resulting from sleep deprivation, physical activities, or exercise.
vi. Assignment of activities that would be illegal or unlawful, or might be morally offensive to a reasonable person.
vii. Physical brutality, including paddling, striking (with fists, open hands, or objects) or branding or requiring a tattoo.
viii. Kidnapping and forced transportation or stranding of individuals, and any activities involving forced blindfolds of any sort.
ix. Verbal abuse, including “line-ups,” interrogations, and berating of individuals.
x. Forced or required conduct that could embarrass or adversely affect the dignity of the individual (and/or the College), including the performance of public stunts, property defacement, activities, and/or buffoonery.
xi. The intentional creation of clean-up work or labor for new members by active members or alumni.
xii. Denial of sufficient time and energy to devote to class attendance and/or academic assignments.
xiii. Forced or required nudity or lewd behavior.

NOTE: It is important to note that an active member participating in any of these activities in addition to the inductees does not mean that the activity is not hazing.

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D. Reporting Hazing

Students: report Hazing by contacting

i. Safety and Security – 608-363-2355, or
ii. Dean of Students – 608-363-2660

The process to investigate and adjudicate hazing incidents for students/student groups will follow the same policy as other general violations of College policy. (See The Judicial Process/Hearing System.

E. Prevention

Beloit College utilizes Vector Solutions, "Hazing Awareness and Prevention" to educate our students and employees at least once yearly. This mandatory training primarily occurs through online videos and quizzes like other training the college utilizes. These videos include how Hazing is defined, bystander intervention, ethical leadership, and strategies for building group cohesion without hazing.

The College also does additional outreach to areas where hazing has conventionally occurred across the nation, which may include but isn't limited to Greek Organizations, Athletics, and Clubs.

F. Campus Resources

- Vector Solutions Employee Site
- Vector Solutions Student Site
- Residence Life Coordinator(s)/Director of Residential Life/RAs
- Dean of Students
- Health and Wellness Center (includes Counseling)
- Security

G. National Resources:

- STOP HAZING ORG: www.stophazing.org
- HAZING PREVENTION ORG: www.hazingprevention.org
- INSIDE HAZING: www.insidehazing.com
- THE GORDIE FOUNDATION: www.gordie.org
- Toll-Free number (888) NOT-HAZE, or (888) 668-4293

H. Hazing and Greek Organizations

The Inter Fraternal Panhellenic Council (IFPC), consisting of representatives from all campus Greek organizations, may not probe into the internal affairs of any member organization such as new member training programs, initiation rites, and all other activities unique to a member house. If a member or potential member of a Greek organization is suspected of hazing, the members of the IFPC are required to report it to the Dean of Students office. It is against Beloit College policy for any fraternity or sorority to put any new member through

hazing activities as described in the Hazing Policy and in any Greek risk-management documents.

All new members must sign a copy of the hazing form upon reading and understanding the Hazing Policy. Actives must inform new members that all events are optional and that they can opt-out at any time without suffering any consequences, physical or social. New members should consult with the Dean of Students or the Director of Residence Life if they have questions regarding this policy or any activity. Beloit College officials may investigate any concerning reports and impose sanctions in hazing cases in accordance with the Student Judicial Process.

I. Wisconsin Hazing Law

The Stop Campus Hazing Act definition is consistent with the Wisconsin State Statute, 948.51 Hazing.

Wisconsin Statute 948.51 defines Hazing as:

> *(1) In this section "forced activity" means any activity which is a condition of initiation or admission into or affiliation with an organization, regardless of a student's willingness to participate in the activity.*
> *(2) No person may intentionally or recklessly engage in acts which endanger the physical health or safety of a student for the purpose of initiation or admission into or affiliation with any organization operating in connection with a school, college or university. Under those circumstances, prohibited acts may include any brutality of a physical nature, such as whipping, beating, branding, forced consumption of any food, liquor, drug or other substance, forced confinement or any other forced activity which endangers the physical health or safety of the student.*
> *(3) Whoever violates sub. (2) is guilty of:*
> *(a) A Class A misdemeanor if the act results in or is likely to result in bodily harm to another.*
> *(b) A Class H felony if the act results in great bodily harm to another.*
> *(c) A Class G felony if the act results in the death of another.*

Per Wisconsin Statute 939.50, penalties, fines and prison sentences are as follows:

i. **(a)** For a Class A misdemeanor, a fine not to exceed $10,000 or imprisonment not to exceed 9 months, or both.
ii. ***(h)*** *For a Class H felony, a fine not to exceed $10,000 or imprisonment not to exceed 6 years, or both.*
iii. ***(g)*** *For a Class G felony, a fine not to exceed $25,000 or imprisonment not to exceed 10 years, or both.*

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D. Campus Programming/Co-Curricular Policies

1. Eligibility To Participate In Co-Curricular Activities Policy

Students are eligible to participate in any co-curricular activity if they are enrolled at Beloit College, taking at least three units of credit (twelve semester hours) per semester, and making satisfactory progress toward a degree. Normally, students are expected to complete degree requirements in eight semesters, but may do so in nine semesters.

Students on academic probation are not restricted from participation except as prohibited by the regulations of specific organizations and/or their degree of probation as specified by the Academic Performance Committee. This definition of eligibility conforms to the Beloit College philosophy, which regards athletics and other co-curricular activities as opportunities that should be made available to all of our enrolled full-time students.

2. Clubs and Organizations

Funds Policy

Each student pays a student activities fee each semester. The money is collected by the College and is dispersed by the Beloit Student Government (BSG). The money is allocated by BSG and will be placed in the account of each recognized club or organization in August for the fall term and in January for spring semester. It is against College policy to request or spend student activities fee monies through the use of deception, false information, or for purposes other than those stated and agreed upon in the approved funding request or proposal.

Students and organizations that violate this policy will be subject to disciplinary action. Sanctions organizations may receive include probation, freezing of club accounts, being temporarily placed in an inactive or dissolved status as a club or organization, community service or other sanctions as determined by the Office of Student Engagement and Leadership (SEAL).

Each organization will be required to furnish names of their club's advisor, club leaders, and one individual who will have club approval to access the club account each semester (herein, "the financial person"). SEAL will only authorize club financial transactions and reimbursements for the financial person or for others with this person's approval.

Individuals who use club funds for personal use (embezzlement) or without proper authorization will be subject to the Judicial Hearing process and, if found responsible, are eligible for the full range of sanctions as listed.

Contracting Policy

Any student/student group wishing to hire a performer, entertainer, or non-students to perform a service on campus (herein referred to as "artist"), must have a written contract

made for the services performed and signed ONLY by the SEAL Director or the Director of Residential Life. Students may not enter into contractual agreements on behalf of the College or their club. (C-Haus contracting is coordinated through the C-Haus Manager and the SEAL Director).

Contracts can only be made if money for the entire amount of the service has been approved by the funding board or a club's budget. Contracts are never to be signed if the money is not appropriated.

Payment: A Beloit College check must pay all services performed by artists. No other forms of payment are permissible. A contract and W-9/Vendor form need to be signed by the artist and turned into the Student Engagement and Leadership Office at least one week before the performance. No exceptions will be made. Failure to meet this deadline may result in delayed payment. Artists are paid by check in the week following the event.

Terms of contracting: Any student wishing to make offers to artists must first meet with the Director of Student Engagement and Leadership (SEAL) for a formal training session. No contracts will be authorized for students who do not follow through on this mandatory training session.

Verbal Contracts: Verbally committing to any artist, performance dates, or similar items can result in the student personally paying for their commitment to the artist. Beloit College will not tolerate or support verbal contracts. Artists can be contacted for price quotes but under no circumstances should a student agree to anything until a meeting is made with the SEAL Director to go over specifics. Additionally, no artists outside of or within the College are to be contracted to perform in violation of the quiet hours (and locations) of the College, particularly during exam weeks and study days. Failure to abide by the above policies may result in disciplinary action.

All performances and services paid by student activities monies must be contracted. All other performances and events are strongly encouraged to be contracted to protect all parties involved.

Fundraising Policy

Beloit has a full-time professional staff of fundraisers and alumni specialists to support the needs of the College. Students may not raise money or ask for gifts-in-kind without first consulting with the Office of Advancement. Advancement staff is available to provide guidance and support to help students in achieving their fundraising goals. Contact the Office of Advancement (advancement@beloit.edu**)** to discuss:

- Gifts of any type from alumni or parents.
- Soliciting funds or gifts-in-kind from any local business (including goods, services, cash, or gift cards).

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- Fundraising plans, event ideas, or other fundraising activities requiring coordination with the College or external donors.
- Questions about fundraising policies or best practices.

Students should consult the Office of Advancement before beginning any fundraising activity. Early coordination helps ensure fundraising efforts align with College policies, avoid conflicting requests to donors or community partners, and maximize the success of fundraising initiatives.

Program Activity & Event Planning

If you are thinking of planning an event, please contact the Director of Student Engagement and Leadership (SEAL). Go to the SEAL website (https://www.beloit.edu/offices/student-engagement-leadership/resources/) for guidance on event planning.

Events requiring Facilities requests for any outdoor spaces near the residence halls (such as the Chapin Quad or Aldrich Field) require the approval of the Director of Residential Life. Events requiring Facilities requests for any outdoor spaces on the academic end of campus (such as the Pearsons Quad) require the approval of the Dean of Students Office. Students planning outdoor events close to the Mounds on campus must include provisions to prevent anyone from disturbing the Mounds. Requests for Facilities set up must be requested by the SEAL Director.

Program Presentation

Free inquiry and free expression are essential attributes of the community of scholars. Therefore, recognized student groups are allowed to invite and to present any speaker, performer, or dramatic or musical group of their own choosing, provided they follow regular procedures for scheduling facilities and placing the event on the calendar. The appearance of such guests implies neither approval nor objection to the views expressed by either the students or other members of the College. Unless sponsored by a recognized campus group adhering to the above-mentioned procedures, outside speakers, demonstrators, and performers are prohibited from using College property to convey their message.

In addition, sponsors must adhere to the following policies:

1. Even if no financial obligation is incurred for an event, a sponsor is required to schedule the event on the Master Calendar before booking the speaker or performer.
2. Sponsors of events should be prepared to verify availability of necessary funds before an event is booked. A College account number is usually required to cover any expenses.
3. All publicity distributed beyond campus, including news releases, posters, mailers, and flyers must be channeled through the Office of Communications and Marketing (C&M).

4. No solicitations for funding from off-campus individuals, businesses, or groups should be undertaken without first receiving the approval of the Office of Advancement.
5. All political activity must be approved by the Director of C&M prior to publicity notices.
6. All purchasing of off-campus printing services, including typesetting and printing, should be done with the assistance of C&M.

Please Note: Consistent with its educational mission, the College encourages campus groups to invite speakers with a wide range of perspectives. Speakers on campus must not only be protected from violence and harassment, but also be given an opportunity to be heard. Community members and visitors may not suppress others' speech by obstructing, shouting down, or otherwise preventing them from being heard.

3. Publicity, Solicitation, Signs

Chalking Policy

The use of water-soluble chalk is permitted on horizontal surfaces exposed to weather. Areas where chalking is not permitted include buildings, vertical surfaces (walls), painted surfaces, porches, wooden surfaces, in the MI tunnels, under the walkways of the '64 Halls, and other surfaces not exposed to weather. Chalking is not permitted on the steps, ramps or red brick area of Middle College. The use of spray-on chalk or any other formulation (including the mixing of chalk and water as a paint) is prohibited on the Beloit College campus and sidewalks.

Chalking is also subject to the policies below under Signs/Posters/Digital Signage including the "BTYB", "TDD" and not promoting alcohol or drug use. Those responsible for chalking in inappropriate areas may be charged for the cost to clean or repaint the surface and other disciplinary action may result. The take down date ("TDD") for any chalking may not be longer than two (2) weeks from the date of the initial chalking.

Commercial Solicitation Policy

As a general rule, the College prohibits the use of campus grounds, buildings or vehicles parked on campus by College or non-College personnel (including students) for the purpose of commercial solicitation of students or sales of any type. All individuals or organizations seeking exceptions must apply for the appropriate permit at the Dean of Students or, if residence halls are concerned, the Director of Residential Life.

Signs/Posters/Digital Signage

Campus signs should promote educational engagement or serve as a means to advertise campus events. All signs should respect other individuals and the community as a whole. Note that political signs are also subject to the Political Sign Policy. (This policy is for paper posters, see chalking policy for outdoor chalk advertising.)

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Sign Content:

- Signs cannot promote alcohol or drug use.
- Due to copyright laws, no videos/movies designed for private use may be advertised. (This includes movies/videos rented, owned, or streamed without explicit permission to share for any event.)
- Signs must cite sources.
- **All signs are required to include "Brought to You By" (BTYB:). The BTYB must provide a legitimate primary contact (individual student, Beloit-recognized organization, or campus department) affiliated with the sign.**
    - The BTYB person/organization is responsible for promptly removing your posters after the event advertised occurs, or if the posters are rendered illegible.
    - The BTYB person/organization is required to put the TDD (Take Down Date) on the sign.
- Students are expected to respect signs and the person/organization who put them up. Don't:
    - Tear signs down for current events
    - Intentionally cover up posters for current events
    - Deface posters with drawings, writings, false statements, etc.

Inquiries should be directed to the Director of Student Engagement and Leadership.

Sign Placement:

Signs are not to be placed on glass doors, glass entryways or the glass portion of any door, any painted surfaces (unless using blue painter's tape), nor any metal, sidewalks, fire exits or alarms, railings, lamp posts, or garbage cans. Students are not to use duct tape, masking tape, or packing tape. Tacks are only to be used on appropriate bulletin boards. However, if determined necessary for public health and safety, members of Beloit College Operations (Security, Housekeeping, Student Life or Facilities staff) may place signs as needed).

Signs may be placed on brick walls, sign boards, bathroom stalls on the residential side, and bulletin boards that do not have other designations. Specific buildings have additional restrictions; signs may be placed:

Academic Buildings: On public, outdoor bulletin boards, but not on buildings walls, doors or windows. Not in the bathroom stalls.

Campbell Hall: On bulletin board on first floor.

Library: On community boards for College community members to post College community events. One board is reserved specifically for Library announcements.

M-I: On bulletin boards inside (but not department-only boards).

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Pearsons Hall: On bulletin boards in the stairwells and on the mail center cork strips. See Bon Appetit about table advertising in DK's.

Powerhouse: See this link: https://docs.google.com/document/d/1x92wD283NRpdQ2uJT6kyo41NhkgYdQNHYRm4a9SNuUM/edit (See Bon Appetit about table advertising.)

Science Center: Only on white boards with magnets (every floor).

WAC: On bulletin boards that are not department boards or specifically marked for other uses. In classrooms, on the perimeters of the chalkboards or white boards with magnets.

Digital Signage must comply with the Sign Content regulations above. The Digital Signage Policy can be found here https://www.beloit.edu/digital-signage/policy/

4. Social Host Policy

All social functions/gatherings occurring in the living areas of campus must be sponsored by or hosted by students who take full responsibility for the function.

1. The host(s) is responsible for monitoring the behavior of those attending, ensuring College policies are followed and ensuring clean-up activities are completed.
2. The host(s) will work with the Residence Life Coordinator and residents to determine if a social gathering is acceptable prior to the event.
3. The host(s) will ensure there are students checking IDs at the entrance. Only Beloit College students and their registered guests are to be admitted.
4. The host(s) assumes all costs associated with the function. This includes, but is not limited to, cleaning, damages, repairs, etc.
5. The host(s) will call Security and/or the RA, or Organization's President/Lead position, if a gathering is out of control.
6. The host(s) will monitor the area for noise problems and immediately respond to noise complaints.
7. The host(s) is responsible for the behavior of all guests and agrees to be present for the entire event.
8. For gatherings that are planned in advance, or advertised (either in writing, via social media, or by word of mouth) a list of those responsible must be provided to the Residence Life Office no later than 48 hours prior to the event. This list shall include the person responsible and serving as host and a list of each person who is checking ID's and monitoring the event.

E. Demonstrations Policy

Students are encouraged to express their opinions and beliefs on wide-ranging subjects and issues in an orderly fashion, which does not disrupt the operations and essential functions of the College,

endanger the safety of individuals, or destroy property. In any public demonstration, organizers or student speakers may not speak for the College as a whole, only for themselves. Due to the importance of academic and administrative buildings in ensuring the normal operations of the College, demonstration and protest activity inside academic and administrative buildings is prohibited. Demonstrations and protests, regardless of size, must maintain the ability to allow emergency access and egress into and out of buildings, offices, and other areas at all times for safety purposes.

The College will make every attempt to deal with disruptive demonstrations first with reason and persuasion. Civil authorities will be called only after reason and persuasion fail, and the appropriate College officials deem such action is necessary to protect the safety of individuals, campus property, and the legitimate operations of the College. Members of the College community must take responsibility for their expressions, both public and private. No person(s) has the right to disrupt another's speech or presentation.

F. Health and Accessibility Policies

1. Disability Policy

The terms used within the Disability Policy such as "qualified individual with a disability," "undue burden," "direct threat," "responsible accommodation," and "essential functions" are as defined by the Americans with Disabilities Act, as amended, and its regulations.

Beloit College provides a supportive environment for students with disabilities. It is the policy of the College to create and maintain an environment in which all students may learn and work to their fullest potential. Consistent with this policy of nondiscrimination, Beloit College is committed to complying with all applicable provisions of the Americans with Disabilities Act (ADA), as amended, and Section 504 of the Rehabilitation Act of 1973. Beloit College will provide accommodations to students who have provided the College with appropriate documentation of their disability to enable them to equitably participate in and benefit from the College's programs, services, and activities, provided such accommodations would not:

- **i.** fundamentally alter the nature of operation of the College's programs, services or activities,
- **ii.** cause undue burden to the College, or
- **iii.** pose a threat to the health or safety of others.

Students who warrant accommodations to participate in the College's programs or services should contact the Director of the Learning Enrichment and Disability Service Office (hereby referred to as "Director"). The student is to contact the Director and when requested provide documentation by a qualified, licensed professional appropriate to the nature of the disability and requested accommodation(s). Students have the choice of whether or not they utilize accommodations.

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At times students will experience injuries or illnesses which will require temporary adjustments. First the student is to provide documentation of the situation to the Dean of Students office. Most of the time, faculty will be flexible in providing necessary adjustments without additional information. However, at times the learning and use of assistive technology and/or figuring out strategies to compensate for the impairment can be done with the assistance of the Director of Learning Enrichment and Disability Services.

Information regarding a student's disability is private. Consistent with FERPA and Beloit College's Privacy Policy, Learning Enrichment and Disability Services staff share disability-related information with faculty or staff when there is a need for them to know. Specifically, it is sometimes important to share such information in order for accommodations to be provided. However, information is rarely shared with parents or other students without the student's written consent unless it is an emergency or the student is determined to be a danger to themself or others.

If a student or a prospective student with a disability believes they have been discriminated against, or if they are dissatisfied with the determined accommodation or the implementation of an accommodation, that student is encouraged to discuss the situation with the Director. If a satisfactory agreement cannot be reached with the Director, the individual may appeal the decision via the grievance process.

Faculty or staff who believe that an accommodation for a student fundamentally alters the nature or operation of the College's programs, services, or activities are also encouraged to discuss the situation with the Director. If a satisfactory agreement cannot be reached with the Director, the individual with a disability may contact the Dean of Students Office at (608) 363-2660, the Provost at (608) 363-2667, or the Director of Human Resources (608) 363-2628 and Director of Facilities (608) 363-2264, who are the ADA/504 Co-Coordinators, for information regarding the appeals process.

A separate grievance procedure exists for employees of the College (when it is not related to student accommodations). Contact the Human Resources Office for appropriate information.

Emotional Support Animals in Beloit College Student Housing

Beloit College is committed to creating and sustaining a successful community of inclusive excellence as we prepare students to live, learn, and work among people who experience the world in fundamentally different ways. Within this framework, the College is committed to providing a supportive environment for students with disabilities as well as to complying with all applicable provisions of the Americans with Disabilities Act as amended (ADAAA), Section 504 of the Rehabilitation Act of 1973, and the Fair Housing Act.

Under the Fair Housing Act (FHA), a person with an appropriately documented disability may keep an emotional support animal in the individual's dwelling when there is an established need for the therapeutic nature of the animal that is connected to the individual's disability.

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An Emotional Support Animal (ESA) provides emotional support to persons with a diagnosed disability who have a disability-related need for such support. The ESA is indicated as necessary for an individual with a disability by an appropriate and relevant healthcare professional. [Please Note: Any website claiming to "register" or "certify" your animal to be an Emotional Support Animal or Service Animal (especially if they charge a fee) is a scam with no legal bearing and is never a substitute for following the policy and procedure to have an ESA at Beloit College or anywhere else.] Use the College's forms, completed by the appropriate indicated professionals only. For credible information about assistance animals as reasonable accommodations, visit the U.S. Department of Housing and Urban Development's website.

An ESA may be a reasonable accommodation for a student with a diagnosed disability within the student's privately assigned living space. Students may qualify for this accommodation if (1) the student has a documented disability; (2) the animal is necessary to afford the student with a disability an equal opportunity to use and enjoy their dwelling; and (3) there is an identifiable and documented nexus between the disability and the assistance that the animal provides. The College will allow only those ESAs that are allowed by local and state laws and conform to standards within this policy.

Students must receive Emotional Support Animal designation from the Director of Learning Enrichment and Disability Services (hereto referred to as "Director") prior to bringing their animal to campus. Without such authorization, an animal cannot be kept on campus. If a student is found to have an animal on campus without approval, that animal must be removed immediately. Therefore, students are to follow the deadlines indicated for all housing accommodations requests found in the general Housing and Food Service Accommodation policy (https://bit.ly/3tWhSyl). To make determinations, the Director will review documentation and communicate/consult with the appropriate members of the College community. Like all accommodations, the determination of whether or not an ESA will be permitted is made on a case-by-case basis through an interactive process between the student and the Director.

Once approved, the Director will notify the Residence Life Office and the student. A Residence Life staff member will then contact the student for additional details and, along with the student's other Residence Life preferences or needs, determine a housing option for the student. Students should note that housing options may be limited as the College balances appropriate accommodations to students with disabilities with students who have allergies and/or animal fears. Consequently, advance notice as noted in the Housing and Food Service Accommodations policy (https://bit.ly/3tWhSyl) of the need for an animal is essential to the College providing a smooth transition for the student and the rest of the community where the student will reside.

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Requirements for Emotional Support Animals

The care and supervision of the ESA is solely the responsibility of the student owner. The student must be in full control of the ESA at all times. ESAs may not pose a direct threat to the health and safety of persons on the College campus, cause physical damage to property, or fundamentally alter the nature of the College operations.

An ESA can be a dog, cat, small bird, rabbit, hamster, gerbil, fish, turtle or other small, domesticated animal that is traditionally kept in the home. A dog must be at least 9 months of age to live on campus to assure that the dog is reliably housebroken, not disruptive to other residents, and has all of the shots required by state and local ordinance as necessary to make it safe to be around humans. Other types of ESAs must be similarly capable of, and trained for, toileting without disruption or damage to property and must have necessary vaccinations as required by state and local ordinance. We typically do not allow animals known to carry the risk of zoonotic disease and cannot be adequately controlled to be in residence.

The ESA must be maintained (kept clean, free from fleas or ticks, etc.) and may not create safety hazards for other people. Local and state ordinances and laws regarding animals apply, including requirements for immunizations, licensing, noise, restraint, at-large animals and dangerous animals. Note that the City of Beloit requires a city license (https://bit.ly/3rfkZiV) for all dogs residing within the city limits; this includes College property.

An animal's behavior, noise, odor and waste must not exceed reasonable standards for a well-behaved animal. These factors should not create unreasonable disruptions for other residents. If the noise (whining, barking or meowing) is excessive as judged by Residence Life staff, it is grounds to remove the ESA from campus. ESAs may also be excluded from the College campus if the animal behaves in an unacceptable way and/or the student does not control the ESA. Uncontrolled barking, jumping on other people, or running away from the handler are some examples of unacceptable behavior for an ESA. Any suspected or observed issues related to animal abuse or neglect will be reported to the proper investigatory authorities and may subject the student to College disciplinary action as well.

The student is responsible for immediately cleaning up and properly disposing of the ESA's waste and is responsible for having the equipment to do so. People who are physically unable to accomplish this task are responsible for arranging for it to be done and any costs that it incurs. The College retains the right to designate a particular area for the ESA to relieve itself and/or for the disposal of its waste.

The College retains the right to designate a particular area for the ESAs to relieve themselves and/or for the disposal of their waste.

ESAs are limited to the privately assigned living space (room) of the student except when exiting or entering the student's residential building. It may not be allowed into bathrooms, laundry facilities,

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indoor recreational rooms, lounges, hallways, computer labs, study rooms, or other areas of the residence hall. It also cannot be taken into classrooms or other buildings on campus or allowed to roam freely on campus grounds.

ESAs must have enough space within the privately assigned living space to be appropriate to the size of that animal. ESAs are to be confined (i.e. cage, tank) when the owner is not present in the room. Owners are not to leave their ESA unattended overnight.

Roommates, neighbors, security, physical plant, grounds crew, housekeepers, on-call staff, and Residence Life staff may all be notified of the presence of the approved ESA in a particular space.

The student, not the College, is responsible for the actions of the ESA including, but not limited to, any bodily injury, property damage or additional cleaning. The student is expected to pay any costs incurred for repair or cleaning. In addition, the College retains the right to remove the ESA, at the owner's expense, should the animal become a direct threat to the health and safety of others or violate these requirements in any way. The owner must provide the name and contact information of an off-campus person who is willing and able to take the animal in the event of an emergency.

The student must sign an Emotional Support Animal Agreement prior to bringing the ESA to campus.

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Student Personal Care Attendants

The Beloit College Student Personal Care Assistant Policy is designed to help students who use personal care assistance services engage fully in a Beloit College education as the College complies with the Americans with Disabilities Act and Section 504 of the Rehabilitation Act.

The Learning Enrichment and Disability Services Office (LEADS) at Beloit College works with students with disabilities who use Personal Care Assistants (PCAs). PCAs work directly with people with disabilities who are in need of assistance with activities of daily living. Students who require a PCA must make arrangements to provide their own personal care services. The College does not assume coordination of or financial responsibility for such personal services. However, the College strongly believes that in order for a student who needs a PCA to have a College experience that is closest to the Mission of the College, it is in the student's best interest to not have a family member, a friend, or another student for a PCA.

Note: "Director" (unspecified) in this document heretofore refers to the Director of LEADS. As other Directors are referred to, they will have the office included in the text. "The student" is the student with a disability, unless otherwise indicated.

It is the student's responsibility to:

Contact the Director prior to attending the College to discuss appropriate accommodations, including the role of the PCA on campus. A meeting should occur with the Director during each semester that the student is enrolled. If third-party documentation is requested by the Director, provide the information. (See Documentation Guidelines for details.)

If living on campus and need the PCA to access the residence hall, indicate the need for a PCA on the residence hall application form and submit this form as soon as possible. If the housing application is late, effort will be made to make the accommodation, but it may not be possible given limited appropriate residence hall spaces. All Residence Life policies apply.

Secure a PCA and Relief PCA(s) prior to attending College. Have a plan for when the usual PCA(s) is not available. (Relief PCAs who are not current students are subject to the same expectations as usual PCAs, including background checks.)

Make sure that PCA(s) meet with the Director and sign an Agreement/Expectations form for Personal Care Assistants prior to providing service on campus.

If living on campus, share the student's double room with the PCA if the PCA is required to remain overnight. If the PCA is of the opposite sex of the student with a disability, they must live on a co-ed or gender neutral floor. If the live-in PCA is not a current Beloit College student, only the student will pay a room charge (the PCA, in essence, lives on campus in the same room for no charge). If the PCA is a student, each student will also pay a room charge.

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Make sure that the PCA responsibly uses any access to College facilities, equipment, resources, and network activities.

Arrange for someone to provide transportation from one class to another, if necessary. (It could be the PCA.) If exceptions to current policies and procedures are needed for transportation and/or parking, these exceptions must be discussed and approved in advance with the Director as well as the appropriate persons of Facilities and Security staff.

Pay all expenditures of the PCA if the student chooses to participate in an off-campus study program.

Directly negotiate with the appropriate department or office, in advance, regarding the admittance of the PCA to College activities or events which require additional expense (e.g. theater performances).

Follow the College's policies and procedures, and abide by the Student Handbook.

The College's responsibilities - usually via the Director - are to:
Request, review and evaluate third-party documentation in a timely manner and be available for individual consultation as necessary. The Director will also determine which, if any, accommodations are warranted based on the conversation with the student and the documentation.

Coordinate appropriate academic/classroom accommodations such as note-taking, in-class scribing, or audio text and also refer the student to services available to all students, such as tutoring, as appropriate.

Confer with the student, the PCA, and the relevant faculty and staff to determine the specific role of the PCA in the classroom(s) and on campus.

Act as an intermediary between the student and the relevant offices (Facilities, Residential Life, library, etc.) when appropriate and necessary. However, this does not absolve the student from advocating and/or negotiating for themself when appropriate.

Issue non-student PCAs special IDs once the PCA has passed the background check, signed the Agreement/Expectations form, and presents themself to the Residence Life Office for a photo ID.

The PCA role is to:
Undergo a background check via the Human Resources Office at Beloit College, at the expense of the student or the PCA, if the PCA needs to remain on campus overnight and is not a current Beloit College student.

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Assist in the physical mechanics of accomplishing homework (e.g. type a paper or write out a proof), but not provide intellectual content or tutoring. The student who accepts the intellectual assistance of a PCA may be considered in violation of the Academic Honesty Policy.

Allow the student to take responsibility for his/her own behaviors and choices. The PCA is not to take initiative in negotiations or to advocate on behalf of the student with the disability. PCAs are to refrain from interceding or intervening on behalf of any student unless someone is in immediate danger or the PCA is acting on their own as a good citizen.

Refrain from participating in or disrupting classes. Unless documentation supports the need for the PCA to be in the classroom with the student, the PCA should remain outside of the classroom. PCAs may help the student before and after class with personal tasks (e.g. plug in laptop, turn on tape recorder). The specific determinations in this area are made on a class-by-class basis in consultation with the Director and, when appropriate, with the faculty member.

Carry the special Beloit College ID at all times that they are on campus. Events which are open to all students will be available to the PCA when accompanying the student. Non-student PCAs must not use their ID for personal access to College facilities, attendance at College community only events, personal use of College resources (including network activities) or to check out College equipment. Access to College residence halls and services will be determined by the Director and the Director of Residence Life.

Arrive and depart campus as agreed upon for assisting the student, unless attending an event which is open to the public.

Refrain from eating food while in Hamilton's, unless the food has been purchased for the PCA (by the student or PCA).

Obtain a parking permit and follow all parking regulations unless explicit, advance exceptions are made by the Security office in consultation with the Director.

Follow all College rules, regulations, policies and procedures and abide by the expectations listed above and agreed upon in consultation with the Director.

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Service Animals For Students With Disabilities

Beloit College is committed to creating and sustaining a successful community of inclusive excellence as we prepare students to live, learn, and work among people who experience the world in fundamentally different ways. Within this framework, the College is committed to providing a supportive environment for students with disabilities as well as to complying with all applicable provisions of the Americans with Disabilities Act (ADA), as amended, Section 504 of the Rehabilitation Act of 1973, and the Fair Housing Act.

Service animals are animals specifically trained to assist people with disabilities in the activities of daily living. The ADA, as amended, defines a service animal as “an animal that does work or performs tasks for the benefit of an individual with a disability (including psychiatric, cognitive, and mental).” Emotional support animals, comfort animals, and therapy dogs are not service animals and are addressed in the College’s Emotional Support Animal Policy. Other than dogs, the only type of animal that can be considered a service animal under the ADA is a miniature horse, though miniature horses may be subject to somewhat greater restrictions than Service Dogs. Given the rarity of the use of miniature horses as service animals, in the rest of this policy, “Service Dogs” will be used when referring to service animals.

A Service Dog may accompany the individual with a disability everywhere on campus except in rare situations where safety may be compromised or where a Service Dog may interfere with the fundamental nature of the activities being conducted.

Students with disabilities who require a Service Dog on-campus are requested to self-identify as a person with a disability to the Director of Learning Enrichment and Disability Services (hereto referred to as “Director”) as soon as possible after deciding to enroll at the College. The Director will provide information on expectations for the Service Dog to the student and communicate to other College community members to ease the transition of the student.

For students living in campus housing with a Service Dog, the College requests that the student provide as much advance notice as possible prior to the desired move-in date so that College can best accommodate the student and the animal. A meeting may be arranged between the student, the Director, and a Residence Life staff member to discuss how to best accommodate the student, the Service Dog and the campus community.

The care and supervision of the Service Dog is solely the responsibility of the student owner. Service Dogs may not pose a direct threat to the health and safety of persons on the College campus, cause physical damage to property, or fundamentally alter the nature of the College operations. The Service Dog must be maintained (kept clean, free from fleas or ticks, etc.). Local

and state ordinances and laws regarding animals apply, including requirements for immunizations, licensing, noise, and restraint.

The Service Dog's behavior, noise, odor and waste must not exceed reasonable standards for a well-behaved animal. These factors should not create unreasonable disruptions for other residents. If the noise (whining or barking) is excessive as judged by Residence Life staff, it is grounds to remove the Service Dog from campus. Service Dogs may be excluded from the College campus if the Service Dog behaves in an unacceptable way and/or the student does not control the Service Dog. Uncontrolled barking, jumping on other people, or running away from the handler are some examples of unacceptable behavior for a Service Dog.

The student is responsible for immediately cleaning up and properly disposing of the Service Dog's waste and is responsible for having the equipment to do so. People who are physically unable to accomplish this task are responsible for arranging for it to be done and any costs that it incurs. The College retains the right to designate a particular area for the Service Dogs to relieve themselves and/or for the disposal of their waste.

The student must be in full control of the Service Dog at all times. Service Dogs must be harnessed, leashed, or tethered, unless these devices interfere with the Service Dog's work or the individual's disability prevents using these devices. In the latter cases, the individual must maintain control of the Service Dog through voice, signal, or other effective controls.

Any suspected or observed issues related to animal abuse or neglect will be reported to the proper investigatory authorities and may subject the student to College disciplinary action as well.

The student, not the College, is responsible for the actions of the Service Dog including bodily injury or property damage. Students with Service Dogs are likely to be charged if additional cleaning or damage occurs as a result of having the Service Dog on campus. The student is expected to pay these costs upon repair or cleaning. In addition, the College retains the right to remove the Service Dog, at the owner's expense, should the Service Dog become a direct threat to the health and safety of others or violate these requirements in any way.

2. General Immunization Policy

Beloit College supports the same immunization requirements that apply under state law to Wisconsin school students in kindergarten through grade 12. We require all enrolled students to provide dates of two MMRs or equivalent (2 mumps, 2 measles, 1 rubella). We strictly enforce our policy and permit only limited exceptions. Disease can spread quickly at a small residential college and the College has an interest in protecting individuals and the campus community from the devastating consequences that can result when an adult contracts one of these illnesses. State law

requires all students living on campus to review the information concerning meningitis and hepatitis B, acknowledge this information and/or provide dates of vaccinations for meningitis and hepatitis B.

If a student waives the immunization requirement due to religion, personal conviction, or medical contraindications, an immunization waiver form must be submitted through the Immunization Form prior to enrollment at Beloit College. By signing the waiver, the student accepts the possibility of quarantine in the event of an outbreak of any disease. It also may be necessary for a student to leave campus in the event of an outbreak in town or on campus of a disease for which they have signed an immunization waiver. A signed waiver must be submitted prior to registration for courses.

3. General Quarantine Policy

A student who contracts or is at the risk of contracting MMR (Measles, Mumps or Rubella) and/or other communicable illnesses may be asked to seek treatment, remove themselves from the campus community or return home for the duration of two incubation periods from the time of diagnosis. If immunization against or medical treatment for MMR or other communicable illnesses specified by Beloit College are voluntarily forgone, the student will not be eligible for room, board, and tuition refunds. If immunization against or medical treatment for MMR or other communicable illnesses specified by Beloit College is sought and the student is asked to remove themselves from campus they may be eligible for a refund (per College refund policy). Regardless of the circumstances, the student may also be held academically responsible for class/lab absences necessary to meet course requirements caused by the specific illness, at the discretion of the professor.

G. Housing Policy - Use & Occupancy of College-Owned Housing

1. Living on Campus Requirements

The College's housing operation, including residence halls, fraternity and sorority housing, and special interest housing, is managed by the Dean of Students (DOS) and Residence Life staff, with the following policies:

i. As a residential liberal arts College, we strongly believe that a significant amount of personal growth and development occurs in the residential environment. For this reason, full-time students are required to live in College housing and subscribe to a dining plan during their first six credit terms. College housing includes residence halls, fraternities, sororities, apartments, special interest houses, and townhouses. Exceptions to this policy include married students, military veterans with two years of active duty, students with dependent children, and commuting students who live with their parents/legal guardians within a 30-minute commute. However, all students are to have current Emergency Contact information submitted via the Portal. Any other exceptions must have prior approval of the Director of Residence Life (DRL).

ii. First-year students must select from one of the top-tier meal plans. Other students may opt into any of the available meal plans. Senior students may choose to opt out of the meal plan. See the Bon Appetit website (https://beloit-College.cafebonappetit.com/#meal-plans) for information about the meal plans. For any exceptions, students must have prior approval of the DRL. Commuting students are not required to have the top-tier meal plans, but are encouraged to sign up for one of the other options.

iii. Part-time students (under two units of credit) may live in College housing with the approval of the DRL or DOS.

iv. Transfer students under 21 years of age are required to live in the residence halls and eat in the dining hall in accordance with policies regulating the class or term to which they are assigned by the Registrar.

v. Specific regulations related to the use and occupancy of College-owned housing will be determined by the DRL. Such regulations are found in the Housing Agreement form and this Handbook.

vi. No first-year student may live in a special interest house or a fraternity/sorority unless approved by the DRL.

vii. If practical, the College will not enter a student's room unless accompanied by the student, their authorized representative, or a second authorized College representative. However, the College reserves the right to enter student's rooms for the purpose of inspecting the premises when an authorized agent of the College has reason to believe that:

- **a.** an occupant of the room may be physically harmed or endangered;
- **b.** damage is being done to the room;
- **c.** College policy as stated in the College catalog, Student Handbook, or subsequent written notices is being violated;
- **d.** housekeeping, room inspection, maintenance, and/or repair are necessary. In addition, the College officials conduct room inspections during breaks, to make sure that all the rooms are safe and secure.

viii. Items belonging to the College which are not part of furnishings (for example, lounge furniture, dining room equipment, library books) or items which are illegal by law or College policy (e.g., drugs, firearms) may be removed from a student's room if they are found via an unobstructed view by a the College official. Discovery of such items may constitute the basis for subsequent disciplinary action and/or fines.

ix. Students choosing to room with romantic partners and are involved in a Title IX complaint with their roommate, or exhibit behavior that is objectively disruptive and concerning (e.g., loud arguments, threatening language), will be required to move to alternate housing until an investigation and determination of responsibility is made (or informal resolution is reached). This may occur even if a third party is reporting the incident.

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Gender Neutral/LBGTQ+IA Housing

Beloit's strong tradition of empowering students with alternative gender and sexual identities has been a hallmark of the College's acceptance of diversity. In order to advance our proud history of supporting all students, Gender Neutral Housing is available for a more comfortable and safe on-campus environment for students with alternative gender and sexual identities by allowing students to room with another individual regardless of sex or gender identity.

Students who want to live on a gender-neutral floor must sign the Statement of Intent before they may choose a gender-neutral room, but they do not have to identify a specific reason for picking gender-neutral housing. The process for selecting rooms will be the same as any other on campus: students must participate in the lottery and may select a gender-neutral room when their number comes up. All roommates must be chosen ahead of time (no "open-doubles'' to be filled by Residence Life). If a roommate leaves the room, the current resident will be given an opportunity to find a replacement. Should none be found, the room will revert to the legal sex of the resident and Residence Life may put another student in the room. Additionally, with enough interest, the College maintains at least one floor featuring LBGTQ+IA interests.

2. General Housing Expectations/Policies/Services

Beloit College recognizes that learning is not confined to the classroom but also encompasses a broad range of co-curricular activities and experiences. One of the most important of these is the interactions among students, faculty and staff which occur on a residential campus.

The residence halls are largely self-governing and operate on the basic principle of mutual respect and consideration for the rights of all residents. Students are encouraged to accept individual and collective responsibilities for setting their own guidelines in these areas. However, the College reserves the right to change room assignments and occupancy levels in the interest of health, discipline, housing needs, or the general welfare of the student and/or other students.

In order to ensure smooth functioning of the living areas (residence halls, special interest houses, Greek houses and apartments), the protection of students' individual rights, and the protection of personal and College property, a number of operating policies and procedures are in effect in the living areas:

Air Conditioning: Air conditioning units may not be installed in any residence space. The following residential spaces have A/C (when Facilities turns it on): Aldrich, Moore Town Houses, the Clary Apartments, Peet, Porter, Whitney, Blaisdell, Bushnell, Maurer, Brannon, and Chapin.

Alcohol: Please see the full policy (Section X, A 1). Students who are 21 and over may drink alcohol in their rooms, as long as they are following the Alcohol Policy.

Bicycles: Bicycle storage space is very limited and only available in Whitney storage on a first-come, first-serve basis. Students are not to keep bikes in common areas (i.e. attached to stairwells,

furnishings, etc.). Bikes left in these areas will have the locks cut off and the item removed. Students may leave their bikes outside tethered to the bike racks. It is important to make sure that one's bike is locked to the rack. Students may not leave their bikes on campus after the academic year unless they will be attending over the summer semester.. Unless specific arrangements are made with Residence Life, bikes left unattended for more than one month following the end of the academic year are considered abandoned, and may be confiscated, sold, donated, or destroyed without compensation. Students are strongly encouraged to have a means to identify a bike as their own and register their bikes with Security.

Bulletin Boards: Used as a prime method of communication, each resident is responsible for knowing the contents of all official notices on bulletin boards or posting areas. Any graffiti that is posted or any derogatory or discriminatory comments will be taken down, reported to Security, and the parties involved will be met with by staff and could face potential adjudication.

Candles: Candles, kerosene lamps, incense or incense burners (see "Incense" below), or any other open flame devices are not permitted in any of the living areas under any circumstances for fire safety reasons.

Check-In/Out: Students may move into the residence halls at the date and time indicated on the website and must be completely checked out of their assigned space by 5 p.m. **the day after their last final examination**, **but no later than published dates.** Any students seeking an exemption must submit a written request to the Residence Life Office two weeks prior to the end of the semester.

Doors: Suite, hallway, and room doors that are left propped open create a potential security breach and fire hazard. For the sake of all residents, please leave all doors closed and locked (when appropriate).

Fire Alarms, Smoke Detectors, and Extinguishers: Fire safety equipment (fire extinguishers, fire alarms, and smoke detectors) and evacuation/exit plans are installed in every building to protect the residents in case of a fire. Tampering with this equipment endangers the safety of others, is a violation of Wisconsin law, and will be considered a serious offense by the College. All tampering and/or damage to fire equipment will result in a fine for the offender, or a fine per person on the floor where the incident occurred if no specific person is found to be responsible.

Covering a smoke detector in order to render it not operational is a serious violation of policy. In addition, disciplinary action and criminal action may be taken, including fines and increased room inspections focusing on making sure that the smoke detectors have not been tampered with. Repeated offenses may result in suspension or expulsion.

Should the student have a legitimate need to discharge an extinguisher, this action must be reported immediately to the Security Office; if found that it was a legitimate need, no fines will be assessed. In all cases, should the individual responsible for the tampering come forward, the fine is likely to be reduced but at the minimum will be responsible for the cost of replacement along with possible disciplinary and

criminal action. In addition to this, there will be two inspections of smoke detectors per year. If a smoke detector is not in place, in addition to fines, a replacement detector will be installed and the student will be charged the cost of the detector and labor at time and one-half rates.

Immediately upon moving into college housing, each resident should become acquainted with the fire exit routes, locations of extinguishers, alarms, and hall evacuation routes and procedures.

Fire Evacuation: When a fire alarm sounds, all residents are to evacuate the building according to the following procedures:

1. Notify Security immediately at (608) 363-2355, while moving to exit the building.

2. Evacuation shall be by the nearest exit. Remain calm and exit in an orderly fashion.

3. Students are to move away from the building to a minimum of 300 feet and out of the way of any emergency personnel. Each person in charge of a group (i.e. RA for their floor) should make a head count to ensure, if possible, that all persons have evacuated the building. All residents of a hall shall meet in the area designated on the hall evacuation plan as the meeting place. If a person is thought to still be in the hall, notify the security officer and they will immediately notify the fire department.

4. If you know that you caused the fire alarm, approach a security officer (once you have evacuated) and indicate where/how you think you caused the fire alarm to sound. Students are typically not fined if it appears accidental (i.e. spilled food on a hot burner in the kitchen; set popcorn time too long in the microwave causing it to smoke, etc.), unless the behavior is repeated or appears intentional.

5. DO NOT ENTER or RE-ENTER the building under any circumstances until the all clear has been given. Security will transmit the all-clear information when advised to do so by emergency personnel.

Students can be arrested for not evacuating when the fire alarm sounds, tampering with fire extinguishers and smoke detectors, and, obviously, setting fires.

Fire Hazards - No Open Flames: Any open flames, including candles, kerosene lamps, incense or incense burners, or any other open flame devices are not permitted in any campus buildings (including residences). Some classrooms may have them under faculty supervision for educational purposes.

Fire Pit (Aldrich Field): Use of the Aldrich firepit is scheduled/approved through Security (608-336-2355 or security@beloit.edu) - This is the only firepit allowed to be used on the residential side of campus. Please reach out to the SEAL Director to ensure the supplies are well stocked.

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Food Oversight Committee: This is the primary agent for feedback, evaluation, planning, and communication regarding campus dining services. This committee needs student help and input, and, therefore, invites students to share ideas and thoughts during regularly scheduled meetings. To apply for membership with this committee, reach out to the Beloit Student Government or the SEAL Director.

Residential Experience Advisory Committee: REAC operates as a point of contact and conversation between campus community members and the residential and student life staff as well as other campus leadership, as needed. Points of conversation may include service offerings, spending priorities, strategic direction, and compliance concerns. REAC represents various community members by communicating with peers and highlighting ideas for improvements. When needed, REAC may acquire relevant data, invite other administrators to participate, and identify resources to consider the feasibility of improvements and assist in prioritizing the timeline for the proposed changes.

Furniture Moving: College property, including furnishings, screens/storms, must not be removed from assigned areas without authorization from a professional Residence Life staff member (not peer Resident Assistants). Students who remove furniture or other items from their designated areas will be billed a per day fee and a per item fee for having the item returned to its original location. A student whose room is missing the original furnishings upon check out will be assessed a charge for the replacement value of these items.

Halogen Lamps: New halogen lamps with lamp guards may be acceptable, but should be kept away from window curtains.

Incense: Incense is not allowed to be burned on campus, including the residence halls.

Keys: At the beginning of the semester, at check-in, each student will be issued a key(s)/key card that will open their room and the exterior entrances to other residential buildings during “open” hours. All students must return their keys at the end of each term. Failure to do so will result in a fee for every key not turned in. Keys may not be duplicated. See below (“Lost”) for lost key/card charges.

Laundry: Clothes washers and dryers are located in the basement of most residential facilities. Problems with the equipment should be reported directly to the Wash company at 1-424-757-9195, or through their website, wash.com. Please note that all maintenance by the company will occur during Facilities office hours. There is no cost to the use of the washers and dryers.

Lock-Out Policy: Residents are expected to carry room and building keys (and IDs) with them at all times. Locked doors and attention to keys are essential to students’ personal safety and the safety of their property. In the event a student is locked out of their room during a college work day, the student should call the Residence Life Office (608-363-2350). If it is after office hours or on the weekend, the student should contact Security, who can let them in. If the student loses their key, they should contact Residence Life immediately, fill out a key replacement form, and take it to Security to have a new key cut for their room.

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Lost ID/Meal Cards/Keys/Key Card: Students who have lost their ID card/meal card/key card should report it to Residence Life and fill out a lost ID card form. Residence Life will make you a new card for free if it is your first time losing it. Additional cards will have an associated cost to the student. For lost room keys, house keys, and suite keys, there will be a replacement charge (and note that all roommates will need new keys but only the student who lost the key will be charged).

If a student wants to dine on campus and does not have their ID/meal card, the student must pay the guest meal price (with credit, food service venues are cashless). However, the student will be issued a receipt and can receive a refund, in full, if the student presents the receipt and their valid ID at the Food Service Office within 72 hours. ID cards are considered a part of your College record. Falsification or tampering with College records (ID/meal card/key card) is considered a serious offense. Violators are subject to disciplinary action, a fee, and possible loss of ID/meal card/key card.

Lost keys or IDs are to be taken to the Residence Life Office (if open) or Security and they will try to track down the owner to return it.

Lounges and Public Areas: Lounges are provided for the use of residents and their guests but are not to be used for the accommodation of overnight guests. Students are responsible collectively for the condition of lounges and common areas, such as bathrooms and kitchens, in their part of the building. The costs for repairing any damages to these common areas that cannot be assigned to a specific individual will be shared by all residents of that area of the building. For safety reasons, residents or their guests may not sleep overnight in the lounge areas.

Missing Residents: The College is obligated by law to endeavor to find residential students who are missing. If you must leave campus (even for 24 hours), make sure that your RA, or advisor, or other college official knows your whereabouts. See the complete policy.

Motorized Vehicles: No motorcycles or other motorized vehicles may be brought into the residence halls.

Noise/Quiet Hours/Sound Equipment Policy: The residents of all residence halls have the responsibility to be considerate of others at all times (24 hour courtesy hours). This means respecting another's right to sleep, study and not be disturbed. Each resident has the responsibility to confront any noise problem that is of concern to them and to call upon a RA if assistance is needed. Each floor will decide on guidelines to help maintain an atmosphere that will respect the rights of those residents who are studying or sleeping. No stereos or sound equipment should be audible outside one's room. Residence Life reserves the right to confiscate sound amplification equipment for repeated or flagrant violations of the noise policy. Again, out of consideration for others we require all residents to observe "Quiet Hours."

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Quiet Hours:

- Sunday-Thursday 10:00 pm-8:00 am
- Friday & Saturday 12:00 am-10:00 am
- During Finals week there are 24-hour quiet hours that are enforced starting on the day before the first day of Finals

Sound Equipment: Residents are always expected to keep sound equipment at a level conducive to respecting the rights of others in a community. Stereo speakers must be kept out of windows, and not played in a manner disturbing to the college or wider community. This includes Greek houses, special interest houses, and all residential spaces (including outdoor locations such as the Gazebo). All residents are encouraged to use headphones. Students are not to use their rooms for practicing musical instruments, particularly those that may disturb others.

Outdoor Areas Use: Use of the housing adjacent outdoor spaces (Aldrich Field, Chapin Quad, and the 609 Quad) for large-scale events, for example: music performances, inflatables, or temporary structure, must be approved by the Director of Residential Life. Persons planning such events must also conform to the Program, Activity, and Event Planning and the Social Host policies.

Overnight Guests: Residents may have overnight guests for up to three (3) consecutive nights. As host, you need permission from your roommate, and a guest pass from Security. You also need to notify your RA. All guests must comply with College regulations. Hosts are responsible for the conduct and behavior of their guests. (See Guests of Students)

Pets: No pets, other than fish in an aquarium (5-gallon tank, maximum), **are allowed to live on campus with students.** Residents having pets that live with them on campus may be required to have the pet removed from campus and/or be required to move off-campus (and charged the full room rate for the remainder of the semester as a result of not following this regulation). Residents who have pets living with them may also be charged a daily fine, a cleaning charge (to be determined by Facilities) for each area damaged by the animal, and may be billed for the replacement of flooring in areas damaged by their pet.

At times, off-campus people from the community, or families of students, will bring pets to campus. Those pets are not allowed in any campus building, nor on the grounds of the Stadium area, and waste must be picked up after them in the outdoor venues. Any charges for damages or cleaning are the responsibility of the pet owner, or the student, if the student is found responsible for the presence of the pet.

Note: Emotional Support Animals (as verified by LEADS) and service animals are not considered pets.

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Privacy: A student has the right to the use of their room for sleep, study, and recreation. While the right to sleep and study takes precedence over the right to recreation, roommates and suitemates are expected to cooperate with each other in the use of their room(s). A student has the right not to be affronted in their room by unreasonable noise originating there or elsewhere, or by behavior which adversely affects the pursuit of their education. Students should not be subjected to conditions which might involve them in a violation of the law. Each resident is responsible for the protection of their own personal rights as well as those of others. This includes responsibility for confronting those who abuse your rights. The RA will assist if needed but should not be expected to be the sole guardian of personal rights. If practical, the College will not enter a student room unless accompanied by the student, their authorized representative, or a second authorized College representative. The College reserves the right to enter student rooms for the purpose of inspecting the premises when an authorized agent of the College has reason to believe that:

1. an occupant of the room may be physically harmed or endangered;
2. damage is being done to the room;
3. College policy, as stated in the Beloit College catalog, Student Handbook, or subsequent written notices is being violated;
4. housekeeping, room inspection, maintenance, and/or repair is necessary.

Due to the limitations of work schedules, and in an effort to utilize Facilities staff most efficiently, workers may enter student rooms without prior notice to make necessary repairs. Workers will first knock on the door, and if the student is present, explain the nature of the visit. If no one is present, the workers will enter the room, make the necessary repairs and leave when these repairs are completed, leaving the door locked with a note indicating that they were in the room. Students do not have the right to deny access to their rooms to Facilities staff who are assigned to make necessary repairs.

Residence Hall Contracts (Housing Agreement form)/Refunds: The Housing Agreement form is a binding, academic year-long agreement. It is a contract, and as such all students are encouraged to read it carefully. Students who leave mid-semester are subject to the College Refund Policy found at: https://www.beloit.edu/offices/bursar-tuition/policies/

Residence Life Coordinators (RLCs): Full-time professional staff who have been trained to supervise student staff (R.A.s), manage the residential facilities, adjudicate policy violations, and provide information counseling/support to students. All are part of the on-call team.

Resident Assistants (RAs): Each residence hall is staffed with at least one Resident Assistant (RA), an upper-class student who has been carefully selected to act as a peer counselor, educator, social programmer, advisor, and resource for their residents. As members and leaders within the residential community, RAs have a responsibility to assist floor members in developing and maintaining an active, respectful, and cooperative atmosphere. In short, they are concerned with the personal, social, academic, and physical well-being of the students in the residence areas.

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Room Alterations/Painting/Wall Hangings/Waterbeds: Alterations of the facilities, including but not limited to, painting, building partitions, and removal of doors, are not permitted without the written permission of the director of Residence Life and Facilities. Students will be required to remove decorations or furnishings which are deemed to be a fire hazard. Construction, decoration or arrangement of furnishings that hinders direct egress from the room is not permitted. Students agree to hold harmless the board of trustees, the College, its officers, employees and agents, and to indemnify them from any claims for damages sustained by the student or others in the student's assigned room as a result of the student's acts or omissions relating to any changes or modifications made by the student to the room or furnishings, such as the construction of partitions or other structures. This clause makes the student financially responsible to the College and releases the College in the event a person who is injured by a hazard created or constructed by the student claims the College is liable for damages. Students are required to return their room to the original condition by the checkout date or a fee will be charged to the student.

Room Painting**:** Residence hall rooms are painted by Facilities painters. Any student who feels their room needs painting should contact the Office of Residence Life. After an inspection of the room, if it is judged that the room needs to be painted, Residence Life will schedule a painting time with the staff at Facilities. No room may be painted more than once every three years.

Wall Hangings: No nails, tacks, screws, hooks, or pins may be driven into the surfaces of the room or furniture. Pictures and other decorations may be mounted on the walls with artist putty, picture tape or hooks that will not damage the paint on the walls. Students may be charged for damages to walls in their room.

Water Beds: Due to the stress which they place on the floors, and the potential damage from leaks, waterbeds are not permitted in the residence halls.

Room Assignments: Fall term room assignments for new students are made by the Office of Residence Life, and are based as closely as possible on students' expressed housing preferences. All other students choose their own rooms based on credit hours during the preceding spring term. Spring term room assignments are made as space becomes available.

Room Belongings: The College is not liable for theft, loss of, or damage to student personal property housed in College facilities. Students are strongly encouraged to purchase renter's insurance for the coverage of their property.

Room Cancellations: As the Housing Agreement states, a student must inform the Office of Residence Life in writing (reslife@beloit.edu) of their decision not to return to Beloit College. [Students are also to complete an Exit Interview in the Dean of Students Office.] All students who are leaving/not planning to live on campus, for whatever reason, must notify the Office of Residence Life before July 1st for the following Fall semester and Dec. 1st for the Spring semester.

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This includes leaves of absence (vacation term), withdrawals, graduation, study off-campus or abroad, and moving off campus (when the residency requirement has been met). Failure to inform the Office of Residence Life in writing by the deadlines indicated will result in a **cancellation fee of 20 percent of one term's rate.** Moving/living off campus without meeting the stated criteria most often results in being required to pay the College full room and board and being subject to additional sanctions.

Room Changes/Switching Rooms/Changing Roommates: Any room changes must be approved by the Residence Life Office**.** For roommate or floor mate conflicts, the process begins by speaking with your roommate or floor mate. If it cannot be worked out, you must then speak with your Resident Assistant (RA) to facilitate mediation. If resolution is still not made, then you are to speak with your Residence Life Coordinator (RLC). If the situation still isn't resolved, then a room change may occur if there is space available. There are times where an immediate room change may need to happen for various reasons; those are determined by the Office of Residence Life or the Dean of Students.

Room Inventory and Damages: At the beginning of a student's occupancy of a room, an inventory of the condition of the room and its furnishings will be made by the student and the resident assistant. Blank inventory forms are available through the RA and/or the Residence LifeOffice. Within the first week of occupancy, students are to inventory the condition of their room in detail, being very specific regarding any damages present upon moving into the room. Upon checkout, the room condition will be compared to the initial inventory. Charges for damage done to the room and/or missing or broken furniture will be assessed. Those who do not submit an initial inventory should know that the room will be expected to be in perfect condition upon check-out, and there is no opportunity to appeal charges without an initial inventory. Failure to complete and return a room inventory when moving into the room will result in a charge to the student.

Room Personalization: Students are strongly encouraged to personalize their rooms. This can be accomplished in several ways:

1. Moving and arranging the furniture to fit their style and living needs. (All furniture is kept free standing and moveable for this reason.)
2. Decorate the walls with posters, pictures, etc.
3. Bring plants in to add color and a sense of home to the room.

Remember to keep in mind the policies under "Room Alterations" above.

Safety and Security: Every attempt is made to provide safe, secure buildings. All members of the residence community must share responsibility for security. All residents can help in this process by: reporting suspicious strangers to Security, keeping fire doors closed, not propping open outer doors when they are locked, and keeping room doors locked. The College cannot accept responsibility for

damage, theft, or loss of personal property. Students are encouraged to obtain insurance on their possessions. Students must never hand out their key or ID to another person for them to use.

All members of the residential community must share responsibility for security. Residents are issued a key or key card for the exterior doors to their building. Key cards normally allow access from 10:00 a.m. – 10:00 p.m. After that time, only the building assignment card will open the doors. These hours are subject to change.

> Room Safety**:** When someone knocks on your door, ask who it is and check the person, using the door viewer provided, before responding. You should keep your room door locked at all times. Each student is encouraged to record the serial numbers of all valuable items. It is also advisable to make special arrangements for the protection of valuables when absent for extended periods. The protection of personal property is the individual's responsibility.

For additional information and policies regarding safety and security go here.

Smoking/Vaping: Smoking and vaping **are not allowed** in any building on campus, including residence halls. See the Smoking/Vaping policy for additional details.

Solicitation: Salespersons are prohibited from selling in residence halls and from door-to-door solicitation unless they have written authorization from the Director of Residential Life. No one is to place flyers on cars or mark cars parked on campus in any way.

Space Heaters: Space heaters are not allowed in residence spaces due to the fire danger they present. If your room is too cold please fill out a work order (Asset Essentials) request via the Portal or contact your RA for assistance.

Storage: Storage areas for student belongings are available only in Whitney and Porter Hall and for those students that are either international students, live more than 1,000 miles away, or are going abroad for the semester. Storage is on a first-come, first-served basis. Students are allowed to store up to five bins and all must be clearly labeled with their name, class year and box number.

Vending Machines: Vending machines are conveniently located in several residence halls. Additionally, more machines are available in the Powerhouse,the lower level of Pearsons Hall, and on the first floor of Morse Library Problems with the equipment, including refunds, should be reported using the contact information listed on the machine.

Weapons and Explosives: The use and/or storage of any weapons, firearms, ammunition, or explosives of any kind in the residence halls are strictly prohibited. Laboratory chemicals and fireworks also are not permitted in the residence halls. (See: Weapons.)

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Fines: The following is a list of the most common fines and fees for replacement and repair of certain items or damages. This list is not exhaustive. In most cases not listed here, the fine or fee should be assumed, at minimum, to be the cost of replacement or repair.

Lock changes due to lost/stolen keys	**$60 per lock**
Building Entry Key replacement	**$30**
Lost ID replacement	**$25**
Obstructed/tampered smoke detector	**$200**
Damage to residence hall walls	**At cost of repair**
Room cleaning fee	**$100**
Other cleaning fees	**At cost**
Unauthorized use of air conditioning and other equipment	**$100, plus cost of repair or remediation**
Wanton destruction of property and equipment	**At cost of replacement**

3. Continuing Student Enrollment, Housing, and Accounting Holds

Payment Responsibilities
Once a student is enrolled at Beloit College, the student is responsible for paying all tuition, fees, and other charges assessed to their student account. All charges added to a student's account before the semester payment deadline must be paid by the semester payment deadline published on the Beloit College website. Charges assessed after the semester due date must be paid by the date specified on the student's billing statement or other notice from the College.

Accounting Holds
If payment is not received by the specified due date, or payments are not made per the approved payment plan agreement, an Accounting/Enrollment hold will be placed on the student's account.

All students must resolve Accounting/Enrollment holds before they may:

- Move into the Residence Halls
- Participate in the room placement for the following academic year
- Register for courses
- Attend classes
- Participate in any co-curricular activities

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Resolving Accounting Holds
A student may resolve an Accounting/Enrollment hold by contacting the Student Accounts Office to determine the nature of the hold and the actions required to address it. Required actions may include, but are not limited to:

- Paying the outstanding balance in full
- Securing sufficient outside funding to pay the outstanding balance in full
- Establishing an approved payment plan
- Completing outstanding financial documents (if applicable)

Students Already Living on Campus
Students who are already living in the Residence Halls due to summer housing or co-curricular activities must clear an Accounting/Enrollment hold no later than one week before the first day of classes. Students who do not meet this deadline will be required to move out of the Residence Halls and may not attend classes or participate in co-curricular activities.

In some cases, the Student Accounts Office may provide written authorization for a student to live or remain in campus housing while following an approved action plan. Participation in co-curricular activities may be approved in the action plan, depending on the unique situation. The student must receive this permission before moving into or continuing to live in the Residence Halls.

International Students
Failure to enroll in classes may negatively impact international students' status in the United States. For more information on how this affects their status, please contact the International Student Advisor.

Other Enrollment Holds
Students may have other enrollment holds for reasons unrelated to an outstanding balance. Students with these holds must contact the Dean of Students Office and develop an action plan based on the nature of the hold.

H. Mail Center

The mail center serves two primary functions: (1) as a central mail distribution center for the U.S./International mail and packages delivered to campus. As such, regular postal rules apply to all stamped mail. Any questionable stamped mail will follow the U.S. postal procedures for follow up inquiry; (2) as a College service for inter-campus mail. Incidents reported to mail center staff or by mail center staff will follow the normal campus investigation/disciplinary process.

The Campus Mail Center also retains the right to add additional policies and procedures, given the nature of our on-campus facility and staffing. Students are to make sure that mail and packages include their proper name and their student box number to ensure that their mail and packages are delivered in a timely manner and to the correct person.

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Relevant Campus Policies and Procedures

Handling of Questionable Mail:
Mail received at the Mail Center which is sealed and properly addressed will be distributed to the appropriate mailbox(es) as long as there is no outward indication of any inappropriateness. Examples of inappropriateness include but are not limited to: obvious food/candy in the envelope, hurtful/hateful message on the envelope or in the address, graphic nudity on the outside of the envelope.

Mail which arrives at the Mail Center which can be readily seen (not sealed in envelope) by Mail Center personnel to contain questionable content will be referred to the Dean of Students, Student Engagement and Leadership or Residence Life Office for approval/disapproval prior to distribution. If a mail patron receives what they consider offensive or solicitous mail and a complaint is made to the department, any similarly appearing pieces will be delayed in processing pending a decision on appropriateness from the Student Engagement and Leadership or Residence Life Office.

Items which are reviewed and deemed inappropriate will be returned to the sender if the sender is known and the return is approved. Inappropriate items with no known sender will be discarded. Candy and foodstuffs of any type in campus mail are prohibited by health code. Should these items be discovered, either through outward appearance, or through information that similar envelopes or packages are being sent, the items will be returned to the sender (if known) or discarded (if not known).

Misaddressed Mail Handling:
Campus mail which is addressed incorrectly for proper name and/or box number will be returned to the sender if there is a return address. If there is no return address on the mail piece(s), the Mail Center Manager will open the mail and attempt to identify the sender. If successful, the mail will be returned along with a note indicating the mail piece(s) had to be opened for that purpose. If the sender cannot be identified, the mail will be held for 10 days to give the sender time to claim the mail. If no one has identified and claimed the mail in 10 days, it will be discarded. Should, in the course of this process, questionable content be discovered, the mail will be directed to the Dean of Students Office for review and a determination of its status.

Students on Leave of Absences (Vacation Term) or that Withdraw from the College:
Students who leave the college temporarily or permanently are to provide the Mail Center with an address where their first-class mail may be forwarded. Students on leave or withdrawn are also to remember to make sure to change their package deliveries to a non-college address. Students who are on Vacation Term will maintain their same college mailbox (for when they return). Students who withdraw will no longer have access to a college mailbox.

Campus Stuffings:
In the rare event that a student or student group wants to put paper mail flyers or envelopes in individual mailboxes, they must first be approved by the Student Engagement & Leadership Office. Generally, stuffings will be approved if they are deemed to be campus-life related and are not

offensive or solicitous in nature. Stuffings from political or religious groups, other non-College organizations and/or businesses are typically not permitted in campus mail regardless of whether or not a student or students are members of the group/organization. Exceptions must be approved by both the Dean of Students and the Vice President for Finance and Planning.

I. Motor Vehicle, Parking, and Parking Permits

In order to park in College-owned/managed parking spaces, all motor vehicles must be registered with Security (see parking policy below and https://www.beloit.edu/offices/security/campus-city-parking/). Once registered, Security will make every attempt to notify students if their vehicle is involved in an accident, found with its lights on, or any other legitimate need. Security will make a reasonable attempt to notify the student before towing for illegal parking, unless the vehicle is parked in a tow-away zone (fire lane, reserved space, disabled stall, etc.). Students are to observe signage regarding restricted parking, including "faculty/staff only" parking sections, "residence life staff" parking spaces, and "20 minute parking" spots. Failure to comply may result in tickets and, if necessary, towing the car.

Vehicles parked illegally (including parking on campus without a permit) will be ticketed by Security. There is a fine for general violations and double the fine for parking in handicapped spaces. Tickets must be paid within 30 days and may be paid in the Security Office. After 30 days, the fine will double and the charge will be added to the student account. NOTE: If a permit is purchased at the time a fine is incurred, the fine is waived. This is subject to permit availability.

Motorized vehicles may not be taken into residence halls and may not be operated on sidewalks or grass areas. Motorcycles may be pushed on sidewalks or paths to put them in sheltered or secured areas. Motorcycles are not to be parked under the Blaisdell/Whitney covered walkways.

Students may only park only in areas designated by Campus Security as Student Parking if they have purchased a parking permit. This includes the off-street parking spaces in front of Whitney, Blaisdell, and Bushnell Halls; along College Street from Emerson to Clary Streets; the parking areas behind 811 College Street; parking west of FemCo, east of Morse Library, the Powerhouse lot, and the Aldrich Parking lot. Students should also observe "no overnight parking" signs.

Any vehicle parked in a fire lane or on the grass will be subject to towing at the owner's expense without notice. [Except at the Stadium during athletic events when directed to do so.] Vehicles parked in undesignated or otherwise inappropriate areas may be ticketed by Security. If a significant number of tickets are issued to a particular vehicle or owner, their vehicle may be towed without notice and at the student's expense. Students should also be aware that city ordinance gives the Beloit Police the authority to ticket and/or tow vehicles illegally parked in handicap parking areas (on campus and off).

Parking on public streets is regulated by the City of Beloit's alternate overnight parking ordinance excerpted below:

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What is alternate overnight parking? *The City of Beloit has an ordinance for alternate overnight parking. This is year round – not just in the winter. You must park on the even numbered (house numbers) side of the street on even numbered calendar days. This is in effect from 12:00 midnight until 7:00 a.m.*

For example: You park your vehicle on Sept. 1 at 7:00 p.m. You should park on the even numbered side of the street as enforcement will occur after midnight of the next day's date, which would be Sept. 2. Some months have 31 days – if you park your vehicle on the 31st, you need to park on the odd side of the street because the next day is the 1st, another odd numbered day.

Call the Municipal Court at (608) 364-6613 if you have any further questions.

Exceptions to this section shall be:

- ***a.*** *Where parking is permitted only on one side of the street, as indicated by official traffic signs to that effect. All vehicles shall obey such traffic signs and only park on the side of the street permitted by such traffic signs;*
- ***b.*** *In the central business district, where there shall be no parking from 2 a.m. to 6 a.m. on either side of the street.*

The Beloit Police Department can ticket or tow away any motor vehicle found in violation of this section with or without the assistance of Beloit College Security depending on where the vehicle was found. The owner or operator of a vehicle removed under this subsection shall be liable for the costs of such removal and the person having removed the vehicle may retain possession of the vehicle until the cost of towing has been paid.

Permits

Students must register their vehicles and purchase a parking permit in order to park in on campus Student Parking lots. (See locations above.) A parking permit is available annually or per semester. Motorcycles will share designated spots and each will pay per semester for this space and is subject to change. More information on College parking and the amounts for permits can be found on Security's Campus & City Parking page.

Policy rationale

Parking lots require regular maintenance, snow plowing and eventually, resurfacing, restriping, and seal coating. The parking permit fee enables students who use the lots (~ 300 students) to directly support the maintenance and upkeep of these areas. Parking permits also enable Security to contact students if something is wrong with their car, such as the lights are on, gas is leaking, or the alarm is sounding.

Process to secure parking permits

The parking permit application can be found in your Student Portal. If you are a new student, look for the Parking Permit link under the *New Students* tab. If you are a returning student, check the

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Student Life tab. If you need help finding it or have other permit related questions, please call Security at 608-363-2355 between 8:00 a.m. and 4:00 p.m., Monday-Friday.

Returning Beloit College students who apply for a parking permit will be approved week by week using seniority and a first-come first-served basis. Seniors will be eligible first from June 1st - 7th, then Juniors from June 8th - 14th, then Sophomores from June 15th - 21st. On June 22nd, any remaining permits will be issued on a first-come, first-serve basis to all students until they are gone. These quickly run out when Security starts to enforce parking, so be sure to apply for your permit as early as possible.

Your permit sticker should be placed on the driver's side rear window unless tint prevents it from being easily visible. If that's the case, place it where it can be clearly seen - such as the front windshield.

Security carefully tracks the number of student parking spaces and only sells that exact number of permits to avoid issues with permitted students not being able to find parking spaces on campus.

Summer and Semester Breaks Please email Security with your first/last name, vehicle information, and an emergency contact number if you plan to stay on campus during the break or are leaving your car on campus during the break. While we don't require permits for students during breaks, we may still need to contact you about your vehicle in the event of an emergency.

Students who purchase a permit will have the fee added to their student account at the time of purchase and can pick up their parking permit from the Security Office. Fall permits will roll over into spring term and the corresponding spring fee will be added to the student account. Any available permits at the start of spring term will be distributed on a first-come, first-served basis on the first day of class. All permits expire after the spring semester of each school year.

Refunds

Students who return their parking permit to the Security Office may be eligible for a refund of the billed fee.

- In the event that a student leaves during the semester, the fee will be refunded following the normal refund schedule.
- Students who leave at the end of the fall term AND return their permit to Security will not be billed for spring term parking.

Enforcement

This policy will be most closely enforced from midnight to 7 a.m.

Guests and special events/times:

- Guests must park on the streets around the campus and should pay attention to the alternate side parking ordinances enforced by the city. Guests (non-students) who receive College tickets will have 72 hours to contact Security to discuss the circumstances that may have generated the parking ticket. The student host of registered guests may become liable for the campus parking ticket.

- Permit enforcement does not occur on days where guests are expected on campus in great numbers, such as move in/move out days, homecoming, family visit days, and alumni events.
- In the event of a violation of the permit policy, call Security to notify them so that they can attempt to contact the owner or ticket the vehicle.

How violations will be handled

See the Motor Vehicle policy above for information on how violations will be handled.

J. Political Activity

As a tax-exempt organization under section 501(c)(3), Beloit College is prohibited from participating or intervening in any political campaign on behalf of or in opposition to any candidate for public office. This includes making financial contributions directly to a candidate or making statements in favor of a particular candidate (see Code § 501(c)(3); Treas. Reg. § 1.501(c)(3)-1(c)(3)(iii)). Whether an organization has participated or intervened in a political campaign is a facts and circumstances analysis. However, this prohibition is not intended to restrict free expression on political matters by individuals (see Rev. Rul. 2007-41). Additionally, the presentation of public forums or debates is a recognized method of educating the public (see Rev. Rul. 66-256, 1966-2 C.B.).

Academic institutions serve as forums for political debate and encourage participation in the political process. As educational organizations under section 501(c)(3) of the Internal Revenue Code, however, colleges and universities are strictly prohibited from intervening in a political campaign. This prohibition is absolute and impermissible participation jeopardizes an institution's tax-exempt status. Accordingly, it is very important that all political activity at Beloit College occur within the boundaries for permissible political activity. (**Note**: Beloit Student Government elections are not subject to the Political Activity Policy.)

Students should note that willful interference with any sanctioned campus activity, including political debate, forums and similar programming, in a manner aimed at preventing such activities from occurring may face disciplinary action, up to and including restitution to the host, suspension or dismissal from the College.

1. Candidate Debates and Forums

Beloit College maintains a neutral stance on political campaigns, does not publicly or privately endorse candidates campaigning for political office and does not intervene in any political campaigns. In some instances, the College sponsors forums, debates and information sessions where campus and community members can hear the candidates and their platforms, thus becoming informed and engaged citizens on election day. The College or its constituent groups—students, faculty, and staff—may invite candidates to campus to speak, providing they

follow the policies and guidelines outlined under the Program Presentation Policy listed in the Student Handbook and the Administrative Policy Manual.

These events occur in fair and neutral forums with equal time provided to all qualified candidates. Presentations must not be biased, and must permit an individual or the public to form an independent opinion or conclusion. To that end, all such events begin and end with a clear statement that the views presented are those of the candidates and not of the sponsoring organization. The College reserves the right to set the time, manner and place for all political events hosted on campus and may limit such events if there is a potential for violence or harm to the institution or members of the campus community.

2. Use of Facilities

Individuals or groups may rent facilities from the College for political campaign activities. Facilities are equally available to all candidates and political groups and on the same basis as they are made available to nonpolitical groups or individuals. If rents or fees are charged, they are charged equally with no preferential treatment. In no situation will the College endorse or promote a political party, political candidate, or political event held on campus.

3. Individual Activities

Although the College maintains a neutral stance on political candidates and issues, students, faculty and staff are encouraged to be knowledgeable about and engaged with the political process by running for office, campaigning for the candidate(s) of their choice and, most importantly, voting during local, state and federal elections. All such participation, however, is individual political activity and not on behalf of the College.

So, to the extent Beloit College provides institutional support for student political groups, each group and its associated faculty advisor should take steps to ensure the following:

- Student political groups should be treated equally by the College;
- Beloit College's name or insignia should not be used on stationery or other documents intended for political purposes;
- Student groups should not use university-provided funds or resources to make any campaign contribution or independent expenditure on behalf of a candidate (note that student groups may, however, use funds to support their own activities and views on public policy issues and other interests);
- Student groups intending to host a candidate at any official event should seek approval from the College prior to hosting the event;
- No political fundraisers should be held on campus or using College resources;

For all partisan political campaign events held on campus, student groups are required to include a disclaimer in all written materials and advertising and announced at the beginning of all events: "Beloit College does not support or oppose any political candidates. The views expressed are those

of [the candidate or other partisan political speaker] only. The [student group] is sponsoring this event."

All individual political activity should avoid being attributed to the College itself. That is, no resources of the College should be used in connection with individual political activity. Moreover, an individual should take steps to ensure that the activity is clearly personal in nature and should not use either a College address (unless a residence), nor College job position when engaging in individual political activity. There must be a clear separation from a perceived College sponsorship. Political mailbox stuffings nor using college wide email are not allowed.

4. Political Campaign Signage

Because Beloit College is primarily a residential college, students living on campus have the right to express their opinions and preferences for political candidates and are encouraged to do so, although that right must be balanced with the College's interests in remaining viewpoint neutral and not intervening on behalf of any political campaign. The College also seeks to maintain a campus environment that promotes non-violence, civility, and personal responsibility. In balancing those interests, the following policies apply to campaign signs on the Beloit College campus:

Placement and removal

- In residence halls, students may place signs on their residence hall room door, in their window(s) and in their rooms.
- For special interest, language and Greek houses, up to two standard size campaign signs may be displayed on the lawn in front of the house if the group residing in the house has a two-thirds vote to endorse a particular candidate. The vote is to be taken from the residents that reside within the residence, not the entire membership of a club, special interest or Greek house.
- For larger residence halls, one standard size sign per candidate may be displayed outside on the quad side of the building so long as the signs do not interfere with building access, recreational activities, or pathways. To display a sign in front of a residence hall two-thirds of the residents must support the candidate. A student must obtain signatures from two-thirds of the residents in the hall. The signatures and sign must be brought to the Residence Life Office to be approved and stamped.

Campaign signs displayed in locations other than those described above are prohibited and will be removed. Students are responsible for the timely removal of permitted signs and for any damage resulting from displaying campaign materials.

Disclaimer

Like all political participation, the use of political signs must be undertaken in an individual capacity, without any use of the College's resources, and not in a way that it may be attributed as intervention by the College on behalf of a candidate. To that end, all campaign signs displayed on the lawn in front of a house or outside a residence hall must include a statement on the face of the

sign clarifying that the sign is a statement of individual support and is not an endorsement by the College of any candidate or committee.

Individual political activity on campus should always contain the disclaimer on a sign which is at least 4x11 inches, and must read as follows:

This event/brochure, etc. is an individual statement of support by [insert name of individual or group of individuals], without use of any Beloit College resources, and it should not be construed as support or endorsement by Beloit College for any candidate or elected official.

K. Safety and Security

Student cooperation with campus security is required to establish an environment which allows safe and unencumbered movement of persons on campus while maintaining a high degree of access to College grounds and facilities for townspeople and other guests of the College community. Action clearly intended to violate such security policies as may be instituted will result in judicial action.

The College construes performance of the following acts as constituting violation or attempted violation of the security policy and is grounds for judicial action:

1. Destroying locks on campus buildings.
2. Willful harassment of security officers.
3. Removal, destruction, or defacement of posted signs.
4. Failure to show a College ID card or to obtain one when requested by a member of the College faculty or staff, particularly security staff acting in the performance of their duties.
5. Personal harassment, physical or verbal abuse against any officer during the performance of their duties.

The responsibilities of College security staff are:

1. The protection of persons.
2. The protection of property.
3. The protection of the integrity of the College.

The Security officers have the authority to request all persons on College property to show identification cards or passes. In addition, because of their special role at the College, Security officers are forbidden from having amorous, romantic, or sexual relationships with Beloit College students.

Beloit College is a private institution, and all College-owned or controlled property is private property. The College may designate certain buildings, facilities, or outdoor areas as open to the public for specific events or purposes; however, such designation does not convert the property into public property or create a general right of public access.

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College buildings are closed to individuals who are not current students, employees, contractors, trustees, or authorized guests, except as otherwise designated by the College. Members of the public who are not authorized or invited to be on College property or grounds may be directed to leave at any time. This includes individuals seeking access for personal, professional, governmental, or other purposes including law enforcement personnel who do not have authorization or lawful authority to be present on College property. Individuals who refuse to leave when asked may be trespassed and subject to local laws..

1. Emergency Notifications & Community Alerts (Timely Warnings)

The Safety and Security Office is the primary office which sends “Rave Alerts,” also known as “Emergency Notifications,” via the Rave Alert mass notification system. We utilize email, text, and phone calls to alert our campus about an active and immediate threat to the life safety of campus. The College uses the CLEAR framework when determining whether an Emergency Notification should be issued.

- C – Confirmed
- L - Life-threatening
- E - Emergency
- A - Active (or Imminent)
- R - Reportable Geography (on our campus or public property directly adjacent to it) at large.

The Safety and Security Director, Emergency Operations Center Manager, Dean of Students, Human Resources Director, and other Senior Leadership may be involved with the decision to send a Rave Alert if there is ample time to consider whether the threat is truly CLEAR. We will only send out an “ALL-CLEAR” alert if we already sent a Rave Alert, and only once it is reasonably safe to resume normal activities.

The College also issues Community Alerts, also known as Timely Warnings, through email communications using the [Safety] tag. These notifications are intended to inform the College community about Clery-reportable crimes or other safety concerns that represent an ongoing or continuing threat within the College’s Clery Geography, even when the threat is not considered an immediate or imminent danger to life.

Not all crimes or hazardous incidents will result in a Timely Warning. Timely Warnings are issued when they are determined to be appropriate and likely to assist in protecting the campus community or preventing similar incidents. Decisions regarding whether to issue a Timely Warning are made on a case-by-case basis and typically involve the Director of Safety and Security in consultation with appropriate College officials, such as the Dean of Students or Human Resources Director.

2. Guests of Students

Any guest(s) of a Beloit College student must have a guest pass while on the College campus or attending College events. Guest passes are available from the Campus Security Office on the lower level of Pearsons Hall. College administration and the Security Office reserve the right to refuse or revoke a

guest pass without prior notice. Violators of the Guest Pass Policy are subject to prosecution for trespassing. Please be sure to follow the guidelines listed below.

1. Only Security can issue Guest Passes.
2. Both the sponsor and their guest must come to Security together. They both must show photo IDs. A maximum of four (4) guests per student is allowed. No exceptions.
3. Guests are expected to stay with their host. (Noting the three-day limit for guests.)
4. Hosts are responsible for the conduct and behavior or their guest(s).
5. The sponsoring student must personally know their guest(s) and will be responsible for their guest's conduct, including adherence to student regulations and consideration for the rights of others.
6. Guests must have their passes with them at all times and are required to present them on request.
7. Passes are valid for a period of three days. If further visitation is desired, Security may renew the pass for a maximum of three extra days. Any extension beyond those three extra days must be approved by the Office of Residence Life after consultation with any roommates, if applicable.
8. Guest passes ARE NOT required for families of enrolled students during a daytime visit. Guest passes ARE required for families of enrolled students if they stay overnight on campus.
9. Graduates of Beloit College may be issued a guest pass upon request without a sponsor.
10. Guest passes will not be issued to anyone under the age of 18, unless they are a younger sibling of an enrolled student.
11. Former students who withdrew in good disciplinary standing may be issued a guest pass with a sponsor.
12. If there is an admission fee to an event for non-students, the guest will be expected to pay such a fee.
13. Guests must park on city streets, and must observe alternate side parking. Guests may park in campus parking lots with permission from security.

Entertainment passes-Coughy Haus/Bands/Entertainment

Frequently bands and hired professional entertainers will request entertainment passes for family, friends, crew and record label visitors. Students are not allowed to sponsor these "guests of the band." The number of "visitors" each entertainer is allowed will be specified at the time of the contract. All contracts must be reviewed, processed, and approved by staff in the Office of Student Engagement and Leadership. The entertainer's visitors will be issued an entertainment pass to the Coughy Haus or place of venue which allows them access only to the location of their performance, not campus parties, etc. Since students do not know these individuals, it is a violation of the campus guest policy to list them as your personal guests. In addition, off-campus attendees, unless known by the student personally, cannot be sponsored by a student. Violation of either of these policies is subject to disciplinary action and the full range of sanctions (see Judicial/Hearing System). Entertainers may not publicize their performance(s) in newspapers, press releases, the internet Web, etc. to avoid problems with unexpected and uninvited off-campus audiences.

Can townspeople or high school students come in to hear a great band in C-Haus?

No, to both. A student (and current faculty and staff members) can always invite guests, but any non-student attending an event or party, even outside of the Coughy Haus, needs a guest pass issued by the Security Office, and signed by the student taking responsibility for hosting that individual. High school students are minors and cannot be in a facility with the sale of alcohol, ever.

3. ID (Identification)

All students are required to possess a valid Beloit College identification card and carry it with them at all times on campus. IDs are for the student's security and convenience on campus, and are often required for admission to events and for the use of many facilities. They are not transferable. Students who loan their ID to access food service are in violation of this policy. Students are required to show their IDs promptly at the request of any College faculty or staff member or security officer. The ID card is your permit card and should not be altered or tampered with in any fashion. Misuse and/or tampering/altering of an ID card may subject a student to disciplinary action. Again, this policy is for the protection of each student's safety. Students who lose their ID card should report the loss to the Residence Life Office on the 1st floor of Porter Hall; a replacement ID card/key card will be made and the student will be charged.. The ID card is the property of Beloit College.

4. Missing Resident Policy

If a member of the College community has reason to believe that a student is missing, contact Security at (608) 363-2355 immediately.

In compliance with the Higher Education Opportunity Act (2008) Missing Student Notification Policy and Procedures, it is the policy of Beloit College to actively investigate any report made to Security about a missing resident who is enrolled at the College and resides in on-campus housing.* Each student will be notified of the Missing Resident Policy and Procedures via this Student Handbook.

A student may be a "missing person" if the person's absence is contrary to their usual pattern of behavior, or unusual circumstances may have caused the absence. Such circumstances could include, but not be limited to, a report or suspicion that the missing student is in a life-threatening situation, has been with persons who may endanger the student's welfare, has trouble with medication, drugs, or alcohol, has expressed suicidal thoughts, or may be the victim of foul play.

Each student is required via the emergency notification information form to identify the name and telephone number of the individual(s), a primary and secondary contact, to be notified in case of emergency or in the event that the student is reported missing. In the event the student is under the age of 18 and is not emancipated, the College is required to have the primary emergency contact be a custodial parent or guardian.

Upon receiving notification, Security, Residence Life, the Dean of Students Office and other applicable College personnel will make reasonable efforts to locate the student to determine their state of health and well-being. These efforts may include, but are not limited to, checking the resident's room, class

schedule, and ID card use; talking with faculty and advisors, friends, floormates, teammates, etc.; attempting to locate the resident's vehicle, viewing security camera footage, and calling the student's cell phone number if one is on file with the College.

At any point during the investigation of a resident believed to be missing, the College may communicate with emergency contacts to help determine the whereabouts of the resident. If the student is under 18 years of age, a College representative may contact the custodial parent or legal guardian.

If upon investigation by Security and staff the resident student has been determined to be missing for at least 24 hours, the following will occur:

1. A College representative will attempt to notify the resident's designated emergency contact.
2. If the student is under 18 years of age, a College representative will contact the custodial parent or legal guardian.
3. Security will inform the appropriate law enforcement agency.

Investigation will continue in collaboration with law enforcement officers as appropriate.

***NOTE**: In order to avoid jurisdictional conflicts when an off-campus/commuter student is believed to be missing, the reporting person should notify local law enforcement authorities and Campus Security. College staff will assist the police with their investigation.

In keeping with "Bryan's Law," Beloit College will promptly investigate any reports of students missing from campus. Security will check the student's room and immediately known habitats and will not delay in notifying the Dean's staff member on call. The Dean's staff member will notify parents, guardians, and the local police authorities if this initial check should be unfruitful. It is both our policy and procedure to not "sit on information."

5. Security Camera Guidelines

Purpose

Beloit College is committed to enhancing the quality of campus life by integrating the best practices of safety and security with technology. Video camera utilization is a critical component of a comprehensive security program. Camera coverage of public areas is intended to deter crime and violations of campus policy while providing College security and others a valuable resource for investigating crimes and other incidents that have occurred on campus.

The most up to date guidelines and policies regarding installation procedures, locations, viewing, retention, and release can be found online here (Security Camera Guidelines).

6. Roofs/Ledges

Because of the danger involved, students are not permitted on roofs or ledges of any building except for the Science Center, when authorized or open for events. The College has a limited warranty, and any

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student found on a roof may void this warranty. Any student found on a roof will be fined and may have additional sanctions applied.

7. Severe Weather/Tornado Plans

At various times during the year, we may have a severe weather alert and/or a tornado watch/warning (especially in the spring months of March, April, and May). It is important that all students be aware of any severe weather conditions. These warnings are only sent after a tornado or destructive storm has been confirmed, and the NWS has issued an alert for the City of Beloit. Rock County will sound their tornado sirens for a three- to five-minute period to alert all residents of the County, whether or not the warning affects the City of Beloit.

Security will send out Rave Alerts via email, text message, and phone call if a Tornado Warning affects the City of Beloit, and will only send out the All-Clear message after the National Weather Service (NWS) alert has expired. Security will use their best judgement on whether to send out an alert for the Severe Thunderstorm Warning or other severe weather. If they do, they will send out an All-Clear message after the NWS has expired, or the severe weather has passed. Rock County will not sound an all-clear siren or message.

All students are to follow the directions sent via Rave Alerts. For severe weather, students are to move to an area of safety typically the lowest level in an interior room or hallway of the nearest building, away from windows and doors. You should remain in a place of safety until the NWS alert expires, or you receive an All-Clear text from the college.

You can view any NWS alerts which may affect the City of Beloit here: https://forecast.weather.gov/product.php?site=NWS&issuedby=MKX&product=HWO.

Rock County Outdoor Warning Siren System Testing Information:

- Occurs on the First Wednesday of each month at 12:05 PM, April thru October.
- Steady tone of only 2 minutes
- Sirens are **not** tested when inclement weather is being experienced within the County.

8. Emergency Phones

Emergency phones are located across campus to allow ready access to Security and other services in the event of an emergency. Phones include blue-light towers and telephone boxes attached to the walls of buildings. The most up to date Emergency Phone locations and maps can be found online at: https://www.beloit.edu/offices/security/emergency-numbers-phones/

Press the red round “Emergency” button on an emergency phone and it will automatically call Security. You may also dial any four-digit campus extension you wish to reach.

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Students are encouraged to use these for issues where they might not have their phone with them, like lockouts in severe weather, or to notify Security about a non-emergency.

Please take a moment to familiarize yourself with the locations of the emergency phones around campus on the map and list below.

North Campus Emergency Phone Location List

- **703 Emerson**: Blue light tower in the west lawn, near the street corner.
- **820 Clary**: Blue light tower in the north-east lawn.
- **Aldrich Hall**: Blue light tower in parking lot west of building.
- **Chapin Hall**: Telephone box attached to the wall next to the south (main) door.
- **Coughy Haus (C-Haus)**: Blue light tower in the north-west lawn, near the street corner.
- **Moore Hall**: Blue light tower in the parking lot north of the building.
- **Sports Center**: Blue light tower in the parking lot northwest of the building

South Campus Emergency Phone Location List

- **600 Block of Pleasant Street**: Blue light tower along the east sidewalk leading up to campus from downtown.
- **Arts Center**: Blue light tower in the east walkway, between Neese Theater, Wright Museum, and Logan Museum.
- **Eaton Chapel**: Blue light tower on the west lawn behind the building, near Campbell Hall.
- **Feminist Collective**: Telephone box attached to the wall next to the east door on the porch.
- **World Affairs Center**: Blue light tower on southeast lawn, off the sidewalk on College Street.

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L. Sexual Harassment and Associated Grievance Procedures

Section 1. General Prohibition of Discrimination on the Basis of Sex

Beloit College (the "College") does not discriminate on the basis of sex in in its education programs or activities. Title IX of the Education Amendments Act of 1972 ("Title IX"), its regulations, and certain other federal and state laws prohibit discrimination in such a manner. Under Title IX, discrimination on the basis of sex includes sexual harassment.

Title IX's requirement not to discriminate in any of the College's education programs or activities applies to both students and employees and extends to both admission and employment. Inquiries about the applicability of Title IX and its regulations to the College may be referred to the College's Title IX Coordinator, the Assistant Secretary for Civil Rights of the United States Department of Education, or both:

Title IX Coordinator	Assistant Secretary for Civil Rights
Gloria Bradley 608-363-2617 700 College St. Beloit, WI 53511 titleix@beloit.edu	U.S. Dept. of Education Office for Civil Rights 400 Maryland Ave., SW Washington, D.C. 20202-1100 1-800-421-3481; 1-800-877-8339 (TDD) 202-453-6012 (Fax) OCR@ed.gov

The College is committed to creating and sustaining an educational and working environment that is free from discrimination on the basis of sex. If you experience discrimination on the basis of sex, you are strongly encouraged to utilize the various on-and off-campus resources available to you, including the resources identified under this Policy. To the extent that any other College policy regarding discrimination or harassment on the basis of sex (as defined by Title IX) conflicts with this Policy, this Policy shall control.

Effective August 14, 2020, all reports or complaints of sexual harassment and all reports or complaints containing an allegation of sexual harassment shall be processed under this Policy.

Title IX Coordinator

The College has appointed a Title IX Coordinator to coordinate the College's efforts to comply with its responsibilities under Title IX. As of this Policy's most recent revision, the Title IX Coordinator's name and contact information are as follows:

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Gloria Bradley
Title IX Coordinator
700 College St.
Beloit, WI 53511
titleix@beloit.edu
608-363-2617

The Title IX Coordinator's name and contact information shall be provided to all applicants for admission, applicants for employment, students, employees, and any professional organizations required to receive notice under Title IX and its regulations. The Title IX Coordinator's contact information shall be prominently displayed on the College's website and in each handbook or catalog made available to the above-identified individuals and entities.

Any person may report sex discrimination, including sexual harassment, to the Title IX Coordinator by mail, telephone, or by electronic mail, using the contact information listed above or by any other means that result in the Title IX Coordinator receiving the person's verbal or written report. Reports can be made to the Title IX Coordinator at any time, including during non-business hours.

Education Programs or Activities

Education programs or activities include locations, events, or circumstances over which the College exercises substantial control over the respondent (the person against whom the complaint is filed) and the context in which the sexual harassment occurs. This includes, but is not limited to, all on-campus activities, dormitories and official student housing, and College-sponsored or College-sanctioned sporting and team events.

Education programs or activities also include any building owned or controlled by a student organization that is officially recognized by the College. This includes, but is not limited to houses owned or controlled by the College's recognized sororities and fraternities.

While Title IX does not recognize study abroad programs as education programs or activities, the College reserves the right to process such complaints of discrimination on the basis of sex (including sexual harassment) under separate policies and procedures, including, but not limited to, the policies and procedures set forth in the Beloit College Student Handbook and Beloit College Administrative Policy Manual.

Sexual Harassment

Discrimination on the basis of sex includes sexual harassment. Sexual harassment is defined as conduct on the basis of sex that satisfies one or more of the following:

- A College employee conditioning the provision of an aid, benefit, or service of the College on an individual's participation in unwelcome sexual conduct;
- Unwelcome conduct determined by a reasonable person to be so severe, pervasive, and objectively offensive that it effectively denies a person equal access to the College's education program or activity; or

- Sexual assault, dating violence, domestic violence, or stalking.

Sexual assault is defined as an offense classified as a forcible or nonforcible sex offense under the uniform crime reporting system of the Federal Bureau of Investigation.

Dating violence is defined as violence committed by a person who is or has been in a social relationship of a romantic or intimate nature with the victim and where the existence of such a relationship shall be determined based on a consideration of the length of the relationship, the type of relationship, and the frequency of interaction between the persons involved in the relationship.

Domestic violence is defined as felony or misdemeanor crimes of violence committed by a current or former spouse or intimate partner of the victim, by a person with whom the victim shares a child in common, by a person who is cohabitating with or has cohabitated with the victim as a spouse or intimate partner, by a person similarly situated to a spouse of the victim under Wisconsin's domestic or family violence laws, or by any other person against an adult or youth victim who is protected from that person's acts under the domestic or family violence laws of Wisconsin.

Stalking is defined as engaging in a course of conduct directed at a specific person that would cause a reasonable person to fear for his or her safety or the safety of others; or suffer substantial emotional distress.

For purposes of establishing sexual harassment under this Policy, consent to sexual activity must be informed and freely and actively given through mutually understood words that indicate a willingness to participate in mutually agreed-upon sexual activity. The College requires a non-intoxicated, verbal, mutually understood "Yes" for sexual contact or intercourse to be considered consensual.

Consenting to sexual activity requires a non-intoxicated, verbal, mutually understood communication free from threats, intimidation, or other coercion. Returning to an individual's room, being physically aroused, removing clothing, stroking, assenting to dancing or cuddling, obtaining contraception, and such similar circumstances do not equate to a non-intoxicated, verbal, mutually understood "Yes" and, therefore, do not constitute consent. Silence or inaction does not constitute consent, nor should non-verbal actions be considered invitations to sexual contact or intercourse.

Individuals who are below their normal cognitive function, inebriated, mentally or physically impaired or incapacitated, have a mental illness or deficiency, are unconscious for any reason, or are physically unable to communicate are assumed to be incapable of giving consent. Someone who is under the influence of drugs and/or alcohol may be physically unable to communicate and therefore may be unable to give consent.

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Section 2. Grievance Procedure for Complaints of Discrimination on the Basis of Sex that do not include Allegations of Sexual Harassment

Please refer to the College's Personal Harassment Policy and Anti-Hate Acts and Bias Incident Policy, incorporated herein, for information regarding the College's procedure for processing and responding to complaints of discrimination based on sex other than sexual harassment.

Section 3. Reports of Sexual Harassment

The College encourages victims of sexual harassment to talk to someone about what happened so that they can get the support they need, and so that the College can respond appropriately. Some of these resources are confidential, including speaking with counselors in the College's Health and Wellness Center. Reporting to a confidential resource does not trigger a response obligation under Title IX. This means that confidential resources are not obligated to report to the Title IX Coordinator.

Whether reporting to a College employee imputes actual knowledge to the College (thereby triggering the College's response obligations) depends on that employee's responsibilities and authority at the College. For example, reporting sexual harassment to the following College employees is not confidential and imputes actual knowledge to the College:

- Title IX Coordinator
- College Deans
- Campus Security
- Director of Residence Life
- Residence Life Coordinators
- Director of Human Resources

Reporting to these employees is not confidential and does trigger a response obligation from the College under Title IX. All such employees are obligated to immediately notify the Title IX Coordinator in the event they receive a report of sexual harassment. Failure to do so may result in discipline, up to and including termination.

Supportive Measures

The Title IX Coordinator is responsible for coordinating the effective implementation of supportive measures. Supportive measures are non-disciplinary, non-punitive individualized services offered as appropriate, as reasonably available, and without fee or charge to the complainant or the respondent before or after the filing of a formal complaint or where no formal complaint has been filed. They are designed to restore or preserve equal access to the College's education program or activity without unreasonably burdening the other party, including measures designed to protect the safety of all parties or the College's educational environment, or deter sexual harassment.

Supportive measures may include:

- Counseling;
- Extensions of deadlines or other course-related adjustments;
- Modifications of work or class schedules;

- Campus escort services;
- Mutual restrictions on contact between the parties;
- Changes in work or housing locations;
- Leaves of absence;
- Increased security and monitoring of certain areas of the campus; and
- Other similar measures.

When the College has obtained actual knowledge of sexual harassment in an education program or activity, the Title IX Coordinator must promptly contact the complainant regarding supportive measures. Specifically, the Title IX Coordinator must promptly contact the complainant to:

- Discuss the availability of supportive measures;
- Consider the complainant's wishes with respect to supportive measures;
- Inform the complainant of the availability of supportive measures with or without the filing of a formal complaint; and
- Explain to the complainant the process for filing a formal complaint of sexual harassment as set forth herein.

While the Title IX Coordinator is initially obligated to reach out to the complainant regarding supportive measures, the respondent also has an equal right to supportive measures.

In each instance, the Title IX Coordinator must document their response to a report (or formal complaint) of sexual harassment and the basis for that response. This includes documenting that they have offered supportive measures to restore or preserve equal access to the College's education program or activity. If the Title IX Coordinator does not provide a complainant with supportive measures, then he/she must document the basis for not doing so.

The College shall maintain as confidential any supportive measures provided to the complainant or respondent, to the extent that maintaining such confidentiality will not impair the College's ability to provide the supportive measures.

For purposes of this policy, a complainant is the individual who is alleged to be the victim of conduct that could constitute sexual harassment. A respondent is the individual who has been reported to be the perpetrator of conduct that could constitute sexual harassment.

Before imposing any disciplinary sanctions or other actions that are not supportive measures against a respondent, the College must follow the grievance process set forth in Section 4.

Emergency Removal

The College reserves the right to remove a respondent from its education program or activity on an emergency basis. In order to do so, the College must first:

- Undertake an individualized safety and risk analysis;
- Determine that an immediate threat to the physical health or safety of any student or other individual arising from the allegations of sexual harassment justifies removal; and

- Provide the respondent with notice and an opportunity to challenge the decision immediately following the removal.

Subject to the above process, the College may remove a respondent without first having received a formal complaint of sexual harassment.

Section 4. Grievance Procedure for Formal Complaints of Sexual Harassment and Complaints including Allegations of Sexual Harassment.

Formal Complaints of Sexual Harassment
Either a complainant or the Title IX Coordinator can file a formal complaint alleging sexual harassment against a respondent.

To constitute a formal complaint, the document must be filed by a complainant or signed by the Title IX Coordinator. The document must allege sexual harassment against a respondent and request that the College investigate the allegation of sexual harassment. A document filed by a complainant means a document or electronic submission (such as by electronic mail) that contains the complainant's physical or digital signature, or otherwise indicates that the complainant is the person filing the formal complaint.

If the complainant chooses not to file a complaint, the Title IX Coordinator must either document his/her reasons for filing a complaint against the complainant's wishes or document his/her reasons for choosing not to file a formal complaint. Where the Title IX Coordinator signs a formal complaint, the Title IX Coordinator is not a complainant or otherwise a party.

At the time of filing a formal complaint, a complainant must be participating in or attempting to participate in the College's education program or activity with which the formal complaint is filed.

A formal complaint may be filed with the Title IX Coordinator in person, by mail, or by electronic mail, by using the contact information listed above.

Party Rights During the Grievance Process
Formal complaints of sexual harassment trigger the grievance process set forth in this Section 4. During the grievance process, the parties have the following rights:

- **Presumption of Innocence.** The respondent is presumed not responsible for the alleged conduct until a determination regarding responsibility is made at the conclusion of the grievance process.
- **Discussing Allegations**. The College cannot restrict the ability of either party to discuss the allegations under investigation or to gather and present relevant evidence.
- **No Retaliation.** The College prohibits intimidation, threats, coercion, or discrimination against any individual for the purpose of interfering with any right or privilege secured by Title IX or its regulations, or because the individual has made a report or complaint, testified, assisted, or

participated or refused to participate in any manner in an investigation, proceeding, or hearing under this Policy, Title IX, or Title IX's regulations.
    - Intimidation, threats, coercion, or discrimination for the purpose of interfering with any right or privilege secured by Title IX or its regulations, constitutes retaliation.
- **Advisors:** During the grievance process, all parties have the right to an advisor of their choice, who may be, but is not required to be, an attorney. The College may not limit the choice or presence of a party's advisor in any meeting or grievance proceeding. However, an advisor's active participation during the grievance process is limited to conducting cross-examination at the live hearing.
- **Equal Opportunity to Present Witnesses and Other Evidence.** The parties have an equal opportunity to present witnesses and other evidence, including fact and expert witnesses, and other inculpatory and exculpatory evidence. The parties also have an equal opportunity to inspect and review any evidence obtained as part of the investigation that is directly related to the allegations in the formal complaint, including evidence upon which the College does not intend to rely in reaching a determination regarding responsibility.
- **Objective Evaluation of All Relevant Evidence.** The parties have a right to an objective evaluation of all relevant evidence, including both inculpatory and exculpatory evidence.
- **Privacy Protections.** The College cannot access, consider, disclose, or otherwise use a party's records that are made or maintained by a physician, psychiatrist, psychologist, or other recognized professional or paraprofessional unless the school has obtained the party's voluntary, written consent.
- **Privileged Information.** The grievance process may not require, allow, rely upon, or otherwise use questions or evidence that constitute, or seek disclosure of, information protected under a legally recognized privilege (unless the privilege has been waived). Privileges include, but are not limited to: attorney-client privilege, marital privilege, religious advisor privilege, physician-patient privilege, and psychologist-patient privilege.
- **Credibility Determination.** Credibility determinations may not be based on a person's status as a complainant, respondent, or witness. The College cannot give credence to a person's statements simply because of the position he/she holds.
- **No Conflict of Interest or Bias.** Any individual designated by the College as a Title IX Coordinator, investigator, decision-maker, reviewer, or any person designated by the College to facilitate an informal resolution process, may not have a conflict of interest or bias for or against complainants or respondents generally or an individual complainant or respondent.

The grievance process (up to and including an appeals determination, if applicable) shall be completed in a reasonably prompt time frame, which the College designates as 120-180 calendar days from receipt of the formal complaint.

Temporary delays or limited extensions of time frames may be permitted for good cause with written notice to the complainant and the respondent of the delay or extension and the reasons for the action. Good causes may include considerations such as absence of a party, a party's advisor, or a witness; concurrent law enforcement activity; or the need for language assistance or accommodation of disabilities.

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Administrative Leave

During the pendency of the grievance process, the College reserves the right to place a non-student employee respondent on administrative leave.

Standard of Evidence under this Grievance Procedure

The standard of evidence to be used for determining responsibility under this grievance procedure (and for all formal complaints of sexual harassment, including formal complaints against employees and students) is the "Preponderance of the Evidence" standard.

Initial Response to a Formal Complaint

Upon receipt of a formal complaint, the Title IX Coordinator shall promptly provide the following information in a written notice to the known parties:

- Notice of the grievance process, including informal resolution and the name of the individual assigned to conduct the investigation.
    - Note that any objections to an appointed investigator must be made in writing to the Title IX Coordinator within three (3) calendar days after notice has been provided. Objections must be based on actual bias or conflicts of interest. The Title IX Coordinator will determine if bias or a conflict of interest exists. In that event, the parties will be notified in writing of the name of the new investigator. Any objection to the new investigator will be made in accordance with this section.
- Notice of the allegations of sexual harassment potentially constituting sexual harassment as defined in 34 C.F.R § 106.30, including sufficient details known at the time and with sufficient time to prepare a response before any interview. Sufficient details include the identities of the parties involved in the incident, if known, the conduct allegedly constituting sexual harassment under 34 C.F.R § 106.30, and the date and location of the alleged incident, if known.
- A statement that the respondent is presumed not responsible for the alleged conduct and that a determination regarding responsibility is made at the conclusion of the grievance process.
- A statement that the parties may have an advisor of their choice, who may be, but is not required to be, an attorney, and who may inspect and review evidence.
- A statement informing the parties of any provisions in the College's code of conduct that prohibits knowingly making false statements or knowingly submitting false information during the grievance process.

Investigating a Formal Complaint

Upon receipt of a formal complaint and a determination that the complaint is subject to this grievance procedure, the assigned investigator shall investigate the formal complaint. Note that the College may consolidate formal complaints as to allegations of sexual harassment against more than one respondent, or by more than one complainant against one or more respondents, or by one party against the other party, where the allegations of sexual harassment arise out of the same facts or circumstances.[2]

The specific steps of the investigation will vary based on the nature of the allegations and other factors; however, the College's inquiry will be prompt, thorough and impartial. The investigation shall be

completed within forty-five (45) calendar days of receipt of the formal complaint. The burden of proof and the burden of gathering evidence sufficient to reach a determination regarding responsibility rest on the College and not on the parties.

The investigation process shall include, at minimum, individual meetings with the complainant and respondent to discuss the substance of the complaint and to identify witnesses (lay or expert) and other inculpatory or exculpatory evidence. The investigator shall provide advanced notice to the party, including the date, time, location, participants, and purpose of the investigative meeting at least five (5) calendar days in advance of the meeting to provide sufficient time for the party to prepare to participate.

When investigating a formal complaint and throughout the grievance process, the College must provide, to a party whose participation is invited or expected, written notice of the date, time, location, participants, and purpose of all hearings, investigative interviews, or other meetings, with sufficient time for the party to prepare to participate.

Prior to the conclusion of the investigation, the investigator shall provide to the complainant and respondent (and their respective advisors, if any) the opportunity to review any evidence obtained as part of the investigation that is directly related to the allegations raised in the formal complaint, including any evidence upon which the College does not intend to rely upon in reaching a determination regarding responsibility and inculpatory or exculpatory evidence whether obtained from a party or other source.[3]

Such evidence will be sent in an electronic format to the parties and any identified party advisor (unless requested by a party or advisor to be received in hard copy format). Each party will be given at least ten (10) calendar days to submit to the investigator a written response to the evidence for consideration by the investigator prior to conclusion of the investigation and completion of the investigative report.

The investigator shall conclude the investigation by drafting a written investigative report that fairly summarizes the relevant evidence. The investigative report must also describe the procedural steps from receipt of the formal complaint through the conclusion of the investigation, including any notifications to the parties, interviews with parties and witnesses, site visits, and methods used to gather other evidence.

Note that the following evidence and information is deemed not relevant or otherwise not subject to use in the grievance process: (1) information protected by a legally recognized privilege: (2) evidence about a complainant's sexual predisposition; (3) evidence about a complainant's prior sexual behavior unless it is offered to prove that someone other than the respondent committed the alleged conduct or it concerns specific incidents of the complainant's prior sexual behavior with respect to the respondent and is offered to prove consent; (4) any party's medical, psychological, and similar records unless the party has given voluntary written consent.

Before the investigative report has been finalized, each party (and their respective advisors, if any) will be provided with a draft copy of the investigative report. The draft report will be provided in an electronic format (unless requested by a party or advisor to be received in hard copy format). Each party will be given five (5) calendar days to submit to the investigator any objections to the draft investigative report prior to its finalization.

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The final investigative report will be sent to the parties and any identified party advisor at least ten (10) calendar days prior to the live hearing in electronic format (unless requested by a party or advisor to be received in hard copy format). The parties may review the final investigative report and provide a written response to the decision-maker no later than three (3) calendar days before hearing (discussed below).

Dismissing a Formal Complaint

Jurisdictional Dismissal

Under certain circumstances, a formal complaint of sexual harassment may not be subject to the jurisdiction of Title IX and this grievance procedure for complaints of sexual harassment set forth in Section 4.

The College must investigate the allegations in a formal complaint. However, a formal complaint must be dismissed for purposes of sexual harassment under Title IX and its regulations (and removed from this grievance process) if:

- The conduct would not constitute sexual harassment as defined under 34 C.F.R § 106.30 even if proved;
- The conduct did not occur in the College's education program or activity; or
- The conduct did not occur against a person in the United States.

Dismissing a formal complaint of sexual harassment for any of these reasons does not preclude action under another of the College's policies prohibiting misconduct.

Discretionary Dismissal

The College may dismiss a formal complaint as subject to this grievance process if, at any time during the investigation or hearing:

- The complainant submits a written request for withdrawal to the Title IX Coordinator;
- The respondent is no longer enrolled at or employed by the College; or
- The specific circumstances prevent the College from gathering evidence sufficient to reach a determination.

Regardless of whether a formal complaint is subject to jurisdictional or discretionary dismissal, the Title IX Coordinator shall promptly notify the parties, simultaneously and in writing, of the dismissal and reasons therefor. Parties can appeal the dismissal decision (see below).

Live Hearing

Within twenty (20) calendar days following the conclusion of the investigation, the College will schedule a live hearing before an appointed decision-maker[4] to reach a determination regarding responsibility.

Key aspects of the live hearing include:

- **Physical or Virtual Presence.** At the College's discretion, live hearings pursuant to this paragraph may be conducted either with all parties physically present in the same geographic location or with any or all parties, witnesses, and other participants appearing at the live hearing virtually, with technology enabling participants simultaneously to see and hear each other.
    - At the request of either party, the College shall provide for the live hearing to occur with the parties located in separate rooms with technology enabling the decision-maker and parties to simultaneously see and hear the party or the witness answering questions.
- **Records or Transcript.** The College shall create an audio or audiovisual recording, or transcript, of the live hearing and make it available to the parties for inspection and review.
- **Cross-Examination.** At the live hearing, the decision-maker must permit each party's advisor to ask the other party and any witnesses all relevant questions and follow-up questions, including those challenging credibility. Such cross-examination at the live hearing must be conducted directly, orally, and in real time by the party's advisor of choice and never by a party personally, notwithstanding the College's discretion to otherwise restrict the extent to which advisors may participate in the proceedings.
    - If a party or witness does not submit to cross-examination at the live hearing, the decision-maker must not rely on any statement of that party or witness in reaching a determination regarding responsibility; provided, however, that the decision-maker cannot draw an inference about the determination regarding responsibility based solely on a party's or witness's absence from the live hearing or refusal to answer cross-examination or other questions.
- **Relevant Questions.** Only relevant cross-examination and other questions may be asked of a party or witness. Before a complainant, respondent, or witness answers a cross-examination or other question, the decision-maker must first determine whether the question is relevant and explain any decision to exclude a question as not relevant.
    - Questions and evidence about the complainant's sexual predisposition or prior sexual behavior are not relevant, unless such questions and evidence about the complainant's prior sexual behavior are offered to prove that someone other than the respondent committed the conduct alleged by the complainant, or if the questions and evidence concern specific incidents of the complainant's prior sexual behavior with respect to the respondent and are offered to prove consent.
- **Advisors for Cross-Examination.** If a party does not have an advisor present at the live hearing, the College shall provide without fee or charge to that party, an advisor of the College's choice, who may be, but is not required to be, an attorney, to conduct cross-examination on behalf of that party.

The Title IX Coordinator will be responsible for coordinating the live hearing process. This includes, but is not limited to: scheduling the hearing; notifying parties and witnesses of the hearing; ensuring that the decision-maker is provided with appropriate materials including any exhibits; coordinating technology; securing a location for the hearing; and providing for a record or transcript. The Title IX Coordinator will also act as liaison between the parties and the decision-maker on procedural matters.

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The parties will be given written notice of the date, time, and location of the hearing no sooner than ten (10) calendar days before the hearing has been scheduled. The notice of hearing shall also include the identity of the decision-maker. Any objections to an appointed decision-maker must be made in writing to the Title IX Coordinator within three (3) calendar days after notice has been provided. Objections must be based on actual bias or conflicts of interest. The Title IX Coordinator will determine if bias or a conflict of interest exists. In that event, the parties will be notified in writing of the name of the new decision-maker. The date for the hearing may also need to be rescheduled. Any objection to the new decision-maker will be made in accordance with this section.

No later than three (3) calendar days before the hearing, each party will provide to the decision-maker (i) the name of, and contact information for, the party's advisor (if any); (ii) any requests to consolidate pending cases for hearing; and (iii) a proposed witness list.[5]

The decision-maker will make all determinations regarding pre-hearing matters and will promptly notify the Title IX Coordinator who, in turn, will promptly notify the Parties.

Decision-Maker's Determination Regarding Responsibility

Following the live hearing, the decision maker shall issue a written determination regarding responsibility. To reach this determination, the "Preponderance of the Evidence" standard must be applied. The decision-maker's written determination shall:

- Identify the allegations potentially constituting sexual harassment;
- Describe the procedural steps from receipt of the formal complaint through the determination, including any notifications to the parties, interviews with parties and witnesses, site visits, methods used to gather other evidence, and hearings held;
- Include the findings of fact supporting the determination;
- Include the conclusions regarding the application of the College's code of conduct to the facts;
- Include a statement of, and rationale for, the result as to each allegation, including a determination regarding responsibility, any disciplinary sanctions the College imposes on the respondent, and whether remedies designed to restore or preserve equal access to the College's education program or activity will be provided by the College to the complainant; and
- Include the College's procedures and permissible bases for the complainant and respondent to appeal.

The decision-maker shall provide his/her written determination to the parties simultaneously. The determination becomes final either on the date the College provides the parties with the written determination of the result of the appeal, if an appeal is filed, or if an appeal is not filed, the date on which an appeal would no longer be considered timely.

Appeal

Any party can appeal the decision-maker's determination regarding responsibility. Parties can appeal on the following bases:

- Procedural irregularity that affected the outcome of the matter;

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- New evidence that was not reasonably available at the time of the determination regarding responsibility or dismissal was made, that could affect the outcome of the matter; or
- The Title IX Coordinator, investigator, or decision-maker had a conflict of interest or bias for or against the complainant or respondent generally or against the individual complainant or respondent that affected the outcome of the matter.

Parties also have the right to appeal the College's mandatory or discretionary dismissal decision.

Appeals must be filed with the Title IX Coordinator within three (3) calendar days following issuance of the decision-maker's written determination. Requests for appeal must indicate the basis for the appeal. Upon receipt of the appeal, the Title IX Coordinator shall notify the parties in writing that an appeal has been filed. The Title IX Coordinator shall also notify the Chair of the Personal Harassment Committee (the "Committee") to consider the appeal and notify the parties of the committee. The Chair shall not be the same person as the decision-maker, the investigator, or the Title IX Coordinator. The Committee is made up of hourly staff members, faculty and administrators.

The Chair shall notify the parties of the appeal procedures and set a schedule for the parties to submit written statements in support of, or challenging, the outcome. Such a schedule shall provide an opportunity for each party to respond to the arguments of the other party.

Upon reviewing both parties' statements, the Committee shall issue a reasoned written decision describing the result of the appeal and rationale for the result. The written decision shall be provided to both parties simultaneously. The reviewer's decision shall be final and binding upon the parties.

Remedies

This grievance process provides remedies to a complainant where a determination of responsibility for sexual harassment has been made against the respondent. The Title IX Coordinator is responsible for effective implementation of any remedies.

Remedies under this policy must be designed to restore or preserve equal access to the education program or activity. For students, the range of possible remedies includes, but is not limited to: safety escorts, class section reassignment, residence hall room reassignments, counseling and academic support services, academic accommodations, the ability to retake a test, or withdrawal or re-enrollment in a course without financial penalty. For employees, the range of possible remedies includes, but is not limited to: office reassignments, job reassignments, accommodations, or counseling.

The grievance process may also provide for discipline or recommendations for discipline where a determination of responsibility for sexual harassment has been made against the respondent. For students, the range of possible discipline includes, but is not limited to: a warning, probation, suspension, or expulsion. For employees, the range of possible or recommended discipline includes, but is not limited to: a verbal warning, written warning, suspension, or termination. Recommendations for discipline will be pursued according to applicable College policies.

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Informal Resolution
At any time after receiving a formal complaint but before a determination regarding responsibility, the College may offer the parties the opportunity to engage in informal resolution of the formal complaint. However, informal resolution may not be offered or utilized where the allegations involve an employee sexually harassing a student.

The College must obtain the parties' voluntary, written consent to the informal resolution process. The Title IX Coordinator must also provide to the parties a written notice disclosing:

- The allegations;
- The requirements of the informal resolution process, including the circumstances under which it precludes the parties from resuming a formal complaint arising from the same allegations (provided, however, that at any time prior to agreeing to a resolution, any party has the right to withdraw from the informal resolution process and resume the grievance process with respect to the formal complaint); and
- Any consequences resulting from participating in the informal resolution process, including the records that will be maintained or could be shared.

A party may withdraw from the informal resolution process at any time prior to reaching an agreed resolution without affecting the proceedings.

Section 5. Miscellaneous Provisions Regarding Discrimination on the Basis of Sex and Sexual Harassment

Confidentiality
The College shall keep confidential the identity of any individual who has made a report or complaint of sex discrimination, including any individual who has made a report or filed a formal complaint of sexual harassment, any complainant, any individual who has been reported to be the perpetrator of sex discrimination, any respondent, and any witness, except as may be permitted by the Family Educational Rights and Privacy Act ("FERPA") and its regulations, or as required by law, or to carry out the purposes of 34 C.F.R. Part 106 (Nondiscrimination on the Basis of Sex in Education), including the conduct of any investigation, hearing, or judicial proceeding arising thereunder.

Retaliation
The College prohibits intimidation, threats, coercion, or discrimination against any individual for the purpose of interfering with any right or privilege secured by Title IX or its regulations, or because the individual has made a report or complaint, testified, assisted, or participated or refused to participate in any manner in an investigation, proceeding, or hearing under this Policy, Title IX, or Title IX's regulations.

Intimidation, threats, coercion, or discrimination, including charges against an individual for code of conduct violations that do not involve sex discrimination or sexual harassment, but arise out of the same facts or circumstances as a report or complaint of sex discrimination, or a report or formal complaint of

sexual harassment, for the purpose of interfering with any right or privilege secured by Title IX or its regulations, constitutes retaliation.

Complaints alleging retaliation may be filed according to the College's grievance procedures for sex discrimination.

Recordkeeping

The College will comply with all recordkeeping requirements imposed by applicable law and regulations, including those recordkeeping requirements set forth in 34 C.F.R. § 106.45(b)10. This includes the following records, which must be maintained in compliance with federal and state laws:

- Each sexual harassment investigation, including any determination regarding responsibility and any audio or audiovisual recording or transcript, any disciplinary sanctions imposed on the respondent, and any remedies provided to the complainant designed to restore or preserve equal access to the education program or activity;
- Any appeal and the result of that appeal;
- Any informal resolution and the result of that informal resolution;
- All Title IX training materials; and
- Records of any actions, including any supportive measures (and the basis for providing or not providing supportive measures based on the deliberate indifference standard) taken in response to a report or formal complaint of sexual harassment.

Beginning on August 14, 2020, the above-cited records must be maintained for no less than seven (7) years from the conclusion of a matter (including any appeal).

Right to Pursue Other Remedies Not Impaired

The right of a person to prompt and equitable resolution of a complaint filed under this policy shall not be impaired by the person's pursuit of other remedies (e.g., criminal complaints, civil actions, etc.). Use of the College's grievance procedures does not extend any filing deadline related to the pursuit of other remedies.

Off-campus Resources

- Family Services (Sexual Assault Recovery Program / SARP) – 416 College St., Beloit – 608-365-1244
- Wisconsin Department of Health Services Sexual Violence Prevention - Wisconsin
- National Sexual Assault Hotline – 1-800-656-4673 or chat online at online.rainn.org

[1] This Policy is intended to comply with Title IX of the Education Amendments Act of 1972 ("Title IX") and its regulations. To the extent that this Policy conflicts with Title IX or its regulations, Title IX and its regulations shall control.

[2] Where a grievance process involves more than one complainant or more than one respondent, references in this section to the singular "party," "complainant," or "respondent" include the plural, as applicable.

[3] The College must make all such evidence subject to the parties' inspection and review available at any hearing to give each party equal opportunity to refer to such evidence during the hearing, including for purposes of cross-examination.

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[4] *The decision-maker may not be the Title IX Coordinator or investigator. The decision-maker may also be a panel of decision-makers.*

[5] *The investigator may be a witness at hearing. However, the decision-maker must independently reach a determination regarding responsibility without giving deference to the investigative report.*

M. Technology Usage

Computer Use (Policy on Ethical Use of Computing and Information Resources and Privileges)

Access to computing facilities and associated resources is provided as a privilege to members of the Beloit College community. The College provides these resources to support its educational mission. It is expected that users will obey all rules and regulations pertaining to the appropriate use of these facilities. This involves using the facilities in a manner that is consistent with all College policies, with policies of other networks (e.g., WISCNET, Internet), and state and federal laws. Every user is responsible for helping to ensure that these resources are used appropriately; this includes prompt reporting of instances where it is believed an abuse has occurred. If users are in doubt as to whether a particular proposed use is appropriate, they should check with Library and Information Technology Services (LITS) before the proposed use is undertaken. Misuse of computing facilities (whether or not they are directly College owned) will constitute just cause for disciplinary action by Beloit College in addition to any legal enforcement by local, state, or federal authorities.

The following are guidelines for the appropriate use of computing facilities:

1. **Use facilities and services only for the purposes for which you are authorized.**
   Violations include:
   - using another person's account or attempting to capture/guess other users' passwords;
   - circumventing normal resource limits, log on procedures, and security regulations;
   - trying to obscure your true identity as the sender of electronic mail or the user of other networked services that request identification;
   - using College computing resources for unauthorized commercial purposes;
   - using the College's computing resources to harass, intimidate, or threaten other users.

2. **Respect the privacy of other users.** Files, tapes, disks, drives (physical and virtual), email, information, programs, and data owned by individual users should be considered private, whether or not the information is accessible by other users. The Electronic Communications Privacy Act places electronic mail in the same category as messages delivered by the US Postal Service. Tampering with email, interfering with or intercepting its delivery, and using email for criminal purposes, may be felony offenses. See the second paragraph of "Procedures When Abuse/Misuse is Suspected" below for further information about privacy.

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3. **Respect the rights of others to make use of these resources.**
   Violations include:
   - placing obscene or harassing material in areas that can be/are publicly accessed;
   - sending/forwarding chain letters or deliberately flooding a user with automatically generated mail;
   - printing or sending excessive copies of documents, files, data, or programs;
   - unauthorized attempts to modify or remove computer equipment;
   - attempting to degrade or disrupt system security or performance;
   - damaging or vandalizing College computing facilities, equipment, software, or computer files.

4. **Respect appropriate copyright laws, licenses, confidentiality, and trade secret agreements.** Much of the software and data that resides on the College's computer facilities is protected by copyright laws and license agreements and may not be copied from, into, or by using campus computing facilities, except as permitted by law or by license from the owner of the copyright. The number of copies and distribution of the copies may not be done in such a way that the number of simultaneous users exceeds the number allowed.

5. **Obey established guidelines for any networks or systems used inside or outside the College.** Accessing computers, software, data or information, or networks without proper authorization, regardless of whether any damage is done or whether the computer, software, data, information, or network in question is owned by the College, will be treated as an abuse of your Beloit College computing privileges. Violating guidelines of non-College networks or systems, even if using non-College resources, may be grounds for revocation or suspension of College computing privileges.

In addition to the rules outlined above, system administrators must take reasonable and appropriate steps to see that all license agreements are faithfully executed on all systems, networks, and servers for which they have responsibility. They must take reasonable precautions to guard against corruption of data or software, damage to hardware or facilities of the College, and illegal copying of College software. They must implement College policies as related to these computer systems and must treat information about and information stored by the system's users as confidential.

- Anyone authorized to add or delete files from a hard drive of a College computer that is regularly available to more than one individual is acting as a system administrator. System administrators are those who perform functions on College computer equipment including, but not limited to, installing hardware and software, managing a computer or network, and keeping a computer operational.

- In the normal course of working with the College's networks and computers, the staff responsible for maintaining those systems may come across and see information stored on College-owned equipment, as well as on personal equipment that is connected to the College network. Unless there are suspected violations of law or College policy, the staff shall respect the privacy of the individual. Should the faculty or staff member overseeing these systems suspect such violations, the procedures of the next section shall apply.

Procedures When Abuse/Misuse is Suspected

When there is an indication that misuse has occurred, the alleged offense is to be reported immediately to the Chief Information Officer and to the appropriate member of senior staff. If there is a reason to believe a person's safety is at risk, Security will also be notified. Library and Information Technology Services (LITS) and the appropriate senior staff member shall investigate the incident and may restrict a user's computing privileges.

If an emergency entry is urgently needed to preserve the integrity of facilities or to preserve public health and safety, LITS staff may access files or computer components on, or attached to, the College network without the consent of the user. The College, through the Chief Information Officer, will log all instances of investigative access without consent. Faculty or staff overseeing the College's network servers will also log any emergency entry within their control for subsequent review as soon as possible by the President or appropriate Vice President.

When an alleged offense is reported, Library and Information Technology Services staff may make copies of the alleged offender's files to preserve evidence. In order to preserve privacy, staff may access or read any copied files without authorization from the appropriate senior administrator.

Some instances in which computer resources are used inappropriately may lead to disciplinary action in two different venues. For example, computer-assisted plagiarism, such as copying a computer file and using it as a model or submitting it as your own work without attribution, could result in disciplinary action according to Academic Honesty guidelines as well as this policy.

Disciplinary action may include loss of computing privileges and other sanctions up to and including non-reappointment, discharge, and/or dismissal. Alleged student misuses will be handled according to the College's judicial system procedures. Alleged faculty misuses will be handled according to the College's procedures for evaluation, termination or non-renewal. If the alleged misuse by a member of the faculty or staff involves harassment, it will be handled according to the procedures in the policy on personal harassment.

Abusers of the College's computing resources may also be liable for civil or criminal prosecution. It should be understood that nothing in this policy can preclude enforcement under federal, state, and local laws and regulations.

For more information on College computing and regulations go the website at:
https://www.beloit.edu/lits/

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Copyright Law Guidelines

Downloading and/or sharing copies of music, movies, or other intellectual property that you do not either (1) have permission to download and/or share, or (2) own the copyright to, is illegal and violates College policy. Purchasing a song, game, or movie does NOT entitle the purchaser to redistribute copies.

Beloit College passes along to students any notices received of possible infringing activity. Students are responsible for following up with the notifying organization, if necessary. Students who repeatedly receive violation notices risk a range of penalties, ranging from mandatory software removal to suspension of their campus network account to suspension or expulsion.

Students receiving three or more violation notices must meet with the Dean of Students and work with LITS staff in order to ensure that the offending material is removed from their computer and that music/online content management systems are set to not share files.

The Beloit community is expected to respect the copyrights and intellectual property rights of those who create content and use legal services.

Copyright Law

Most music and videos available online today are protected by copyright law. To ensure your use is legal, make sure you have legally purchased the file you are downloading or have contacted the copyright holder for permission to share the file.

To learn more about U.S. copyright law, please visit
https://guides.beloit.edu/copyright

Media Devices Policy

Common courtesy and respect governs the use of media devices on campus. Media devices must be turned off during classes, lectures, theater and music performances, and all special events. Any questions or concerns about the use of a media device during instructional time should be directed to your professor(s).

Media devices equipped with a digital camera may not be used to take or share/post inappropriate or unauthorized pictures (i.e., in locker rooms). Such usage may result in disciplinary action under the College's Sexual Misconduct Policy.

Non-consensual Images/Recordings Use

No student may, while on campus, share any photo, video, audio or other recording or image of any student other than themselves without the express and sober consent of students present in the recording or image. Failure to comply with this policy may result in punitive measures up to and including mandatory policy meetings and training, suspension and expulsion. If all parties (including the adjudicator) are willing, a Restorative Justice approach may be used in lieu of other disciplinary measures to address any harm caused.

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N. Vandalism

Vandalism is defined as all intentional damage to property that does not belong to the individual student. This includes residential, academic, and recreational buildings and facilities as well as intentional damage to personal property and club/organization property (including posters and other publicity).

1. Students found responsible for vandalism shall be held accountable for the entire cost of the damage they have done. Labor costs for repairs caused by vandalism are billed at a time and one-half rate since the work is above and beyond the normal expected repair work.
2. Students who accidentally break or damage property will be charged regular time labor rates if the damage is reported immediately (within 24 hours) to Security or the Residence Life Office.
3. Failure to report vandalism and to admit guilt to the proper authorities by the end of the next working day shall result in a fine to be charged to the account of the guilty student(s). This fine will consist of 100 percent of the total cost of repair. If students are found in violation of other campus policies during the investigation and determining (i.e. lying to a college official), additional sanctions and fines may be imposed.
4. The Director of Residence Life or designated representative has the option of imposing a work penalty in place of a financial penalty. This and other sanctions are based on the effectiveness of restitution and/or the impact of other sanctions, including educational projects.
5. All money collected as a result of vandalism fines shall be placed in a special account and dispersed to the relevant department incurring said damage. The Residential Experience Advisory Committee will advise the Office of Residence Life as to how these funds shall be allocated for specific residence hall improvements.
6. If a student has vandalized another community member's belongings, the incident will be investigated and appropriate sanctions applied.
7. If individual responsibility for the vandalism or damages cannot be determined, the Dean of Students or representative may levy an equal charge to all members residing on the floor or living area involved. The charge levied on the members of the floor or living space will include only the cost of repair for damages. The floor and/or individual have the right to appeal to the judicial board. In cases of appeal, the judicial board has the right to determine what living area is involved.
8. All heavily-traveled public pathways, as determined by the Dean of Students or Director of Residential Life, will be exempt.
9. Theft can be a form of vandalism. Items belonging to others or the College, as well as illegal items that are found in a student's possession, may be confiscated.

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Note regarding graffiti: "Graffiti" is defined as any unauthorized writing, drawing or marking created on any campus structure, public or private. Regardless of whether or not graffiti is written in permanent materials, it will be considered a form of vandalism. If graffiti is found to contain messaging that is violent or offensive, it could be investigated as a bias incident, threat, hate speech, or other additional violation of campus policy.

O. Weapons

The College is private property and reserves the right to establish standards that exceed those permitted by local, state, or federal law. Accordingly, the possession, carrying, storage, or use of weapons is strictly prohibited on College-owned or controlled property, regardless of whether the weapon is legal or an individual holds a permit or license.

Prohibited weapons include but are not limited to: firearms (including those carried under a concealed carry permit or license), pellet or BB guns, ammunition, knives (other than small utility tools), explosives, fireworks, chemicals intended to cause harm, laser pointers, swords, axes, paintball guns, and any object used or intended to be used in a threatening or dangerous manner.

Security reserves the right to confiscate any item they reasonably believe may be used in a threatening, harmful, or inappropriate manner, regardless of whether it is otherwise permitted under this policy. Confiscated items may be returned at Security's discretion and may be turned over to law enforcement when appropriate or required by law.

Personal safety devices such as pepper spray or other approved less-lethal alternatives, are permitted, provided they are used solely for self-defense and in accordance with local, state, and federal laws.

Section IV: The Judicial Process/Hearing System

1. Adjudication of Violations of Policies, Rules, Regulations, and Expectations

The College handles violations of community standards in one of two ways: 1) Restorative Justice or 2) sanction-based discipline. Violations of community standards can come to the attention of the adjudicators in a wide variety of ways. Students, faculty or staff, alumni may make an allegation; security reports may document an incident, and/or outside parties (parents, alumni, city community members) may communicate their concerns. In all cases, students and student groups have a right to due process (which includes investigation of the validity of the report), and to appeal as is indicated in the particular policy of the violation. While violations of policies can occur between any two individuals, the focus here is on the student as the actor, and so we will use "students" but it may include faculty, staff, or community members as well.

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Violations of policy where significant physical damage occurs, safety is compromised significantly, major destruction occurs and/or irreparable harm has been caused are unlikely to be able to be handled via the Restorative Justice process.

The Judicial Process/Hearing system for violations of the Academic Honesty Policy are found in that policy.

The Judicial Process/Hearing system for Sexual Assault, Sexual Harassment, and related Title IX Violations and Associated Grievance Procedures are in that policy.

All other policy violations are addressed using one of the two Judicial Process/Hearing systems described below.

A. Restorative Justice

Restorative Justice is an approach which focuses on the offenders taking responsibility for their actions, and involving them in ideas for repairing the harm that they caused and reconciling with those that they harmed and/or the community at large.

Four principles are central to Restorative Justice:

1. Inclusive decision-making in the hands of the people most closely involved in the incident.
2. Accountability that makes people who cause harm take responsibility and make amends.
3. Reparation and healing that uplifts harmed parties (not drag down offenders).
4. Rebuilding relationships focusing on trust and mutual wellbeing.

Process

Restorative Justice facilitators meet with the people involved to explain the process, see if they are interested in participating in it, and to prepare the involved parties to consider outcomes of the process.

If the parties are amenable to the restorative process, the facilitator arranges a time and place for the persons involved in the incident to come together to talk about the harm that was done and agree on actions that can be taken to repair the harm.

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B. Educational, Sanction-Based Adjudication

General Process

Students who violate policies and/or harm others or the physical spaces of the community may also be adjudicated by traditional, sanction-based disciplinary procedures. Students involved in alleged violations typically meet with a member of the Residence Life or dean of students staff. This person is often the Adjudicator - the person who will make a decision on the case. The Adjudicator will advise the accused student of the charge(s) made against them. The student will have the opportunity to explain or answer the charge(s). The accused can enlist the support of any willing member of the Beloit College community, friend, faculty or staff of choice, to attend any function at which the accused's presence is required.

The Adjudicator has the authority to either appoint another staff member to investigate or investigate the alleged violation themselves, when necessary. The Investigator/Adjudicator has the authority to interview witnesses, gather evidence (i.e. swipes in/out of the building, or view video footage), review documents, and consider such information as deemed appropriate to the case.

The Adjudicator considers the body of evidence gathered and makes a determination of responsible or not responsible. If the accused student fails to answer the charges made against them, the Adjudicator may proceed without the student's participation and make a determination, including sanctions, when appropriate.

Decision-Making Criteria

The College, like many institutions of higher education, uses a standard of determination known as the "Preponderance of the Evidence," which indicates that the adjudicators only need to have evidence that it is "more likely than not" criteria for finding students in violation of policies.

Sanctioning

Students are responsible under this policy, and subject to sanctions, if the Adjudicator determines that a violation is more likely than not to have occurred. If a student is found responsible and/or disciplinary sanctions are imposed, the Adjudicator shall advise the student of their right to appeal (noted below). Typically, the investigation and decision by the Hearing Officer is concluded within twenty (20) college work days. Depending on the complexity of facts, number of witnesses, witness availability, and other factors, the Hearing Officer may extend this period.

In cases where there is an immediate threat to the community, a student may be removed from campus prior to the disciplinary investigation and any related possessions that are in violation of college policies may be confiscated. The Adjudicator shall also have the right to impose such interim conditions as deemed appropriate during any investigation or appeal. Such interim conditions may include, but are not limited to, for instance, a direction to a student to refrain from contact with another student, a direction to refrain from entering a location or participating in an activity, requiring the student to temporarily change rooms, etc.

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Possible Disciplinary Outcomes/Sanctions

When imposing sanctions for violating any College regulation or policy, the Adjudicator may select any remedies or corrective actions that are determined as appropriate. The Adjudicator may choose from, but is not limited to, the following alternatives:

1. No Sanction: Not responsible for violating College policy and/or insufficient evidence to decide a violation occurred "more likely than not."
2. Consequences agreed to as part of the Restorative Justice process to repair harm.
3. Restitution: Wherever appropriate, the student shall pay damages or effect necessary repairs.
4. Verbal and/or Written Warning: A caution given by the Adjudicator to the student according to circumstances in the particular case.
5. Referral: The Adjudicator may refer the student(s) to another person or department within the College or select professionals, agencies or programs outside of the College. The student may be referred to a local or student-selected physician, an Alcohol and Other Drug Abuse (AODA) program, or a mental health professional or other program or professional as part of the disciplinary sanction and/or as a condition of remaining on or returning to campus.
6. Work Penalty: The student is required to report to the Facilities or other relevant office to perform satisfactory work under supervision for the number of hours assigned.
7. Fines: Where deemed appropriate, a monetary fine will be imposed.
8. Mandatory Compliance: The student must carry out the assigned sanction as a condition for being admitted or continued as a member of the College community. This can also include such actions as restriction of privileges, restitution, required room change, cancellation of housing contract, withholding of diploma, or cancellation of registration for a specified period of time.
9. Confiscation: Where appropriate, goods used or possessed in violation of regulations will be confiscated.
10. Community Action: This action requires that the student demonstrate for a specific period of time that they are willing and able to contribute to their community living environment.
11. Disciplinary Probation: Official notice to be placed in a student's permanent file that the student has been found to have violated College policies, and a warning that further violation of rules and regulations will result in possible suspension or expulsion.
12. Educational projects: May include researching or writing a paper or to do a presentation, or other relevant project. May require organizing and publicizing an educational program.
13. Restriction from participation in College activities in general, or select activities related to the case.
14. Immediate or deferred exclusion from residential living areas and non-academic activity.
15. Deferred Suspension: The Adjudicator may offer a student the option of deferring a suspension sanction. Deferred suspension may allow the student to remain on campus and continue attending classes. Accepting a deferred suspension requires the student to waive their right to a Judicial Board hearing and further incidents will result in immediate suspension without right of appeal or possible expulsion from the College.

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16. Suspension: Exclusion from the College for a specified period. It can be imposed for the balance of the term or for time units of term length. A student who is suspended shall be denied all academic and social privileges and is expected to be absent from College events, grounds and buildings during the period of suspension.
17. Expulsion: Permanent exclusion from the College. A student who is expelled is no longer a member of the Beloit College community and is expected to be absent from College events, grounds and buildings.
18. Other sanctions may be imposed if they are appropriate and in the best interest of the College or student, as determined by the Adjudicator.
19. If a student fails to complete any imposed sanctions, the Dean of Students or designee (including the Judicial Board) reserves the right to take additional actions.

Responses include requiring or recommending a student to:

- meet with a Judicial Officer to discuss the drug use decisions made by the student and review of the campus policy.
- research current laws regarding drugs in the community.
- organize educational programming on substance use and abuse.
- seek counseling from a College counselor or meet with a Student Life staff member.
- receive counseling or substance abuse education from a local agency.
- enter a substance abuse treatment facility.

If the student caused harm to other students or a community of students while under the influence and all parties are willing to participate, participating in a Restorative Justice process may also be an option.

Implementation of a suspension or expulsion will be postponed pending appeal, unless the Adjudicator determines that the student's presence on campus is a safety concern and/or is sufficiently disruptive to the campus community. In such cases, the Hearing Officer may order the student to leave the campus or remain outside a specific portion of the campus immediately and until the appeal is completed. If the student does not vacate College premises immediately, the Adjudicator or other senior administrative officer may have security personnel remove the student. If the student continues to refuse to leave campus, the Beloit Police Department may be called to assist. In cases where suspension or expulsion are involved, fees will not be refunded or remitted, in whole or in part. Neither the College nor any of its officers shall be under any liability for a student's actions that cause them to depart from the College without a refund or remittance.

Appealing Judicial Decisions

A student who has been found responsible for violating College policy(s) or regulations and received disciplinary sanctions by the Adjudicator may appeal this decision to the Judicial Appeals Board in the following circumstances:

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1. A procedural error occurred that significantly impacted the outcome of the investigation and/or determination by the Adjudicator (e.g. substantiated bias, material deviation from established procedures, etc.);
2. New information or evidence exists, which was unavailable during the original hearing or investigation, that could substantially impact the original finding or sanction. A summary of this new evidence and its potential impact must be included in the appeal;
3. An argument can be made that the sanctions imposed are substantially disproportionate to the severity of the violation.

Students must notify the Dean of Students, in writing, of their desire to appeal within three (3) College work days of being notified of the decision. The notification should contain an explanation of the rationale for appeal and this rationale should be based on the above circumstances. Only in cases of sexual assault or sexual misconduct, the complainant may appeal as well as the respondent, according to the criteria and timelines found in the Sexual Harassment and Associated Grievance Procedures.

Judicial Appeals Board

Purpose

- To represent the campus community—students, faculty and staff—by reviewing cases of student misconduct brought to the committee on appeal from an Adjudicator's decision, typically the Director of Residence Life or their designee.
- To espouse the educational purpose of our judicial system as it deliberates and makes decisions.
- To give students accused of violating College policies a fair appeal review.
- The standard to be applied by the Board is whether it is "more likely than not" that a violation has occurred. The decision of the Judicial Appeals Board is final and may not be appealed.

Membership and Training

Judicial Appeals Board membership will consist of five members. The Dean of Students, or designee, serves as Chairperson, two faculty members from the Academic Performance Committee serve to represent faculty, and two students from Student Academic Senate and/or Beloit Student Government serve to represent students. Judicial Board members receive, at a minimum, annual training on judicial procedures including but not limited to the "Preponderance of the Evidence" standard, College response and sanctions, multi-partiality, inclusion, and case studies on possible appeals.

Judicial Appeals Board Procedures

An appeal must be submitted in writing to the Dean of Students within three (3) College work days of receiving the decision letter and will be reviewed within 30 College work days. Depending on Board member schedules and time of year, the Board may need to extend the timeline.

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Judicial Appeals Board members will convene to review the written appeal, go over the full investigation and decision materials and evidence, and provide the relevant parties the option to appear before the Board (in-person or via video call). If the student(s) chooses to present their written appeal, board members have the opportunity to ask questions of the accused, as well as ask for clarifying material from investigators, the adjudicator, and/or witnesses. An appeal decision is reached by a majority of those adjudicating the appeal.

The Appeals Board is to render one of three decisions: uphold the original decision, modify the original decision, or overturn the original decision. The latter two options could result in a new finding such as responsible or not responsible, sanction(s) being removed, or sanction(s) being added or increased. Under all circumstances, the Appeals Board decision is final.

Rights of Students During Judicial Appeals Board Review

Rights of the <u>complainant</u> (if relevant) in a Judicial Appeals Board Review

1. Discussing Allegations. The College does not restrict the ability of either party to discuss the allegations under investigation. However, the College does not disclose information to anyone outside of those involved in the judicial process and those that need to implement or track sanctions.
2. To be informed, in writing, of the policy violations and original judicial decision to be reviewed by the Judicial Appeals Board.
3. Evidence: To gather and present relevant evidence, including witnesses.
4. Witnesses: Witnesses are to be limited to those who have direct knowledge of the situation (no "character" witnesses) and not required to participate.
5. No Retaliation: The College prohibits intimidation, threats, coercion, or discrimination against any individual who, in good faith, brings a complaint forward, or anyone who testified, assists the other party, or participates in or refuses to participate in investigations, proceedings or hearings.
6. Advisors: Complainants and the Accused have a right to an advisor of their choice among the College community. The College may not limit the presence of a party's advisor in any meeting or proceeding. That advisor is prevented from speaking, except to their party, during the process. Members of the outside community (e.g. lawyers, parents) are not allowed to participate in the hearing, except in Title IX cases.
7. To be informed, in writing, of the time and date of the Judicial Appeals Board Review, at least five (5) working days before the hearing.
8. If appearing before the Judicial Appeals Board, the complainant has the right to make statements to the Judicial Appeals Board.
9. To be notified in writing of the final outcome of the case.

Rights of the <u>accused</u> in a Judicial Appeals Board hearing

1. To be informed, in writing, of the policy violations and original judicial decision to be reviewed by the Judicial Appeals Board.

2. Presumption of Innocence. To be informed, in writing, of the policy violations and original judicial decision to be reviewed by the Judicial Appeals Board.
3. Discussing Allegations. The College does not restrict the ability of either party to discuss the allegations under investigation. However, the College does not disclose information to anyone outside of those involved in the judicial process and those that need to implement or track sanctions.
4. Evidence: To gather and present relevant evidence, including witnesses.
5. Witnesses: Witnesses are to be limited to those who have direct knowledge of the situation (no "character" witnesses) and not required to participate.
6. No Retaliation: The College prohibits intimidation, threats, coercion, or discrimination against any individual who is accused of violating a college policy or anyone who testifies, assists the other party, or participates in or refuses to participate in investigations, proceedings or hearings.
7. Advisors: Complainants and the Accused have a right to an advisor of their choice among the College community. The College may not limit the presence of a party's advisor in any meeting or proceeding. That advisor is prevented from speaking, except to their party, during the process. Members of the outside community (e.g. lawyers, parents) are not allowed to participate in the hearing, except in Title IX cases.
8. To be informed, in writing, of the time and date of the Judicial Appeals Board Review, at least five (5) working days before the hearing.
9. If appearing before the Judicial Appeals Board, the accused has the right to make statements to the Judicial Appeals Board.
10. To be notified in writing of the final outcome of the case.

Rights of the Judicial Appeals Board members:

1. To be informed, in writing, of the policy violations and original judicial decision to be reviewed by the Judicial Appeals Board.
2. To recuse one's self if there is a concern about an inability to provide a fair and impartial decision.
3. To gather evidence and present relevant evidence during the hearing, including calling witnesses, or not calling witnesses.
4. To hear the Adjudicator's argument for decision and/or sanctions, and ask questions of the Adjudicator, if needed.
5. To gain access to the accused's previous disciplinary record (if applicable).
6. To be free from intimidation, threats, or coercion by any party.
7. To monitor and limit the participation of advisors in the process, as needed.

Judicial Process and Appeals When Students Are Studying Off Campus

When the College receives a complaint about a Beloit College student who is participating in a domestic or international off campus program, the Adjudicator, or their designee, will investigate the complaint. This will proceed in a manner as close to our usual practice as possible, taking into account available communication methods. Similarly, if a student studying off campus wishes to appeal an

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Adjudicator's decision, the appeal process will proceed in a manner as close to usual practice as possible. Students who wish to participate in their hearing or Judicial Appeals Board cases in person, will be involved via video conferencing. If it is determined that a violation of College policies and regulations occurred, sanctions can be applied immediately or upon a student's return to the Beloit College campus. Minor adaptations of the judicial process which result from communicating at a distance will not be viewed as biased against the student.

Appeal Process For Summer and Vacation Periods

During the summer and vacation periods, including New Student Orientation, the first week or last week of classes, and finals week each term, the Judicial Appeals Board will not be convened. A student may appeal a Hearing Officer's decision to the Dean of Students for all non-Title IX discipline. All appeals must be in writing and submitted within three (3) working days of being notified of a decision by the Hearing Officer. The appeal will be considered solely by the specified judicial office above and their decision is final. All disciplinary sanctions will apply, as they do when classes are in session.

At any point during its investigation and any deliberations, the committee, President, and Board of Trustees may consult with the College's legal counsel. Records of formal complaints will be maintained by the College. All such records shall remain confidential to the extent possible consistent with adequate investigation and appropriate corrective action.